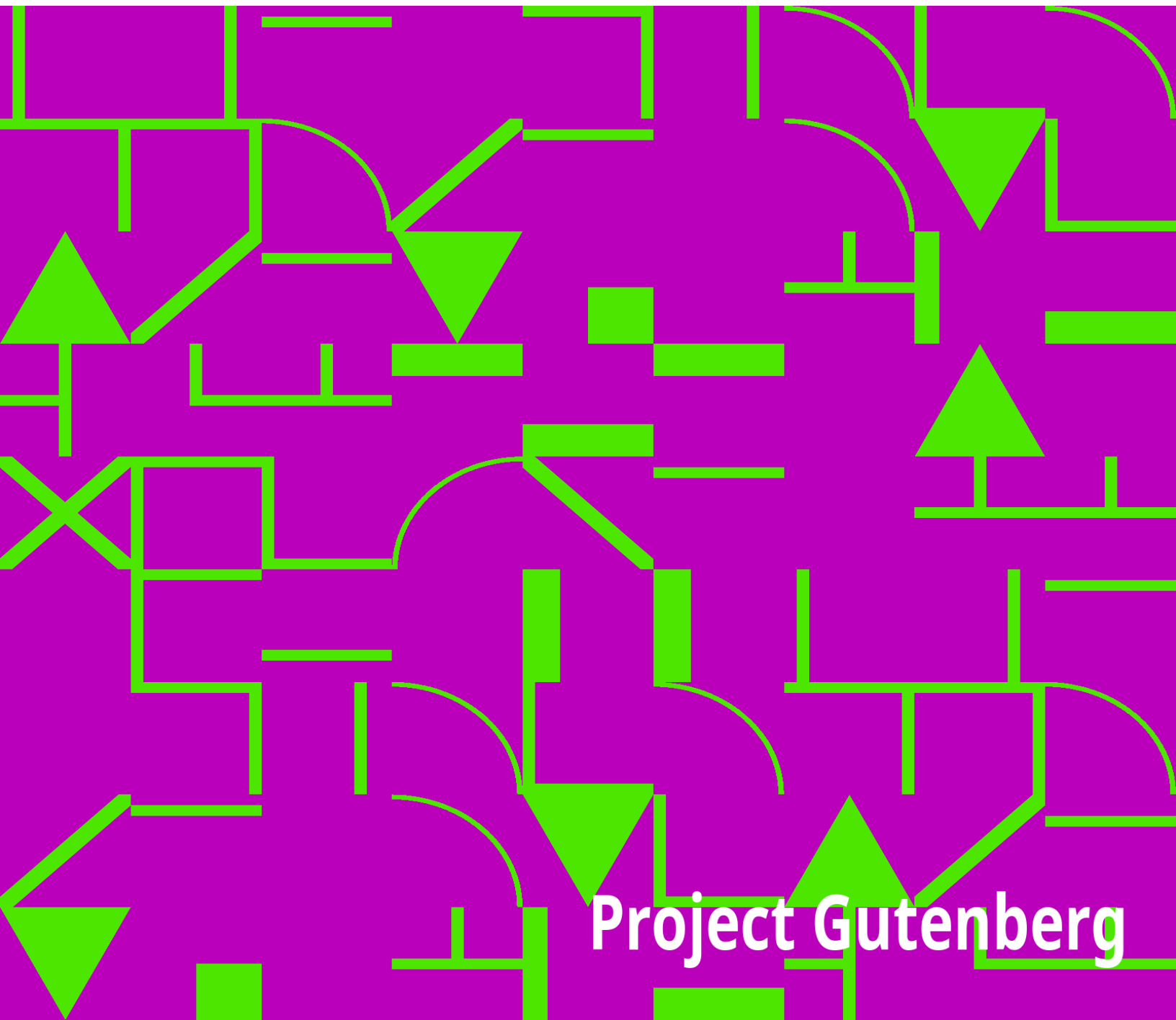


The Philippine Islands, 1493-1898 — Volume 11 of 55

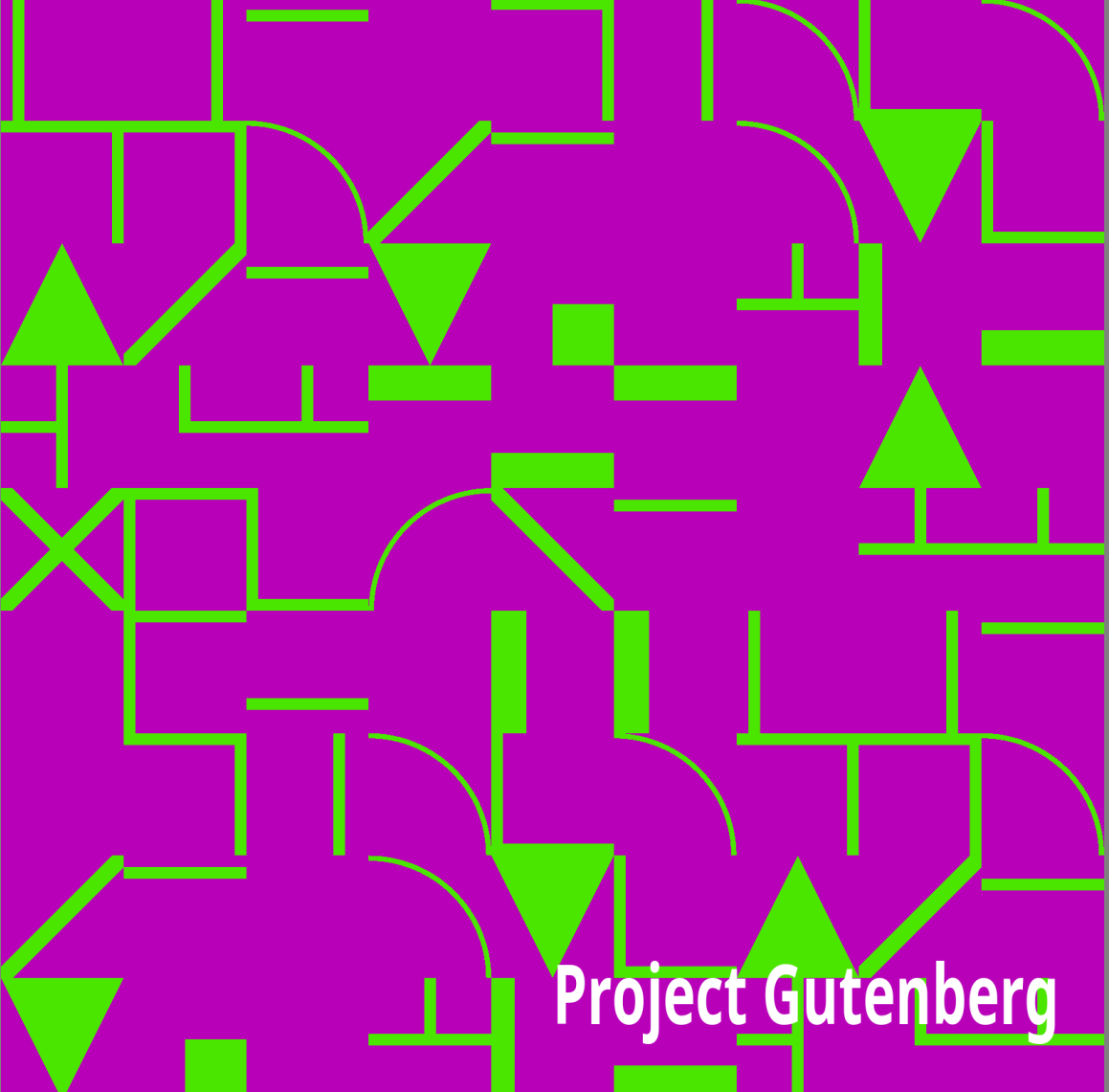
Emma Helen Blair and James Alexander

The background of the lower half of the cover is a vibrant red field filled with a complex, repeating pattern of white geometric shapes. These shapes include squares, rectangles, triangles, and semi-circles, some of which are nested or overlapping to create a sense of depth and architectural structure, reminiscent of a stylized cityscape or a complex tessellation.

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**The Philippine Islands, 1493-1898 — Volume
11 of 55**

Emma Helen Blair and James Alexander



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PHILIPPINE ISLANDS, 1493-1898 — VOLUME 11 OF 55 ***

THE PHILIPPINE ISLANDS, 1493-1898

Explorations by early navigators, descriptions of the islands and their peoples, their history and records of the catholic missions, as related in contemporaneous books and manuscripts, showing the political, economic, commercial and religious conditions of those islands from their earliest relations with European nations to the close of the nineteenth century,

Volume XI, 1599-1602

Edited and annotated by Emma Helen Blair and James Alexander Robertson with historical introduction and additional notes by Edward Gaylord Bourne.

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Preface

During the three years or more covered in this volume (1599-1602), the most notable occurrence is the coming to the archipelago (in 1600) of the fleet commanded by the Dutch adventurer Oliver van Noordt, bent on plunder and the damage of the Spanish settlements there: but he is defeated and driven away, although with heavy loss to the Spaniards. This event, with the quarrels which it arouses in Manila, and fears of like danger in the future, disturb the colony for several years. The people, both Spaniards and Indians, are also in constant dread of the Moro pirates, who ravage the coasts of the Pintados (Visayas) Islands, encouraged to commit these depredations by the late withdrawal of Spanish troops from Mindanao. In the face of all these difficulties, the government is also embarrassed by the poverty of the local treasury; its funds are wasted by unnecessary expenses and salaries, and lessened by frauds in the customs duties, and by other violations of the laws regarding trade. There are too many officials, both secular and religious; and the former are often incompetent or corrupt. The Indians are demoralized by having learned the use of the white men's money; their native industries are neglected, which causes scarcity and high prices of goods and supplies. New impulse and wider scope are given to the missions conducted by the Jesuits, who begin the task of gathering the scattered Indian converts into mission villages, thus more easily to civilize and christianize the natives. A new governor for the islands is appointed, Pedro de Acuña.

In this volume is completed the document begun in *Vol. X*, "Ordinances of the Audiencia enacted in 1598-99;" here are presented those for the first half of the year 1599. The *alcaldes-mayor* must, in collecting the taxes, observe the royal tariffs. To remedy the exorbitant charges for fees in the inferior courts, all suits appealed to the Audiencia must be accompanied by a sworn statement of the fees thus paid. The bonds accepted in law-suits must be more reliable. Auditors are given special powers in expediting the cases of persons imprisoned. Interpreters are not allowed to trade with the natives, except in the presence of a magistrate. The accounts of guardians of minors shall be examined by the probate judge. Attorneys are restricted in bringing new suits between Indians. Goods sold at auction for the benefit of the royal treasury must be knocked down to the highest bidder, and for cash only. Lawyers are ordered to follow the customs of the natives, where these are involved in lawsuits. Collection of tributes shall not be made by the *alcaldes-mayor*; and appointments for the post of collector must be approved by the Audiencia. Various acts prescribe the duties of officials of the Audiencia, and its procedures in certain cases; also limits of action by attorneys. The officials of the Audiencia shall give bonds each year. Cases involving twenty pesos or less shall not be brought to trial. Directions are given for the trial of suits between Indians. The *alguazils-mayor* must make the rounds of the city at night. All accounts due to or from the royal treasury shall be closed up and balanced within the next four months. Officials of the Audiencia shall not go outside of the city without permission. Certain punishments are prescribed for the Chinese inhabitants—for vicious practices, for making or clipping coin, and for buying stolen goods from Indians. All natives residing in Manila who have not some employment are ordered to leave the city at three days' notice. The duties of the late Alvaro Çambrano, deceased, are to be assumed by others of the auditors. Provision is made for due inspection, appraisal, and sale of merchandise brought from China. All Indians belonging to the royal *encomiendas* must pay their

tributes, even when they reside in Manila. The sum of three hundred pesos is appropriated to furnish and adorn the chapel of the Audiencia. The Chinese are forbidden to have godchildren, a practice which has led to many evils; and the Christians are ordered to follow the occupations which they had exercised before their conversion. Officials whose terms of office expire must furnish residencia before receiving any further appointment.

On July 3, 1599, one of the Franciscans in charge of the hospital for the Indians at Manila writes to the king, asking further grants of aid for its work. The governor and bishop are directed by the king to advise him as to the needs of the hospital. A letter from the royal fiscal to the king (July 21) displays the needs of the royal exchequer in the islands, and suggests means for supplying these. He complains of the burden imposed on the colony by the support of an archbishop and three bishops. Much is wasted in salaries, for useless or nominal services. Salazar y Salzedo advises that the offices and their salaries be both reduced. Especial loss and injury to the royal income arises from the frauds and violations of law which are practiced in the Mexican trade. The payment of tributes by the Indians in money is demoralizing them; they no longer pursue their former usual labors, and their products are now scarce and high-priced. They ought to be compelled to work, at agriculture, stock-raising, and mining. The treasury needs more money, and more Indians should be assigned to the crown. Encomiendas are fraudulently assigned by the governors. The erection of wooden churches in the encomiendas is another source of useless expense; these should be built of stone or brick. Certain offices should be taken from their present incumbents, and conferred on men of character and standing. The fiscal complains of lax management of the treasury by its officials, and calls for an investigation; and the same with the cabildo of Manila. Other charges where public moneys are involved should be inspected by the crown, and the waste of those funds should be checked. Even all these reforms will not provide all the funds for necessary expenses; the fiscal therefore proposes

that the crown monopolize the trade in spices and raw silk, which would bring immense profits to the royal treasury. Another letter from the fiscal to the king, of the same date, makes recommendations as to certain affairs of government. He urges that the auditors should make regular official inspection of the administration of justice throughout the islands. He complains that the profits of trade are absorbed by the officials and their dependents, leaving the citizens poor. Offices and other sources of profit must not be bestowed on those dependents, but on the citizens; and the officers of the ships that carry goods to Nueva España should not be appointed there, but in the islands. The ships should be more strictly inspected.

The ruler of Borneo sends (June. 1599) to Governor Tello a gift, accompanied by a letter in which he expresses firm friendship for the Spaniards. In a letter dated July 14, Tello complains that Morga is hostile to him, and even writes anonymous letters against the governor; the latter defends himself against these attacks. On August 7 he reports to the king the arrival of English ships at Maluco, and his intention of sending reinforcements to the Spanish fort there, and to that in Cebu. He is asking aid from the viceroy of Nueva España, and is trying to manufacture more artillery at Manila. Two letters from Felipe III to Tello are dated August 16, 1599. The king commends his proceedings in certain matters, and orders the viceroy of Nueva España to send hereafter only useful colonists to the Philippines. He also desires Tello to advise him whether the duties on Chinese goods can be increased.

A brief account of the pacification of Mindanao (1600?) furnishes some additional information as to events there, up to 1600. The troops have been withdrawn from this island, owing to an alarm of danger from English pirates; but these prove to be peaceable Dutch merchants. In October of that year, certain foreign vessels (thought to be English) enter the bay of Albay,

and Antonio de Morga is ordered by the Audiencia to fortify the port of Cavite and pursue the enemy. Instructions for this latter proceeding are furnished to him by the governor (December 10). He in turn gives instructions to his admiral, Joan de Alcega. Then follows an account not only of the battle between the Spanish and the Dutch fleets, but also of Van Noordt's entire voyage to the Philippines. The battle ends, on the whole, disastrously for Van Noordt. Among the plunder found on the Dutch ships is a commission granted to Esaias de Lende as a privateer against the Spaniards in the Indias. Suit being brought against the admiral Alcega for deserting the flagship in the battle with Van Noordt, Morga presents therein his version of the affair (January 5, 1601)—throwing the blame for the loss of the flagship on Alcega's disobedience to the orders previously given him by Morga.

Francisco Vaez reports (June 10, 1601) to the general of the Jesuit order the status of Jesuit missions in the islands. He relates the deaths of certain priests and brethren while engaged in the performance of their duties, and proceeds to a detailed report of each mission station. The Jesuit church at Manila has been ruined by earthquakes. The fathers of the college there are accomplishing much good by their labors, especially among those in prison, the soldiers, and the children. Several instances of the devotion and piety of converts are related. The losses and calamities which have befallen the people have made them more inclined to religion. The sodalities introduced among the natives arouse their devotion and enthusiasm. At Antipolo a hospital has been begun, as well as a school for boys. At Cebú also a school has been opened; and the labors of the Jesuits are highly acceptable to the people, and commended by the bishop. Many Indians are being converted by them. Connected with the residence at Cebú is that of Bohol. Here Father Valerio Ledesma has persuaded the savages to leave the mountains and settle near the river, under the care of the missionaries; they have built a church, and are fast becoming converted. Other missionaries in Bohol

report many hundreds of baptisms. Various miraculous cures of illness are related. Good news comes from Samar also; nearly four thousand have been baptized, nearly all adults. In Dulac a boys' school has been established, and many conversions have occurred. At Alangala there are three Indian chapels. Vaez asks for more missionaries in this so promising field. A few days later (July 8) the official visitor of the Jesuit missions, Diego Garcia, writes to Felipe III. He recommends that seminaries for the instruction of heathen boys be established as a means for hastening the conversion of the natives; and that the Indians be gathered into settlements. Garcia asks that the Jesuit college at Manila be authorized to graduate students from its classes; and closes by recommending to the king's favor Morga and other officials.

The fiscal, Salazar y Salcedo, declares (July 16, 1601) that Tello is shielding Morga, and despatches to the king a full report of the investigation which he has made of the conflict with the Dutch. A memorial to the king is sent (July 20, 1601) by the cabildo of Manila, making various complaints in regard to the conduct of Doctor de Morga. The order given by him and Tello for the abandonment of Mindanao has caused the natives of that region to commit piracies in the islands under Spanish rule. Morga has obtained official positions for his relatives and friends, contrary to the royal ordinances. One of these men, being utterly incompetent, has failed to drive back the Mindanao pirates, who have consequently inflicted much damage. Through various machinations, Morga succeeded in depriving Ronquillo of the command of the fleet, in the battle with Van Noordt; but in the conflict he showed himself incompetent to command the troops, and a coward at the approach of danger; and, in consequence, his flagship was wrecked, with the loss of many Spaniards and of valuable military supplies. Moreover, the enemy being allowed to escape, the islands are more exposed to future attacks from them. The writers of this letter are sending documents to prove their charges; they also accuse Morga of writing anonymous letters. A letter

from Morga to the king (July 30) relates his services in the naval battle, and the unfaithfulness of Joan de Alcega to his trust in that and other instances. Morga asks to be relieved from his post in the Philippines, and sent to some other country. On December 11, 1601, the Jesuit school at Cebu is aided by a royal grant for the erection of buildings.

Governor Tello is superseded by Pedro de Acuña, and the latter is provided with instructions (February 16, 1602) by the king. He must consult with the viceroy of Nueva España regarding the measures to be taken for the settlement of the islands; and the viceroy has been ordered to aid the governor therein. Acuña is directed to look after the defense of the coasts, and the maintenance of a garrison in Mindanao. He must do what he can to dispense with offices and salaries which are superfluous, for which the king makes various recommendations. The frauds which have been committed in the shipment of goods to Nueva España, and in the payment of duties thereon, must be stopped. Irregularities and frauds in the assignment of encomiendas must also cease. These and various other matters are discussed by the king, in pursuance of the recommendations made by the royal fiscal in July, 1599. Official inspection of affairs in the islands must be made by the auditors; and the royal officials must put a stop to the importation from America of money for investment in the China trade. The cathedral at Manila must be completed, and the hospitals aided; and nuns will be sent for Santa Potenciana. The Jesuit seminary for Indian boys should be cared for; and Acuña is to ascertain its condition and needs. He must investigate the question of abolishing the Parian, and see that religious teachers are provided for the natives of the Ladrones Islands. Agriculture must be encouraged in the Philippines. Two royal decrees (dated February 16) command the viceroy of Nueva España to send to the Philippines more colonists, who shall be persons of good character; and two nuns, to take charge of the seminary of Santa Potenciana at Manila. Captain Gallinato sends to the governor at Manila (June 4, 1602) warning of a large

plundering expedition which is about to sail from Mindanao to ravage the Pintados Islands. The Joloans are also hostile, and ready to attack the Spaniards; and the natives of Terrenate are aiding the Mindanaos.

Luis de Dasmariñas writes to Felipe III (June 8, 1602), urging that the Spaniards reconquer the fortress of Maluco, to protect the Philippines from attack by "those demons of English and Dutch heretics." Doctor de Morga again informs the king (June 30) of his services in the conflict with Van Noordt, and in still another letter (July 8) of the attacks which his enemies are making upon him in regard to that affair. The Augustinian officials at Manila notify the king (July 4) of the election of Pedro Arce as provincial of their order in the islands; and explain their refusal to receive a visitor recently sent to the islands from Nueva España. A letter from the fiscal details (July 10) the measures taken to compel payment by Governor Tello of the debts owed by him in Sevilla; he has property in Nueva España, but none in the islands.

The Editors

December, 1903.

Documents of 1599

Ordinances enacted by the Audiencia of Manila
(*concluded.*) Francisco Tello, and others; January-July, 1599.
The hospital for Indians at Manila. Domingo de Santiago and
Antonio Valerio; July 3.
Letters from the royal fiscal to the king. Hieronimo de

Salazar y Salcedo; July 21.

Letter from the king of Borneo to Governor Tello. Soltan Adil

Sula; [June?] translated July 27.

Letters to the king. Francisco Tello; July 14 and August 7.

Letters to Tello. Felipe III; August 16.

Sources: All these documents save one are obtained from MSS. in the Archivo general de Indias, Sevilla; the second of the king's letters (August 16) is from the "Cedulario Indico" in the Archivo Histórico Nacional, Madrid.

Translations: The first of these documents is translated by Arthur B. Myrick, of Harvard University; the second, by Emma Helen Blair; the third, and part of the sixth, by Robert W. Haight; the fourth, by James A. Robertson; the fifth, by Norman F. Hall, of Harvard University, and José M. and Clara M. Asensio; the first letter in the sixth, by Alfonso de Salvio, of Harvard University.

Ordinances Enacted by the Audiencia of Manila (*concluded*)

An act ordering the alcaldes-mayor and their officials to observe the royal tariff.

In the city of Manila, on the seventh of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas, in the collection of taxes by

the alcaldes-mayor of the provinces of these islands, and by their notaries and officials, there is great excess and disorder, from failing to observe his Majesty's royal tariffs, whence arise many difficulties and obstacles to the service of God our Lord, and of his Majesty: therefore, to remedy these evils, they ordered, and they did so order, that all the alcaldes-mayor, both now and henceforth, in all of the provinces of these said islands, shall observe and cause to be observed the royal tariff of his Majesty and his royal Audiencia; and, in conformity with it, shall levy and cause to be levied the taxes to them appertaining, as also shall their notaries and officials—levying on the natives a third less than on the Spaniards, according to the declaration thereof in the said tariff; and that each one of them shall have a copy of this tariff. They shall neither use nor levy the said taxes by any other tariffs, under penalty of a fine of one hundred pesos for the treasury of his Majesty and the expenses of justice. By this act they so provided, ordered, and decreed.

Don Francisco Tello Doctor Antonio de Morga The licentiate *Tellez de Almazan* The licentiate *Zambrano*

Before me:

Pedro Hurtado Desquibel

Proclamation: In the city of Manila, on the twenty-second of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands, who signed their names to the above act, declared and proclaimed it in public session.

Pedro Hurtado Desquibel

An act decreeing that there shall be no suits without the filing of a sworn memorandum of the fees that the parties have paid.

In the city of Manila, on the seventh of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia, Court, and Chancillería of these Philipinas Islands declared that, whereas it has come to their knowledge that certain persons—not only Spaniards, but Indians and Sangleys—who bring suits in this royal Audiencia and outside of it, in the provincial and ordinary tribunals, complain of the large sums that are charged by the courts, in great excess of what they are ordered to charge by the royal tariffs; and that the notaries of the said tribunals, contrary to orders, send the appealed suits to this royal Audiencia, without placing at the end of them the fees they have paid; therefore, in order to remedy the aforesaid evil, and to put an end to complaints of similar acts of injustice, they ordered, and they did so order, both the officials of this royal Audiencia and the others in the provincial and the ordinary tribunals, and those outside of this city, now and henceforth, not to bring or send any suit to be reviewed in the court of this royal Audiencia, unaccompanied by a memorandum, signed and sworn to by the parties to the suit, of what they have spent thereon, and to what persons they have given the money; and not to bring any suit for revision in any other manner, under penalty of a fine, for each time when they shall disobey this order, of ten pesos for his Majesty's treasury, to be equally divided between the treasury and the court—to which, from that moment, they are considered as condemned. By this act they so provided and ordered, and they signed the same.

Don Francisco Tello Doctor Antonio de Morga The licentiate Tellez Almazan The licentiate Alvaro Zambrano

Before me:

Pedro Hurtado Desquibel

Proclamation: In the city of Manila, on the twenty-second day of the month of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of these Philipinas Islands, who signed their names to the above act, declared and proclaimed it in public session.

Pedro Hurtado Desquibel

An act decreeing that the clerk of court who receives the bonds of suitors shall accept only reliable bonds, and at his own risk; and that his residencia in regard to the said office shall be taken.

In the city of Manila, on the seventh of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas in the suits that are brought and considered in this royal Audiencia it is sometimes necessary to order the parties to give bonds, which are accepted by the clerk of court of this royal Audiencia, without his knowing whether they are good or not: therefore as some trouble and annoyance might result from this, and it is expedient to avoid this, and, where bonds are concerned, to require the residencia, they ordered, and they did so order, that now and henceforth the said clerk, in all suits in which bonds are ordered to be given, shall accept only honest, reliable, and valuable bonds, under the penalty of having them charged to his own account and risk if they are not so. He shall give reliable bonds therefor, and shall likewise undergo the residencia of his said office; and shall pay whatever is adjudged and decided against him, and any public demands which shall be lodged against him, as he is obliged to do by law. Thus it was provided, ordered, and decreed.

Don Francisco Tello Doctor Antonio de Morga The licentiate Tellez Almazan The licentiate Albaro Cambrano

Before me:

Pedro Hurtado Desquibel

Proclamation: In the city of Manila, on the twenty-second day of the month of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of these Philipinas Islands, who signed their names to the above act, declared and proclaimed it in public session.

Pedro Hurtado Desquibel

An act decreeing that the auditors who regularly review the charges against prisoners may make what decisions shall be necessary in the suits of prisoners por sala, until their sentences shall be pronounced.

In the city of Manila, on the seventh of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of these Philipinas Islands declared that, whereas, in despatching suits of the prisoners in the royal prison of this court, there might be some delay on account of there being many persons imprisoned *por sala* who are never released during the review of cases made, from which they receive great harm by protracting their release: therefore, the president and auditors agreed, and they did so resolve, that, now and henceforth, when they shall review the cases in the royal prison of this court, on the Saturdays appointed therefor, they may release those who were arrested *por sala*, if arrested therein by alcaldes of the court; and that,

likewise, they may issue the acts which shall seem fitting to them concerning the regulation of criminal cases, until they are definitely concluded by sentence, so that the cases of the said prisoners may be despatched with the greater celerity.

By this act they so ordered, provided, and decreed.

Don Francisco Tello Doctor Antonio de Morga The licentiate *Tellez Almazan* The licentiate *Alvaro Cambrano*

Before me:

Pedro Hurtado Desquibel

Proclamation: In the city of Manila, on the twenty-second day of the month of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of these islands, who signed their names to the above act, declared and proclaimed it in public session.

Pedro Hurtado Desquibel

An act decreeing that the interpreters shall not trade or traffic with the natives.

In the city of Manila, on the seventh of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of these Philipinas Islands declared that, whereas it has come to their knowledge that the interpreters, as a result of their occupation as interpreters, and being for the most part friendly to the natives, seek and attempt to acquire, with trinkets and other illegal means, jewels, slaves, and

other things, at lower prices than they are valued by the said natives: therefore, in order to put a stop to the aforesaid evil by applying a remedy for it, they resolved, ordered, and decreed, that now and henceforth, no interpreter shall buy from the said natives any jewels, slaves, or other valuables, except in the presence of the magistrate, under penalty of confiscation of what shall have been bought by the interpreter violating this law, half of which is immediately to be applied to his Majesty's treasury, and the other half to the expenses of justice; and furthermore, he shall not be allowed to exercise the said office any longer. By this act they so provided, ordered, and decreed.

Don Francisco Tello Doctor Antonio Morga The licentiate Tellez Almazan The licentiate Cambrano

Before me:

Pedro Hurtado Desquibel

In the city of Manila, on the twenty-second day of the month of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of these Philipinas Islands, who signed their names to the above act, declared and proclaimed it in public session. Diego de Mercado and Juan Garcia, interpreters, were present and were notified.

Pedro Hurtado Desquibel

An act decreeing that the probate judge shall examine the accounts of guardians of minors in this court.

In the city of Manila, on the seventh of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of these Philipinas Islands declared that, whereas in this court there are many minors—encomenderos, and others—whose property and effects are in charge of guardians and curators; and because the said property might be spent and dissipated without these guardians being able afterward to give an account thereof to their said minors, which would result to the great harm and prejudice of the latter: therefore, to remedy the aforesaid, they resolved, and they did so resolve and decree, that the common probate judge, now or hereafter, in these islands be empowered to examine, not only in trust but on the party's petition, the accounts of all the guardianships and curatorships of minors in this court, and of the administration and conservation of the same; and he may proceed against those of whom he may be suspicious, or who administer and manage dishonestly, or waste, the goods and effects of the said minors; and may make in the case all the inquiries suitable and necessary, until he shall hand down a definite decision in such cases—for which, and for everything annexed to and pertaining to it, they gave him the requisite power and authority, in the sufficiency required by law. By this act they so voted, ordered, and decreed.

Don Francisco Tello Doctor Antonio de Morga The licentiate Tellez Almazan The licentiate Cambrano

Before me:

Pedro Hurtado Desquibel

An act decreeing that no one shall keep on his hat or sit down, while the auditor is taking his deposition.

In the city of Manila, in the Philipinas Islands, on the seventh of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the said islands declared that, whereas certain persons have been imprisoned in the royal prison of this court, for criminal cases, who, when their depositions were being taken, sat down and remained with their heads covered, which is in disrespect of royal justice; and as it is fitting to apply a remedy to the aforesaid, now and henceforth, therefore, they ordered, and they did so order, that each and every one, of whatever rank and condition, who may be imprisoned on criminal charges, shall, when his deposition is being taken before any auditor of this royal Audiencia, stand and bare his head, until such time as his deposition is ended. And, in order that this may come to the knowledge of everyone, it shall be made known to the commissioners and attorneys of this royal Audiencia, who shall give notice of the provisions of this act to such persons, whenever occasion shall arise, so that it may be observed. By this act they so provided, ordered, and decreed.

Don Francisco Tello Doctor Antonio de Morga The licentiate Tellez Almazan The licentiate Cambrano

Before me:

Pedro Hurtado Desquibel

An act decreeing that no attorney shall enter a petition in a new suit between Indians, without first communicating it to the auditor for that week.

In the city of Manila, on the seventh of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas in this royal Audiencia there are brought and considered suits and causes for small amounts among the natives of these islands, in which they incur heavy costs, whereby they receive great injury and vexation: therefore, they ordered, and they did so order, that no prosecuting attorney of this royal Audiencia shall bring therein a new suit or petition for an Indian, without first and foremost bringing it before this royal Audiencia, or before the auditor for the week, in order that the latter may determine whether the suit be a proper one—under a penalty of a fine of six pesos of common gold, immediately upon the conviction of anyone who may disobey this decree; one-third to go to the receiver of fines, another third to the royal hospital, and the other third to the poor in the prison. By this act they so declared ordered, and decreed.

Before me:

Pedro Hurtado Desquibel

An act decreeing that the royal officials, in the sale of gold and other goods, from the royal exchequer, see that it be done for cash, and not auctioned to creditors of the exchequer, in order that the latter may receive their money.

In the city of Manila, on the seventh of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas on account of his Majesty's royal exchequer of these islands being, as it now is, embarrassed with many debts, it cannot succeed in paying its creditors what it thus owes them—

which results from the fact that some of the said creditors, in order to have their accounts paid to them, present themselves at the royal auctions which are held for the sale of gold, cotton cloth, and other goods collected from the tributes pertaining to the royal crown, and bid on such articles, at higher prices than would be given if they were paying in cash, in order to receive what the royal exchequer owes them; and that if such things as this were allowed to continue, the said royal exchequer would not be able to meet certain necessary matters which continually occur in the service of the king, our sovereign, and of which consideration should be taken: therefore, they declared that they ordered, and they did so order, the official judges of the royal exchequer of the king our sovereign in these islands, that now and henceforth, in the auctions and sales which may be made of any royal property, it shall be made over to the person or persons who bid the highest, being knocked down to them and paid for immediately. They shall admit or receive in no other way any other bid which may be made by the said creditors. By this act they so declared and ordered, and signed the same.

Don Francisco Tello Doctor Antonio de Morga The licentiate Tellez Almazan The licentiate Albaro Çambrano

Before me:

Pedro Hurtado Desquibel

An act decreeing that the advocates and attorneys of this royal Audiencia shall follow the customs of the natives.

In the city of Manila, on the seventh of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas in suits brought by natives of these islands, wherein they consider in this royal Audiencia questions of slavery, divisions of inheritances, slaves, marriage-dowries, and other things, it is fitting that the advocates and attorneys of this royal Audiencia follow the customs of the said natives, observed formerly and now in the said suits: therefore, in order that they may be observed as his Majesty orders, and that to that end they may keep a copy in their possession, in order that they may know and observe them, they ordered, and they did so order, that the said advocates and attorneys in all suits at present pending in this royal Audiencia, as in those which shall be brought and continued henceforth, touching the said natives, shall approve and adhere to the said customs which the Indians were thus accustomed to follow and do follow; and they shall take a copy of the said customs which are set down in the books [1] of the royal Audiencia resident in these islands. They ordered that all the aforesaid persons should be notified of this act, in order that they may observe and execute it, under penalty of the loss to the parties; and, besides that, their consciences were charged with it, and it was declared that they would be judged guilty for any laxity or neglect which should thus occur. By this act it was so decreed, and they ordered it to be registered.

Don Francisco Tello Doctor Antonio de Morga The licentiate Tellez Almazan The licentiate Albaro Cambrano

Before me:

Pedro Hurtado Desquibel

An act declaring that no use shall be made of the tariff made by this royal Audiencia.

In the city of Manila, on the seventh of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas it has been provided and ordered that the court clerk and other officials of the Audiencia and ordinary courts shall collect their fees in conformity with the tariff of the royal Audiencia of the City of Mexico in Nueva España: therefore, they ordered, and they did so order, that this be observed and executed exactly as the king, our sovereign, commands; and that the said officials may not use the tariff which the Audiencia made concerning the said fees, which is to be withdrawn. No one of the persons herein mentioned shall collect fees in conformity with it, under the penalties imposed upon those who collect excessive fees. This act shall be made known to all the officials whom it concerns. So they declared, ordered, and decreed.

Before me:

Pedro Hurtado Desquibel

An act decreeing that the alcaldes-mayor shall not make collections, nor shall they be given to the official judges; and that the collectors appointed must be approved by this royal Audiencia.

In the city of Manila, on the seventh of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas, on account of the alcaldes-mayor of the provinces of these islands collecting, personally or by their agents, the tributes from the natives in their jurisdiction who pertain to the

royal crown, by commission granted therefor by the officials of the royal exchequer, there have resulted many injuries and inconveniences, both to the said natives and the said royal exchequer: therefore, because it is necessary to avoid the said injuries, and apply a remedy to the aforesaid evil, they ordered, and they did so order, that the officials of the royal exchequer of the king our sovereign should be notified, so that in no way or manner, now and henceforth, shall they grant the collections, directly or indirectly, to the said alcaldes-mayor, nor shall the latter have any part of that which is granted to the collectors. Therefore, the said collectors shall take oath in due legal form, that they will make the said collection, taking it for themselves alone, without granting any part to the said alcaldes-mayor. The latter shall not collect the tribute under penalty of deprivation of their offices. The said collectors shall deliver in kind to the royal exchequer the tributes that they shall collect from the said natives, unless the said officials shall order otherwise, for the augmentation of the royal exchequer. And in order that the collectors sent may be fit and proper persons, it is ordered that those appointed to the office by the said royal officials shall present themselves before this royal Audiencia, in order that they may be there approved. The said royal officials shall cause this to be done, under a penalty of a third part of their salary for that year, which must be paid immediately upon conviction of disobedience to this decree. The said collectors shall be vested with the authority of justice. By this act it was so declared, ordered, and decreed.

Don Francisco Tello Doctor Antonio de Morga The licentiate Albaro De Cambrano The licentiate Tellez Almazan

Before me:

Pedro Hurtado Desquibel

An act decreeing that the attorney for minors shall not bring a suit, without first communicating it to the judge for minors.

In the city of Manila, on the seventh of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas in this court there are many minors, whose goods and property are in the charge of their guardians, who might spend and dissipate the said goods beyond the use and profit of the said minors, which would be to their great injury: therefore, because by the attorney and defender of the said minors entering any suits and petitions with regard to the aforesaid minors without giving notice thereof, or communicating with the judge for minors, many inconveniences may result, as a remedy for this, they resolved and ordered that the said attorney for minors shall bring no suit for a minor against his guardian, without first communicating it to the judge who sits or shall sit for minors, that the latter may order what he deems advisable. By this act it was so ordered, ordained, and decreed.

Don Francisco Tello Doctor Antonio de Morga The licentiate Tellez Almazan The licentiate Albaro Cambrano

Before me: *Pedro Hurtado Desquibel*

An act decreeing that all the officials, both of this royal Audiencia and the ordinary courts, shall be present at the review of charges against prisoners.

In the city of Manila, on the seventh day of the month of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands, declared that, whereas by the absence of the alcaldes-in-ordinary of this city, and of the clerk, reporter, alguazils-mayor, attorneys, commissioners, notaries-public, and other officials, not only of this royal Audiencia but of the lower court of this city, from the review of charges against prisoners, many prisoners are not at liberty—from which it follows that they are vexed and annoyed by long imprisonments and other great injuries and inconveniences; besides the fact that, in many suits, they are unable to administer and provide justice on account of not being present at the said review: therefore, because it is advisable to institute a reform in this matter, they ordered, and they did so order, that now and henceforth, every week on the days set apart for the review of prison charges, the said alcaldes-in-ordinary, the alguazils-mayor of the court and the city, the clerk and reporter of this royal Audiencia, the attorneys and commissioners thereof, the solicitors of the royal offices, the native interpreters, and the notaries-public, bailiffs, alguazils, and other officials of this royal Audiencia and the ordinary court, shall be present at the said review with all punctuality—except the reporter of this royal Audiencia, who is not obliged to be present at the said review, unless he has no suit to attend to—under a penalty of a fine of one peso for every offense, for each one of the aforesaid officials, as soon as they declared him convicted and did convict him. They ordered that the receiver of fines of this royal Audiencia shall observe the aforesaid most carefully for the proper execution and fulfilment of this act—which, in order that no one may pretend ignorance of it, shall be made known to all the persons whom it concerns. By this act it was so provided, ordered, and affirmed.

*Don Francisco Tello Doctor Antonio de Morga The licentiate Tellez
Almaçan The licentiate Albaro Cambrano*

Before me:

Pedro Hurtado Desquibel

An act decreeing that the royal official judges in the fulfilment of their duties shall observe the instructions, decrees, and ordinances of his Majesty.

In the city of Manila, on the nineteenth of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of these Philipinas Islands declared that, whereas by the ordinances, decrees, and instructions of his Majesty, orders have been given to the official judges of the royal exchequer of these islands, regarding their obligations in the exercise and discharge of their duties, and, because it is fitting that his Majesty's orders in those decrees be observed and fulfilled, they ordered, and they did so order, that the said royal officials should be notified that in the exercise of their offices they should observe the said royal ordinances, decrees, and instructions of the king our sovereign, who has given them, as they are held, exercised, and observed, and as they must be exercised and observed, by the royal official judges of the City of Mexico in Nueva España, especially section seventeen of the said royal ordinance. By this act they so provided, ordered, and decreed.

Before me: *Pedro Hurtado Desquibel*

An act ordering the commissioners to be present at all sessions of the Audiencia.

In the city of Manila, on the twenty-first of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Filipinas Islands declared that, whereas, although by the royal ordinances the commissioners of this royal Audiencia are obliged to be present at the assemblies, they are not there; and thus many cases that come up, both civil and criminal, are delayed in settlement, so that considerable harm and annoyance result to the parties concerned; and furthermore, that official and fiscal cases are delayed, because the said commissioners to all appearances do not employ therein the necessary diligence: therefore, to remedy this condition of affairs, they decreed and ordered that, now and henceforth, all the said commissioners, unless they have legitimate occupation or obstacle, shall be present without fail in the hall at all the sessions of the Audiencia with the greatest punctuality, so that in all matters there may be the prompt action which is desirable, under penalty of a fine of one peso from him who shall disobey this decree, the fine to be applied immediately upon condemnation, in this manner—six reals to the poor in the prisons, and two for the bailiff who has to execute the decree. By this act they so provided, ordered, and decreed.

Before me: *Pedro Hurtado Desquibel*

An act decreeing that orders shall be given regarding the sworn memoranda of the collector of fines.

In the city of Manila, on the twenty-first of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of these Philipinas Islands declared that, whereas Pedro

Fernandez de Sanctofimia, attorney in the cases of the Audiencia, is appointed by this royal Audiencia to collect its fines, and ordered to assess the fines imposed upon its officials and other persons who do not observe the royal ordinances, and all other ordinances, decrees, and provisions, to the amount that must be levied for each fine—for, by not executing the penalties thereof daily, there are many oversights and no little remissness in the fulfilment of each one's obligations: therefore, in order that the requisite system be observed in everything, they decreed that, by giving the said Pedro Fernandez de Sanctofimia the present sworn memorandum of fines to be imposed upon everyone, he shall immediately receive his orders thereby regarding what he is commanded to levy for each fine. The latter he shall do immediately, as the said memorandum shall indicate, without any investigation or mandate preceding. The orders that he shall so give shall be executed by the bailiff or alguazil of this royal Audiencia, whenever they shall be issued. Whatever the latter shall collect he shall deliver to the said collector of fines, who shall take charge of it, and enter it carefully in a book, that he may give strict and clear account of each fine collected. And they charged each other's consciences with the fulfilment of all the above. By this act they so provided, ordered, and decreed.

Before me: *Pedro Hurtado Desquibel*

An act decreeing the making of a book in which shall be entered the decrees sent and to be sent by his Majesty to these islands, in order that they may be observed and executed.

In the city of Manila, on the twenty-first day of the month of January, one thousand five hundred and ninety-nine, the president and auditors of the

royal Audiencia and Chancillería of these Philipinas Islands declared that, whereas the king our sovereign, by his royal ordinances, ordains and orders a book to be made, in which to inscribe the decrees that he has sent, and shall send, to these islands, and that it contain an account of their execution: therefore, they thereupon ordered, and they did so order, the said book to be made, and entrusted it to the clerk of the court. He shall inscribe therein all the decrees that the king our sovereign has sent and will send to these islands, so that henceforth a detailed account of their observation and execution shall be kept, as his Majesty orders. By this act they so provided, ordered, and decreed.

Before me:

Pedro Hurtado Desquibel

That interlocutory decisions shall be concluded at one demand from each party.

In the city of Manila, on the twenty-first of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of the Philipinas Islands declared that, whereas his Majesty ordains and commands by one of the royal ordinances for this royal Audiencia, that interlocutory decisions shall be concluded, in trial and review, at one demand from each of the parties, and that the clerk of court receive [no] other demands: therefore, in order that the aforesaid be exactly executed, they ordained and decreed that the attorneys of this royal Audiencia shall conclude the said interlocutory decisions in trial and review, at one demand from each party, without giving or presenting more demands, with the warning that any others presented shall not be admitted.

The clerk of court is warned in the present that he shall not receive them under penalty of a fine of two pesos, to be employed as it shall seem proper, and delivered into the charge of the collector of fines of this royal Audiencia, upon whom the execution of the above shall be most carefully charged. And they ordered it to be proclaimed, and especially to the said attorneys. So they provided, ordered, and decreed.

Before me:

Pedro Hurtado Desquibel

An act providing that no proceedings shall be conducted in suits between Indians, without a decree from this royal Audiencia.

On the twenty-first of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands, declared that, whereas, in one of his royal ordinances, the king, our sovereign, commands the aforesaid president and auditors that, in suits and civil and criminal cases between Indians, the usual proceedings shall not be conducted or issued, except in cases decreed and ordered by an act of this royal Audiencia: therefore, in order that the aforesaid shall be exactly fulfilled, they ordained and decreed that it should be communicated to the said attorneys of this royal Audiencia, that when, in the name of any natives, they shall bring suits against other natives, before bringing these suits they shall notify this royal Audiencia—in order that, if thought best, they may be docketed, and if not, that the cost and expense may be avoided. Those which shall be prosecuted shall be docketed by formal decree of this royal Audiencia, and in no other manner. They must strive to be brief and precise in everything. The notaries both of this royal Audiencia and the

other jurisdictions thereof are ordered, in the collection of fees from said natives, to employ great moderation, and to despatch their business promptly, in order that all his Majesty's orders and decrees may be observed and fulfilled. Moreover, they commanded that the aforesaid notaries be notified of this act. So they provided, ordered, and decreed.

Before me:

Pedro Hurtado Desquibel

An act decreeing that the attorneys shall go, within three days, to the office of the clerk of court, to settle suits that are concluded.

In the city of Manila, on the twenty-first of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of these Philipinas Islands declared that, whereas, on account of the non-appearance of the attorneys of this royal Audiencia at the office of the clerk of court for this royal Audiencia, to settle and otherwise regulate suits and cases which are concluded, in order that they may be reviewed and decided, there is great delay in their revision and decision, so that the interested parties are subjected to great harm and annoyance: therefore, to remedy this, they ordered, and they did so order, that all the attorneys of this royal Audiencia shall be notified that, whenever the said suits are concluded, wherever they shall be brought, within the three days first following they shall appear at the office of the above-mentioned clerk of court, and there settle and dispose of them, so that there shall be nothing wanting, and that they may have the necessary despatch—being warned that, if they do not thus come within the said term, the said clerk can settle the said processes, and send them to the reporter for him to

review them in court. And if, by the said attorneys' negligence, the parties suffer any harm, the said attorneys shall pay them for it in their persons and goods. By this act they so declared, ordered, and decreed.

Before me:

Pedro Hurtado Desquibel

An act decreeing that the notaries shall not collect their fees entirely from each of the parties, but that each one shall pay the part he owes.

In the city of Manila, on the twenty-first day of the month of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of these Philipinas Islands declared that, whereas it has come to their knowledge that both the notaries and the reporter [*relator*] [2] of this royal Audiencia and of the other jurisdictions of this court, collect fees for the trial of suits and other acts thereof in entirety from each of the parties at whose petition they may take action, saying that they should pay them entirely: therefore, because the aforesaid proceeding is to the great harm and damage of the parties, to make them thus pay what they do not owe, and since the aforesaid evil should be remedied, they ordered, and they did so order, now and henceforth, that the said notaries and reporter, or either of them, shall not collect in any way, or in any case, the fees owed by one of the said parties from the others, but that each one shall pay what he owes. On account of not paying the total fees, the party who would wish his suit to be tried, shall not have it delayed; but, as soon as he has paid his share, his suit shall be despatched with all celerity. And they declared that they charged, and they did so charge, their consciences with this; and furthermore, that whoever shall disobey this decree shall be

convicted and sentenced to pay a fine four times as great as the sum thus exacted, for his Majesty's treasury, in addition to the fines which those who exact excessive fees incur. By this act they so declared, ordered, and decreed; and that this act shall apply to any person whom it concerns.

Before me:

Pedro Hurtado Desquibel

An act decreeing that the attorneys shall not speak in suits wherein they shall not have been authorized to do so.

In the city of Manila, on the twenty-first day of the month of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of these Philipinas Islands declared that, whereas the attorneys of this royal Audiencia often take it upon themselves to speak and make allegations in suits in which they have no authority, and in which they have not appeared as parties to the said case, certain nullifications can be created—for which reason the said case may be brought again, and the parties thereto subjected to considerable injury and expense: therefore, to obviate the said injuries and other inconveniences of reconsideration, they ordered, and they did so order, that, now and henceforth, neither the said attorneys nor any one of them shall take it upon himself to speak, nor shall they speak in any suit or case, unless authorized therefor by the party in whose favor they shall speak, or unless he has proved himself to be a party to the suit—under penalty that he who shall disobey this decree shall incur a fine of four pesos of common gold, as soon as he shall be judged guilty thereof; three of them to be given to the royal hospital for Spaniards, and one to the bailiff in charge thereof. And under

the said penalty, the clerk of court is ordered not to give any one of the said attorneys any suits or petitions, unless empowered thereto by the parties concerned. By this act they so ordered, declared, and decreed.

Before me: *Pedro Hurtado Desquibel*

An act decreeing that the evidence that the clerk of court cannot take be entrusted by commission of this royal Audiencia, and assigned by the members thereof, to the notarial commissioner of examinations.

In the city of Manila, on the twenty-first day of the month of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of the Philipinas Islands declared that, whereas, conformably to the royal ordinances, all the evidences in suits and cases pending in this royal Audiencia, are committed to the clerk of court; and whereas, on account of the volume of business incumbent upon his said office, he cannot receive them all, and commits them to the notaries: therefore, because the aforesaid taking of evidence cannot be done unless authorized by this royal Audiencia, under the direction of its members, they ordered, and they did so order, that in regard to evidence which the said clerk of court cannot take immediately in interrogatories and petitions, by virtue of which such evidence must be taken, an act be passed by which his duty may be committed by this royal Audiencia and assigned by its members to a commissioner of examinations, the latter to receive and examine the said evidence, and to take the oaths of witnesses thereto. The said commissioner shall give a receipt to the parties for the fees which he shall collect from them for said evidence, and at the foot of the evidence he shall in like manner sign his name. The clerk of court shall not receive any fees for such evidence; and under no circumstances whatever shall the said

evidence be taken in any other way, except as herein stated, under penalty that evidence given in any other way shall be null and void; and the commissioner receiving it shall incur a penalty of one hundred pesos of common gold, as soon as he shall have been judged guilty, the fine to be applied in equal parts to the royal treasury and court-rooms of this royal Audiencia. By this act they so declared, ordered, and decreed.

Before me: *Pedro Hurtado Desquibel*

An act decreeing that the officials of this royal Audiencia shall give bonds at the beginning of every year, and that likewise, they shall give them for the time during which they have already held office.

In the city of Manila, on the twenty-first day of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of these Philipinas Islands declared that, whereas, in order to conform to the decrees and provisions of his Majesty, and to be just with the parties entering suits, the officials of this royal Audiencia are under obligation to give bonds that they will undergo residencia for the right exercise and discharge of their duties, at the beginning of each year: therefore, because hitherto they have not given bonds for the time while they have exercised their said offices, and because they should give them, both for the aforesaid time and for the future, they resolved and ordered that the commissioners of examination, attorneys, assessor of taxes, collector of fines, deputies of the alguazil-mayor, and the prison warden of this court, shall each one of them, within fifteen days after being notified of this act, give safe and reliable bonds, before the undersigned clerk of court, that they will undergo residencia for the use and

exercise of their offices, and pay everything which may be adjudged against them in the matter, and also in the suits which may be instituted against them. They are also warned that after the said term of office has expired, they shall exercise the said offices no longer, which shall be immediately declared vacant, and other persons appointed thereto. Likewise, within the said term and under the said penalty, they shall give bonds for all the time during which they have already exercised the said offices in the royal Audiencia, for which they have not given them. In the future, they shall be notified and ordered to renew the said bonds at the beginning of every year, under the said penalty. By this act they so provided, enacted, and decreed.

Before me:

Pedro Hurtado Desquibel

An act decreeing that cases of twenty pesos or less shall not be brought to trial; and that the notary shall not take a larger fee than one-half peso from each party.

In the city of Manila, on the twenty-first day of the month of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of the Philipinas Islands declared that, whereas so many suits involving twenty pesos or less are wont to be begun, and as much time is consumed therein as if they were affairs of greater magnitude, whence there results to the parties concerned great harm and damage by reason of the great cost and expense wasted therein, beside the long and tedious delays in the collection of their debts: therefore, to remedy that, they agreed and ordered that, now and henceforth, no trial shall be made of cases amounting to twenty pesos or less, unless they are briefly and

summarily disposed of; and that the notary before whom they are brought shall not take for his fee more than four reals only from each party, even if they make many investigations in the matter—under penalty that all that they take above that sum they shall return to the parties concerned, together with four times as much for his Majesty's treasury. By this act they so provided, ordered, and decreed; and the notaries whom its fulfilment concerns shall be notified.

Before me:

Pedro Hurtado Desquibel

An act concerning the order that the alcaldes-mayor are to follow in trying Indian suits.

In the city of Manila, on the twenty-first of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of these Philipinas Islands declared that, whereas his Majesty has ordered, in his royal decrees and ordinances, that the suits of the Indians shall be treated summarily, and that processes issued within the limit of the law shall not be so conducted that the said Indians waste their substance by incurring too heavy costs: therefore, in order that the royal will of the king our sovereign might be exactly fulfilled, they resolved and ordered that the alcaldes-in-ordinary and the alcaldes-mayor and other magistrates and notaries, in suits of the Indians, shall observe their instructions and the following articles.

First, when any Indian—whether man or woman—shall enter suit for liberty, or any other matter, against another Indian without giving a *traslado*, [3] the said magistrate shall order the Indian sued to appear before

him and take oath as to the truth of the demands of the plaintiff. If he shall confess it, justice shall be done by settling the case; and if he deny it, the case shall be reserved for evidence within a short time, with obligation for publication and conclusion. The said magistrates shall order that, as soon as both parties name their witnesses, the latter shall be brought into court, and an oath taken from them to tell the truth, and they shall cause them to tell by word of mouth what they know. After they have thus testified, the substance of their depositions shall be recorded, in this form: "So and so of such an age, capable or incapable as a witness, said so and so under oath;" and the same shall be done with the other witnesses in the same order. The evidences of both parties being taken, and the time-limit having expired, a just finding shall be determined. If either of the parties appeal, the alcaaldes-mayor shall hear them in the court of appeals; and the witnesses named by either party shall be subpoenaed, and shall give their evidence in the same form as set forth above, the case being admitted to trial within a short time, with obligation for publication and conclusion—at the expiration of which the process shall be sent to this royal Audiencia to be settled, the original parties being summoned for all trials, the time and place being appointed by the court.

Second. *Item*: If the suit be a criminal suit, the complaint and charge shall be received. If there is guilt, the person shall be arrested, and the prisoner's declaration taken. The charge shall be formulated against him, and the case admitted to trial within a short period, with obligation for publication and conclusion; and within the probatory limit the testimonies given in the preliminary process shall be verified, other new ones received, if there be any, and the defendant's plea taken. The time having expired, the case shall be decided. If any of the parties shall appeal, the original process shall be sent to the Audiencia; because in this way the said natives will avoid heavy expense and cost, and the cases will be more quickly decided. In criminal

cases, no other form of process shall be used than that which is appointed for civil cases.

Third. *Item:* If the suit be to the amount of three pesos, or less, the judgment shall be so summary that only the substance of the whole matter is to be written, together with the decision, in a report. The original shall be retained by the notary, and if either of the parties shall desire an authenticated copy, it shall be given them as a safeguard of their rights. And in suits for the said amount, only one real, and no more, may be collected between judge and notary.

Fourth. *Item:* That if the judge shall attest the testimonies in any civil or criminal suit by flourishes and signatures that he may make, he cannot collect any fees; since there are none due him except for the acts that he shall draw up and sign.

Fifth. In order that the said instructions be exactly observed and fulfilled, they declared that they order, and they did so order, the alcaldes-in-ordinary and the notaries-public to be informed thereof, and testimony thereof to be sent to all the alcaldes-mayor, whose consciences they declared they charged, and they did so charge, with the fulfilment thereof. Furthermore, in the residencias which shall be taken from them, he who shall not have fulfilled this decree, or caused it to be fulfilled, shall be punished and with great rigor. So they provided, ordered, and decreed.

Before me: *Pedro Hurtado Desquibel*

An act decreeing that the alguazils-mayor and their deputies shall make the rounds every night.

In the city of Manila, on the twenty-first day of the month of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of the Philipinas Islands declared that, whereas it has come to their knowledge that neither do the alguazils-mayor of this court and city, nor their deputies, make their rounds throughout the city, as they are under obligation to do—as a result of which, murders, robberies, and other lawless acts and crimes occur daily, to the great injury of the citizens: therefore, to remedy this state of affairs and provide this community with the necessary guard and order, they ordered, and they did so order, the said alguazils-mayor and their deputies to be notified that they must make their rounds during the night, as they are under obligation to do in this city, without fail, under penalty of a fine of ten pesos of common gold—to be applied, as soon as anyone shall be condemned for disobeying this decree, in equal shares to the two royal hospitals of this city—for the Spaniards and for the natives—in addition to the loss and interest to any parties which may result and occur. By this act, they so provided, ordered, and decreed.

Before me:

Pedro Hurtado Desquibel

An act decreeing that there shall be in the courtroom, a list of the charges fixed by the royal tariff, and that each notary shall keep one in his house.

In the city of Manila, on the twenty-first day of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of the Philipinas Islands declared that, whereas the king our sovereign, in his royal ordinances, decrees and orders that a list of the charges fixed by the royal tariff be placed in the court-room, and that

likewise each notary whom it shall concern shall keep a copy in his house, for its better observation and execution: therefore, in order that the aforesaid may be exactly fulfilled, they ordered, and they did so order, a complete copy of the said royal tariff to be made by this royal Audiencia. It shall be set forth in a list, and placed in the court-room; and all the notaries and persons mentioned therein, and those whom it may concern, shall make a copy, and keep the same in their houses and affixed to a tablet in some public place, where it may be seen by those transacting business. This they shall do and fulfil within one week after this act shall have been made known to them, under penalty of a fine of six pesos of common gold; and anyone incurring this penalty shall pay this sum immediately—half of which shall be set aside for the poor in the prisons, and the other half for the Spanish hospital in this city—beside incurring and undergoing the penalties contained in the said royal ordinances. By this act they so provided, ordered, and decreed.

Before me:

Pedro Hurtado Desquibel

An act decreeing that within four months the royal officials shall close up the accounts held by the royal treasury.

In the city of Manila, on the twenty-first day of the month of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas it has come to their knowledge that in the royal accountancy of the king our sovereign there are, at this very day, many accounts to be balanced and closed of individuals who owe the royal treasury a large sum of gold pesos, and others to whom money is due—whence has resulted, and results, the lack

therein of the system and management which should be observed in the said royal exchequer: therefore, in order that on this account no losses may result, and that the matter may receive its due consideration, they ordered, and they did so order, that the official judges of the royal treasury of the king our sovereign, in these islands, within the four months first following the day on which they shall have been notified of this act, shall balance and close each and every account that the royal treasury holds with any individuals of these islands. They are warned that whoever shall not so fulfil and execute his orders, after the expiration of said time, will be charged with everything, and ordered to pay all accounts not balanced and liquidated. By this act they so declared, ordered and decreed.

Before me:

Pedro Hurtado Desquibel

An act decreeing that all the officials of the royal Audiencia shall take copies of the royal ordinances.

In the city of Manila, on the twenty-first day of the month of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas, in one of the royal ordinances, it is ordered that all the officials of this royal Audiencia, and other persons whom they concern, shall keep in their possession a copy of the said ordinances; therefore they ordered, and they did so order, that within thirty days after the publication of this act, each of the said officials shall take a copy of the said royal ordinances and keep it in his possession; and each one, so far as he is concerned, shall observe and execute them, as his Majesty orders therein, under the penalties therein contained—under the penalty that if, after the expiration of said time, the

said copy has not been made, they shall be immediately convicted and fined in the sum of six pesos of common gold, the latter being applied to the court-rooms of this royal Audiencia. By this act they so declared, ordered, and decreed.

Before me:

Pedro Hurtado Desquibel

An act decreeing that no alcalde-in-ordinary, notary, commissioner, attorney, or any other official of this royal Audiencia, or of the ordinary court, shall go outside this city without license.

In the city of Manila, on the twenty-first day of the month of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas the alcaldes-in-ordinary of this city, notaries, commissioners, attorneys, and other officials, both of this royal Audiencia and of the ordinary court, whenever they see fit, leave the city without license—whence results much harm to the litigants, on account of the delay and unsatisfactory conduct of their business, beside many other inconveniences resulting therefrom: therefore, to remedy this evil, they decreed and ordered that, now and henceforth, no alcalde-in-ordinary, commissioner, attorney, notary-public, or other official of this royal Audiencia or of the ordinary court, shall go anywhere outside of this city, without the express permission of this royal Audiencia, under a penalty of a fine of six pesos of common gold, in which sum anyone adjudged guilty of the contrary shall be immediately fined—one-half for the poor in the prison, and the other half for the poor in the Spanish hospital—beside the loss and interest which may result to the

parties concerned on account of the delay in justice. By this act they so proclaimed, ordered and decreed.

Before me:

Pedro Hurtado Desquibel

Ordinances and laws for the Sangleys.

We, the president and auditors of the royal Audiencia and Chancillería of these Philipinas Islands. Whereas it has been learned by experience in this city that the Sangleys residing in the islands and their neighborhood have had and maintain among them a custom of practicing, and they do practice an abominable sin against nature, not only with the Chinese, but with the Moro and Indian boys of these islands, by which God, our Lord, is greatly disserved; and, whereas, the said Chinese have had and have the habit and custom of bringing from China, or making in this city, money of base metal, and they pare and clip the royal money, to the great fraud and injury of the royal exchequer; and although they have seen that some are punished for this, they have not taken warning; and whereas, the said Sangleys, who are infidels, ally themselves with the Christian Indian women, and have lawless carnal intercourse with them; and whereas, besides the aforesaid crimes, the said Sangleys are wont to buy from slaves and Indians golden jewels, trinkets, clothes, and other articles which are stolen: therefore, to supply a remedy for all that, and in order that such crimes and disorders shall cease, now and henceforth, we command the following orders to be observed in everything.

Laws.—First, we ordain and command that none of the said Chinese Sangleys, or any other persons whatsoever, shall commit or practice the said

abominable sin against nature, or try to commit it. Whoever shall do so shall incur the penalty of being burned alive by fire, beside having all his goods confiscated to the treasury of his Majesty.

Item: We ordain and command that none of the said Sangleys shall dare to make or coin any sort of silver or gold money, or of any other metal, nor shall they clip or scrape money already made, or make use of it, under the penalties contained in the above ordinance.

Item: We ordain and command that none of the aforesaid shall cohabit or have carnal intercourse with any [Spanish?] woman or Christian Indian woman, under the penalty that, in such case, he shall incur a punishment of two hundred lashes and ten years in the galleys, as criminals sentenced to row, without pay, and of the confiscation of one-half his property, to be applied as above stated.

Further, we ordain and command, that none of the said Sangleys, for any reason or consideration, shall buy from negro slaves or freemen, Indians or mulattoes, any gold jewels, trinkets, garments, or any other articles which they sell; but when the said Sangleys go to them, they shall arrest them and take them before the magistrate, under penalty that whoever shall disobey this decree shall fall under and incur the penalties incurred by robbers, and said penalties will be rigorously executed on their persons and goods.

And in order that the aforesaid shall be observed and executed without remission of penalty, and so that no one may pretend ignorance, we order that these ordinances shall be publicly proclaimed in the public square, in all other public places of this city, in the Sangley Parian, and in the village of Tondo, in order that everyone may know of them; and in each one of the said places a copy of them, written in the Chinese language, shall be posted. No person shall dare to remove the said placards, under penalty of two hundred lashes. We order all the alcaldes-mayor of the environs of this city

to have them published and made known to the natives. We request and charge all the religious to give instructions to the said Indians, and cause them to understand these laws and ordinances, and the penalties attached thereto. Given in the city of Manila, on the twenty-sixth of January, one thousand five hundred and ninety-nine.

Don Francisco Tello Doctor Antonio de Morga The licentiate Tellez Almazan The licentiate Albaro Cambrano

By order of the royal Audiencia:

Pedro Hurtado Desquibel

That the official judges shall not grant collections to any collectors who have not rendered an account and payment of collections that have been in their charge.

In the city of Manila, on the twenty-seventh of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas it has come to their knowledge that the official judges of the royal exchequer of the king our sovereign, in these said islands, grant commissions to certain collectors to make collections from the encomiendas that pertain to his Majesty's royal crown, who, by virtue thereof, make the collections; and that it often happens that, without their rendering any account and payment of them, the said officials again grant them commissions to make the collections, to the great harm and prejudice of the royal exchequer, from which many difficulties may result: therefore, in order to correct the aforesaid evil, they ordered, and they did so order, that the official judges, now and henceforth,

shall under no consideration grant commissions to any collectors to make any collections for the royal exchequer and crown, without their having rendered account and payment of former collections entrusted to them—under penalty of paying out of their own pockets what such collectors shall appear to owe the royal estate, as soon as such is evident, besides undergoing and incurring a fine of two hundred pesos of common gold (this fine to be applied to the royal treasury of the king our sovereign), to which sum, from that moment, they declared that they condemned, and they did so condemn, any one who should disobey this decree. By this act it was so provided, ordered, and affirmed.

Don Francisco Tello

The other honorable auditors signed the above.

Before me:

Pedro Hurtado Desquibel

An act decreeing that the clerk of court shall bring to the first meeting a minute of the fiscal suits.

In the city of Manila, on the twenty-eighth of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas in the archives of the office of the present clerk of court, many fiscal suits are pending, as well as others which have been concluded, in which his Majesty's royal office is interested; but, not knowing which ones are concluded, the others are not concluded and finished: therefore, in order that those that are concluded may be known and settled, they ordered, and they did so order, me, the undersigned clerk of court, to bring a copy and minutes of those that are

concluded, and [of the suits now pending,] to the next session which shall be held, in order that they may examine them and provide what is most advisable therein. By this act it was so provided, ordered, and decreed.

Don Francisco Tello

Before me:

Pedro Hurtado Desquibel

An act decreeing that a book be made in which to enter the fines applied to the poor of the prison and other pious works, and to the courts, and the manner of their distribution.

In the city of Manila, on the twenty-eighth of January, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of the Philipinas Islands declared that, whereas the aforesaid Audiencia imposes certain fines of small amounts, some of which are applied to the poor of the prison, and others to the courts and other pious works: therefore, because it is advisable that there should be an account and report of these moneys, and of their source and the manner of their distribution, they ordered, and they did so order, a book to be made in which to enter the said penalties, applied as aforesaid, with the day, month, and year, in what cases they are imposed, and likewise a report of how they are expended and distributed; and this shall be done with all clearness, so that the aforesaid may be evident for all time. This act is to be placed at the beginning of said book. So they provided, ordered, and decreed.

Before me:

Pedro Hurtado Desquibel

An act decreeing the collection of all the debts which are in any way owed to the royal treasury of the king our sovereign.

In the city of Manila, on the thirtieth of January, one thousand five hundred and ninety-nine, the president, and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas the licentiate Geronimo de Salazar y Salzedo, fiscal of this royal Audiencia for his Majesty, has made them a report, declaring that the royal treasury of the king our sovereign, in these islands, cannot succeed in paying many of its debts, on account of failure to collect many that have been due it for some time past; and has besought and supplicated them to order that the royal official judges shall, within twenty days, exert all possible diligence to collect everything that is due the said royal treasury for any reason whatever: therefore, in order to provide a remedy for the aforesaid difficulty, they ordered, and they did so order, that the said official judges should be notified that, within the two months next following the date on which this act shall be made known to them, they shall collect all the debts that are in any manner owed to the royal treasury, from all and any persons whatsoever, and from their goods, exerting therein all necessary diligence. They are to proceed with the necessary rigor to do this effectively, being warned that if they do not collect the said debts, to be liquidated within the said period, all that shall remain uncollected they will be obliged to pay out of their own property. For the debts which shall not have been liquidated, they shall observe and execute the act of this royal Audiencia, which has been made known to them, under the penalty thereof. By this act they so provided, ordered, and decreed.

[No signature.]

An act decreeing that it shall be proclaimed in this city, in the public places thereof, that within three days all natives residing therein, not servants or otherwise employed, shall leave this city.

In the city of Manila, on the eleventh of February, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas the licentiate Geronimo de Salazar y Salzedo, his Majesty's fiscal in this royal Audiencia, protector of the natives of these said islands, has made a report to the effect that there are many natives who are vagabonds in this city, as a result of which they fall into various vices dangerous to this community; and that rice and other provisions have become high-priced and scarce; and as a remedy, he has requested and petitioned the aforesaid president and auditors to provide in this regard what is most advisable: therefore, they declared that they ordered, and they did so order, that, within three days from the date of this act, it shall be proclaimed to all and whatever natives are and reside in this city, who are not employed as servants to the Spaniards, or in some known occupation, that they must leave the city and return to their own villages, to remain and live therein. Nor shall any other, now and henceforth, remain in this city, under penalty, to anyone who shall disobey this decree—for the first time, of one hundred lashes; and for the second offense, one year of service at the oar in his Majesty's galleys, without pay—on whom they declared that, as soon as they condemned them (and they did so condemn them), the said penalty shall be executed without leniency. In order that it may come to the notice of all the said natives, and that no one may pretend ignorance, this act shall be proclaimed in the Tagal language, in this city, in the public places thereof, and in the hamlet of Tondo, and testimony shall be taken thereof. Thus they declared, ordered, and decreed.

Before me:

Pedro Hurtado Desquibel

An act concerning the order which the alcaldes-in-ordinary and the alguazil-mayor of this court must observe in their seats.

In the city of Manila, on the fifth of March, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas some dissensions and difficulties have occurred between the alcaldes-in-ordinary of this city and the alguazil-mayor of the court of this royal Audiencia, in the churches and public places where they have met, in regard to the seats and places which each shall occupy, and their precedence—so that it has resulted in their coming to blows, to the great scandal and indecorum of their offices, and particularly in contempt of this said royal Audiencia: therefore it is necessary in this matter to provide some regulation to be kept and observed in like cases by the aforesaid officials, so that the said disturbances shall cease. In order that the said alcaldes-in-ordinary of this city shall keep their known seats and places, and that they may be separate from the said alguazil-mayor and from the ministers of this said royal Audiencia, they declared that they ought to order, and they did so order, that, when the alguazil-mayor of this court shall be present in any of the churches of this city, without the president, auditors, and fiscal, or any others whom he might join, he shall not take any seat or bench belonging to the alcaldes-in-ordinary or regidores (nor shall any other individuals occupy them, or sit in them, or intrude themselves among them in any part or place that shall be given them), but shall place and keep his chair and seat in some distinct and fitting place, as does the president, the Audiencia, or any of the members thereof. Likewise, in the processions and parades through the streets, funerals, betrothals, passage of retinues, and other like occasions on which

the towns-people gather, the said alguazil-mayor of the court, finding himself alone, without any of the aforesaid persons whom he might accompany, shall refrain from going in company with them [the alcaldes] in any manner—whether invited, or of his own accord; whether the city's alcaldes go as a municipal body, or as individuals to such functions; or whether they are not present at them. Meantime the question is being considered and consulted as to what is to be done and observed in all the above matters, and what it is advisable to do in the future, and whether this royal Audiencia should make any further provision. All the above shall be observed and fulfilled by the said alguazil-mayor of the court, and the alcaldes-in-ordinary of this city, without their having any wrangling or differences, or any scandal—being warned that, if they do so, proceedings will be instituted against the guilty persons who violate the order; and they shall be punished to the full extent of the law. By this act they so voted, ordered, and decreed.

Don Francisco Tello Doctor Antonio de Morga The licentiate Tellez Almazan

Before me:

Pedro Hurtado Desquibel

An act decreeing that the taxing officer of this royal Audiencia shall be notified to fix the costs in the suits, either personally, or by some other intelligent person whom he shall name for this purpose.

In the city of Manila, on the sixteenth of March, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas it has come to their notice that the taxing officer of this royal Audiencia does not fix the costs in the suits that are brought there: therefore, because it is advisable that the above officer fulfil the obligation of his office, as his Majesty ordains and commands, and that the inconveniences which arise from this be avoided, they ordered, and they did so order, that the said taxing officer should be notified that, now and henceforth, in whatever processes shall be brought for consideration in this royal Audiencia, whether definitive or under any plea whatever, the costs shall be fixed by him (thus complying with the tenor of the royal ordinance treating of this matter), either personally, or by some other intelligent person whom he shall designate for the said purpose, and shall appoint in his place, who shall be a person fit for the said service. They ordered the clerk of court of this royal Audiencia to be present at those suits which shall be brought for consideration in the manner above mentioned, before the said taxing officer, in order that he may fix the costs therein; and, regarding the aforesaid, they charged one another's consciences. By this act they so voted, ordered, and decreed.

Before me:

Pedro Hurtado Desquibel

An act decreeing that Doctor Antonio de Morga shall take the residencia, for the months of January and February, of the deputy regidors, within the limit of ten days.

In the city of Manila, on the sixteenth of March, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas, for the past months of January and February of the present year, up to the present time, no residencia for the use and exercise of their offices has been taken of the deputy regidores of this city, it is fitting and necessary that it be taken immediately: therefore they appointed, and they did so appoint, Doctor Antonio de Morga, auditor of this royal Audiencia, for a term of ten days, to take the said residencia for the said months of the said appointed regidores, who have filled their said offices, proceeding therein as the king our sovereign decrees and commands in his royal ordinance. For this they granted him the authority and commission as fully as is required by law. By this act they so voted, ordered, and decreed.

Before me:

Pedro Hurtado Desquibel.

An act decreeing that Doctor Antonio de Morga, auditor of this royal Audiencia, shall audit the accounts of the city for the past year, 1598.

In the city of Manila, on the sixteenth day of the month of March, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas the auditing of the accounts of this city for the past year, one thousand five hundred and ninety-eight, was committed to the licentiate Alvaro Çambrano, late auditor of this royal Audiencia (whom may God keep in His holy glory!), and because by his end and death the auditing, continuation, and balancing of the accounts, as his Majesty orders and commands in his royal ordinance,

have been neglected: therefore, they appointed, and they did so appoint, in place of the said licentiate Alvaro Çambrano, Doctor Antonio de Morga, auditor of this royal Audiencia, to audit the said accounts, and to continue and finish them according to the order given to the said licentiate Alvaro Çambrano—for which, they granted, and they did so grant, him authority and commission as fully as is required by law. By this act they so voted, ordered, and decreed.

Before me:

Pedro Hurtado Desquibel

An act decreeing that, on account of the end and death of the licentiate Alvaro Çambrano (whom may God keep!), the licentiate Tellez Almaçan is to continue, close, and complete the accounts of the royal exchequer.

In the city of Manila, on the sixteenth of March, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of the Philipinas Islands declared that, whereas the licentiate Alvaro Çambrano, late auditor of this royal Audiencia (whom may God have in His holy glory!), to whom was assigned the auditing of the accounts of his Majesty's royal exchequer—which are at present being audited by the royal judicial officials—is now dead and passed from this present life: therefore, in order that on this account the auditing may not be delayed and fail of prosecution, as is fitting, and as the king our sovereign commands in his royal ordinance, in place of the licentiate Alvaro Çambrano they appointed, and they did so appoint, the licentiate Tellez de Almaçan, auditor of this royal Audiencia, to continue, close, and finish the said auditing, according to the commission given to the said licentiate

Albaro Çambrano, for which they gave him commission in legal form. By this act, they so voted, ordered, and decreed.

Before me: *Pedro Hurtado Desquibel*

An act decreeing that the city shall give information regarding its place of seating in the cathedral of this city.

In the city of Manila, on the sixteenth of March, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of the Philipinas Islands declared that, in order to assign to the cabildo, magistracy, and administration of this city the place of seating that it must keep in the cathedral: in order to ascertain the custom hitherto followed in the aforesaid matter, and in order to provide what is necessary concerning it, they ordered, and they did so order, the said cabildo, magistracy, and administration of this city to give an account of the part and place in which it has been regularly seated in the cathedral of this city—both in the time when the royal Audiencia formerly resided in these islands, and after his Majesty ordered it to be suppressed—in order that, upon examination, the necessary provisions may be made. By this act they so voted, ordered, and decreed.

Before me: *Pedro Hurtado Desquibel*

An act concerning the royal magazines.

In the city of Manila, on the eighteenth of March, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of the Philipinas Islands, having examined the opinion of the official judges of the royal exchequer of these islands, on the question of building magazines in which to store the merchandise coming from China to this city, and having investigated other matters connected with the aforesaid, and further matter which is contained in the decree of the king our sovereign, ordering that this said Audiencia attend to the matter: they declared (in conformity with the opinion of Joan de Bustamante, accountant of the royal exchequer) that at present, and until experience further shows what it is most advisable to enact in this matter, the said Chinese merchandise shall be registered and appraised on the same vessels on which it was brought, as has been done hitherto. In order that there may be good accounts and reports, and less opportunity for fraud in the royal customs, they ordered that the official judges of his Majesty in these islands, as soon as each ship enters this harbor and anchors therein, shall go out to inspect it, registering and appraising all the merchandise and other things in the cargo. They shall exert diligence in the matter and make their inspection with the punctuality advisable, so that the said merchandise, or any part of it, may not be discharged or concealed. In order that this may be enforced more effectually, the necessary guards shall be placed on the said ships and in the bay, who are to be trustworthy persons, to the satisfaction of the said president and auditors of this royal Audiencia, by whom they shall be approved and appointed, The said official judges shall have, as a reward for their occupation and labors, one third part of the confiscations which are levied upon any merchandise found and seized because it had been hidden on the said ships, or withdrawn from them without registration or appraisal. They shall also be charged that they shall not allow or consent that, while the said merchandise is on the said ships, either the royal officials or their assistants, or any other person—Spanish, Sangley, or native—shall take,

buy, or transport the said merchandise in large or small quantities, for cash or on credit; but that the merchants thereof, who brought the merchandise from China on the said ship, after making registry and appraisal, may take them ashore freely and where they will, without any obstacle or hindrance from anyone—with the warning that, if any one of them do not so observe and fulfil this act, he shall be proceeded against with the full rigor of the law. They ordered that a commission, in due form, be given to the said guards, both in order that they may wield the authority of justice, and that there be no other guards but those who are so nominated by this royal Audiencia; those hitherto acting as guards shall exercise the said duty no longer, under the penalties incurred by those who so act without power or commission in the matter. This act shall be made known to his Majesty's officials, and the chief clerk of mines, and the regidores, for those who are at present guards; and it shall be added to the other acts and investigations made by virtue of the said royal decree of his Majesty. By this act, they so voted, ordered, and decreed.

Before me: *Pedro Hurtado Desquibel*

An act decreeing that tribute be collected for the king, our sovereign, from all the Indians found settled and dwelling in this city and within its bounds, who belong to his Majesty's encomiendas.

In the city of Manila, on the twenty-second of March, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of the Philipinas Islands examined the petition of the licentiate Geronimo de Salazar y Salzedo, fiscal for his Majesty in this royal Audiencia, that the collectors of the royal tributes of the king our sovereign,

in this city and its environs, may collect tribute from all the Indians who are found therein, notwithstanding any obstacle or excuses whatever which may be offered by the said Indians, or by any encomenderos. Considering that for many years the Indians have dwelt and resided in this city, and that their tribute belongs and pertains to his Majesty, they declared that they ordered, and they did so order, that the collectors of the royal tribute shall collect their tributes from all the Indians found settled and dwelling in this city and within its bounds, who belong to the encomiendas of his Majesty. The said Indians shall not pay other encomenderos, nor shall such encomenderos collect any tribute from them, under penalty of returning to the said Indians what they shall have collected from them. In order that the provisions of this act be observed, enforced, and executed, they ordered it to be publicly proclaimed in this city and its limits, in both the Tagal and the Castilian languages. They committed the execution and enforcement of it to the official judges of the king our sovereign in these islands. The aforesaid president and auditors also ordered that, if any persons claim to have any right contrary to the matter herein contained, they are to appear before this royal Audiencia, to petition before it for whatever is fitting in their case. By this act they so voted, ordered, and decreed.

Before me: *Pedro Hurtado Desquibel*

An act decreeing that the alguazils, as soon as they arrest delinquents, shall give notice thereof to one of the auditors and to the commissioners, who shall formulate their cases and bring them to the office of the clerk of court.

In the city of Manila, on the third of April, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas it is continually happening that the alguazils of this court arrest delinquents whose cases the notaries and commissioners undertake, and, without giving notice to the aforesaid president and auditors, or taking such cases to the office of the present secretary, they allow them to remain in their possession, and the said prisoners to remain in jail, without any note or account of their imprisonment, whence result vexations to the said prisoners, and the said alguazils and commissioners do not fulfil the obligation which rests upon them: therefore, to find a remedy for this and other annoyances which may result from it, they ordered, and they did so order, that now and henceforth, as soon as the said alguazils shall arrest any delinquent, they shall give notice thereof to one of the above-mentioned persons, in order that he may take the fitting action in regard to the said imprisonment. Any commissioner who shall undertake the cause of said prisoner or prisoners shall immediately take it to the office of the present clerk of court, so that in this manner there may be the necessary system. Whatever one or the other may do shall be despatched with all promptness and punctuality, and no favor—under penalty of a fine of six pesos for anyone who shall disobey this decree, to be given the poor in the prison. By this act they so voted, ordered, and decreed.

*Don Francisco Tello Doctor Antonio de Morga The licentiate Tellez
Almaçan*

Before me:

Pedro Hurtado Desquibel

An act decreeing that the royal officials shall give Doctor Antonio de Morga three hundred pesos from treasury fines, for ornaments and other things necessary for the chapel.

In the city of Manila, on the tenth of May, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia and Chancillería of the Philipinas Islands, being in session, declared that, whereas the chapel of this royal Audiencia is in great want and need of many things that are very necessary and indispensable, for its vestments, decoration, and furniture; and whereas, through lack of money, the said needs have not as yet been supplied: therefore, to make provision for them, they ordered, and they did so order, that the official judges of the royal exchequer of the king our sovereign, in these islands, shall, from any treasury fines in their charge, immediately give and deliver to Doctor Antonio de Morga, auditor of this royal Audiencia, three hundred pesos of common gold, which he shall expend in providing the said chapel with the things most necessary for it, systematically and carefully. They ordered that he be given a warrant for the said purpose, in due form. By this act, they so voted, ordered, and decreed.

Before me:

Pedro Hurtado Desquibel

An act decreeing that secretaries of this court and government may be attended by slaves with swords.

In the city of Manila, on the thirteenth of May, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that, whereas, in conformity with the decrees and ordinances given by his Majesty for his royal Chancillería of Nueva España, residing in the City of Mexico, and for other audiencias throughout the Yndias, he orders that secretaries of the court and the government shall have, as a retinue and guard, slaves with swords, conformably to the dignity and gravity of their office: therefore, in order that the same be done in this court, in regard to the secretaries of this court and government, and in order to preserve the preeminence and exemptions which they may and should enjoy here, they ordered, and they did so order, that, now and henceforth, the said secretaries of this court and government may freely bring into this court, as their retinue, the said slaves with swords, according to the usual custom in the said royal Chancillería of the City of Mexico, and other chancillerías of the Yndias, without the interposition—by any person, of whatever estate, quality, or rank—of any hindrance or impediment whatever, under the penalties provided by law. Thus they voted, and ordered it to be recorded as an act, and signed it in my presence.

Pedro Hurtado Desquibel

An act decreeing that the Sangleys shall not be allowed to have godchildren, on account of the injury which may result therefrom.

In the city of Manila, on the seventeenth of May, one thousand five hundred and ninety-nine, the president and auditors of the royal Chancillería of these Philipinas Islands, having examined the information which was referred to this royal Audiencia by Estevan de Marquina, alcalde-mayor of the village of Tondo and its presidio, regarding the custom

which the Christian Sangleys of that jurisdiction have among themselves, of receiving and having a great number of godchildren, both Christian and infidel, in order to have them ready for any emergency that may arise, and to employ them as false witnesses—to which they lend themselves with great facility, and at little cost—and for other evil purposes and intents, exchanging with them favors and assistance in their affairs; and whereas, on account of these and other causes which have come to light, and as is quite evident from the said information, that district is ruined and divided into factions, and that it would be advisable, for its reform, to suppress this custom of having godchildren, and that they should not continue it, under severe penalties: therefore, they declared that they ordered, and they did so order, that, now and henceforth, the Sangleys of these islands shall in no manner have or avail themselves of the said godchildren; nor use their names, nor those of any others, in order to have them for their partisans or accomplices in any kind of transaction which might occur, as they have been wont to do hitherto; nor shall they regard them as such, or receive others in their place; and they shall give up immediately all those that they had. The others who are infidels shall do the same, so that there shall remain no remembrance of the said intercourse—under penalty that any Sangley, of any rank whatever, who shall be known to have continued it and to have the said godchildren or godparents, shall be condemned to row in the galleys for four years, in a place prescribed, without pay, as soon as they are adjudged guilty thereof. The said alcalde-mayor of Tondo and its presidio, and all other magistrates whatever, are ordered to take especial care in the fulfilment and execution of this act. They shall cause it to be published, in order that all persons may know of it, and none plead ignorance—for which purpose an order shall be given in due form, and this act inserted therein. Thus they voted, ordered, and decreed.

Before me:

Pedro Hurtado Desquibel

An act decreeing that the Christian Sangleys, and all those who may become Christians in the future, shall practice and exercise the occupations that they had before they became Christians.

In the city of Manila, on the seventeenth of May, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia, Court, and Chancillería of the Philipinas Islands, having examined this information which was remitted to this royal Audiencia by Estevan de Marquina, alcalde-mayor of the village of Tondo and its presidio, concerning the advisability and importance that the Christian Sangleys living in the said village of Tondo, and in the other villages of its jurisdiction, and those who become Christians in the future, shall not abandon the occupations which they had before they became Christians, as they have been accustomed to do, but shall continue to exercise and practice them in the same manner as before—for, by thus abandoning their occupations, that people are unoccupied and slothful, and spend their time in games and vicious amusements, whence result the harm and trouble which may be considered: they declared that, in order to remedy that state of affairs, they ought to order, and they did so order, that, now and henceforth, the said Sangleys shall practice and exercise the occupations which they had practiced and exercised before they became Christians, and shall, under no consideration, abandon them—this being understood to apply to those becoming Christians in the future, and to those who have been Christians for six years previous to the present—under penalty that whoever disobeys this decree shall be sentenced to row in the galleys for four years, in a place prescribed, without pay, to which they declared that they delivered them, and they did so deliver them, immediately as condemned persons. They declared that they ordered, and they did so order,

the alcalde-mayor of Tondo and of the Parian, and other magistrates of this city and of these islands, to take great care in the execution and fulfilment of the aforesaid, under penalty of being punished. Thus they voted, ordered, and decreed. They ordered that the said magistrates, each in his own jurisdiction, should make the necessary inquiries, in order to ascertain who are the Sangleys that come under the provisions of this act, and the occupations which they follow.

Before me:

Pedro Hurtado Desquibel

An act decreeing that no alcaldes-mayor or other magistrates shall leave their jurisdictions without undergoing residencia; and that those who shall not have done so, or given a report of the convictions and fines and tenths of gold which shall have been in their charge, shall not be appointed.

In the city of Manila, on the fifteenth of June, one thousand five hundred and ninety-nine, the president and auditors of the royal Audiencia of the Philipinas Islands declared that they have been informed that it is customary to appoint as alcaldes-mayor, and to other offices of justice, some persons who have not undergone residencia for offices that they have held before, or who have not rendered account of the treasury fines and expenses of justice and war which have been in their charge; also that other persons come to this city after their terms of office have expired, without waiting to furnish the said residencias, or being present at them, as is required—whence it results that his Majesty's royal exchequer is defrauded, since it does not have the income of the said fines and tenths of gold. On the other hand, the said residencias not being taken, as is required, nor the public claims before them paid to their owners, and many other annoyances resulting, of some

importance: therefore, since it is advisable to remedy the aforesaid condition, they ordered, and they did so order, now and henceforth, the decree according to the laws of these realms, providing that no persons who have held other offices be appointed to offices of the justiciary, until they have furnished residencia of those that they previously held, which shall have been examined and passed upon; and that such persons shall have deposited, first and foremost, in his Majesty's royal treasury, all the fines and condemnations which shall have been in their charge, with tenths of gold and other things of which they must give account, together with the payment of these and of any other sums which they shall have been sentenced to pay in their residencias. In order that they may furnish these, they must be present in person, during the time prescribed by law, without leaving their jurisdictions—being warned that if any person absent himself from the jurisdiction where he holds office, without first furnishing residencia, it will not be received or heard by the prosecutor, and he will be compelled to return to furnish it in his own person. In order that the provisions of this act may be strictly enforced, they ordered that his Majesty's fiscal register the letters-patent which shall have been given to the said offices of justice; so that whatever is ordained by the said royal laws, and provided by this act, he may claim when the officials shall be appointed, and the necessary residencias be taken. Likewise there is to be delivered to the government secretary of these islands a copy of this act, so that in the patents of those who shall be appointed the fulfilment of what is herein contained shall be formally inserted as a clause, and his Majesty's said fiscal shall register the said patents. They cannot continue to exercise their offices without first making the said investigation, exactly observing the provisions of this said act; and the accountant of the royal exchequer shall likewise register it; so that whoever shall not have given an account of the said fines, tenths of gold, and other matters which shall have been in his

charge, shall not take his office. By this act, they so voted, ordered, and decreed.

Before me:

Pedro Hurtado Desquibel

In the city of Manila, on the thirteenth of July, one thousand five hundred and ninety-nine, I, Pedro Hurtado Desquibel, clerk of court for the royal Audiencia, Chancillería, and Court of these Philipinas Islands, certify and attest that, from the eighth of June, of the past year, one thousand five hundred and ninety-eight, to the present day, the date of this testimony, the president and auditors of this said royal Audiencia, have from time to time agreed upon and enacted the acts [4] which are herein copied, for good government, both officially and at the petition of his Majesty's fiscal, as in them and each one of them is declared. The copies are true and exact, and, in order that it may be evident that it is by order of the aforesaid, I gave the present copy—the witnesses to its transcription, correction, and revision being Pedro Muñoz de Herrera, Joan de Harana, and Alonso de Saavedra, citizens of this city. In witness of which, I have affixed my seal in witness of the truth.

Pedro Hurtado Desquibel

[*Endorsed*: "Filipinas, 1599." "Acts for the good government of those islands."]

The Hospital for Indians at Manila

May Jesus, our salvation, dwell in the soul of your royal Majesty. Although I am but wretched dust and ashes, I make bold to write this letter since I am, in company with two other religious of the Order of our seraphic father St. Francis, appointed to minister in this royal hospital of your royal Majesty (which is called the hospital of Sancta Ana) for the natives; in it all the natives of all these islands are cared for, and it is situated in this city of Manila.

Favors were granted to this hospital by our most Catholic king and sovereign, never sufficiently to be praised, your royal Majesty's father, Don Phelipe (whom may God keep in His heaven!); he allowed it one thousand five hundred fanegas of rice, one thousand five hundred fowls, two hundred pieces of cloth from Ylocos, five hundred ducados in money, and four toneladas of freight—this last being worth, one year with another, four hundred pesos. With this income (and we have no other), usually as many as two hundred poor persons are supported and cared for in this hospital; besides these, there are three or four religious who care for the sick and administer the sacraments, and a considerable number of other people who are in the service of the hospital. So small is the income, sacred Majesty, and so many are the poor who come for help, that often we suffer great hardships; for it is the glory of this hospital not only to belong to your Majesty, but also not to turn away any one who comes to it to be treated.

For this reason we religious who are in this hospital, as servants of the poor who are cared for in it, entreat your royal Majesty with the utmost humility that you will grant us aid so that we can treat these poor people with somewhat more convenience; and we especially entreat your royal Majesty that you will favor us by commanding that the said four toneladas of freight be continued to us, as we are accustomed to ship the goods free of customs duties or any other dues, whether in this city of Manila or in Nueva

España, or in any other parts of your Majesty's realms where your ships enter.

In this your royal Majesty will render a great service to God our Lord; and may He preserve for us your royal Majesty, with increase of His holy grace, and life and prosperity, as your loyal servants desire. At Manila, July 3, 1599. Your royal Majesty's humble servant,

Domingo de Santiago.

[*Endorsed:* "Manila; to his Majesty; Domingo de Santiago, for the hospital of Santa Ana at Manilla. Referred by his Majesty, who directs that the archbishop and governor shall send information regarding the treatment of the sick in this hospital, and whether its income is sufficient for its needs. They shall also ascertain how its funds are disbursed, and if the accounts are audited; and if anything is lacking that is absolutely necessary, let them advise what and how much should be provided, in their opinion."]

Catholic and Royal Majesty:

Antonio Valerio, steward of the royal hospital which the discalced religious of our seraphic father St. Francis founded in the city of Manila, with royal expenditures and some alms, for the cure and healing of all these natives of all these Philipinas Islands which belong to your royal Majesty. I declare that although in this hospital we, three religious and myself, serve for the love of God our Lord—by our services saving the salaries of physician, surgeon, apothecary, and other officers; and I performing the duties of steward, and the said religious treating, as they do, all the sick, besides administering the sacraments—the work of this hospital is continually increasing to such an extent, by its aiding so many sick persons, and from so many places, that although the gifts which your royal Majesty

has made to this your hospital are great, they are not sufficient to meet the necessary expenses to which the said hospital is liable. For the usual number of those who are cared for in it ranges from one hundred and sixty to two hundred poor persons; besides, most of the poor people of this city are provided from this hospital with ointments and medicines for their ailments. On account of these expenses the hospital is unable to accomplish many works which should be done—for instance, a house for the workmen and servants, the improvement of the vegetable-garden, and other things necessary for the treatment of the sick.

For these reasons I entreat and supplicate your royal Majesty, with the utmost humility, on my own part and on that of the said poor who are treated in the hospital, that you will do us the favor of adding some further charity to the grants which you have made to this hospital, for the supply of the many wants which arise every day and are increasing.

Still further, I entreat and supplicate your royal Majesty that the favor which the Catholic and royal Majesty, Don Phelipe our lord, the father of your royal Majesty (whom may God our Lord keep in His heaven!), granted to us, by commanding that we be allowed to send four toneladas of freight in his royal ships, be also continued to us free from customs duties and any other dues which pertain to your royal Majesty, whether in this city of Manila or in Nueva España, or in any other part of your realms.

Moreover, since the minister of this hospital is always a father who is a priest, who will administer the sacraments not only to the sick who come to the said hospital for treatment, but to all the people who serve therein or who reside on the stock-farm which belongs to the hospital, as well as to many other people in all this city and in the islands who usually come to this hospital for confession; and besides this, your Majesty pays from his royal treasury the archbishop, quira, and canons of the cathedral of Manila

for their labors in ministering to the Indians, in all matters for which the tithes are not sufficient—I entreat your royal Majesty to command your royal officials in this city of Manila that they recompense the said archbishop, cura, and canons in such manner that they shall not enter the stock-farm of the said hospital to collect tithes and firstfruits, since hitherto they have never entered there. And in all things I entreat the royal Majesty of your royal Majesty, etc.

Letters from the Royal Fiscal to the King

Sire:

After having given an account to your Majesty, in so far as concerns my office of fiscal of this royal Audiencia of these Philipinas Islands, of the affairs of justice, by another letter which accompanies this, it seemed best to me to give one concerning those things which touch the royal exchequer, in the following manner.

1. The royal exchequer of your Majesty in these islands is not sufficient by a large sum to supply the salaries and expenses which are here paid out and incurred. For before the royal Audiencia came here, the archbishop and bishops drew from Mexico fifteen, twenty, and some years thirty thousand pesos apiece; but, even with all this, all those who had to draw money from the royal treasury were complaining and irregularly paid. Many works were neglected, and necessary expenses were abandoned. With the new stipends and salaries of an archbishop, three bishops, four auditors, and a fiscal, which amount to twenty-four thousand pesos, we must cut down much

more. All that sum, which is the salary of powerful people, must be maintained; and therefore we must suffer wretched service, and abandon, as has been done, works and affairs in which there should be no lack. For some remedy and alleviation of this difficulty, I will point out some expedients which, in my opinion—as one who understands the present state of affairs, and has some knowledge of the country—your Majesty, if you are so pleased, can use, employing such of them as appear to be most expedient.

2. I find no basis on which people could rest their opinion that there should be in these islands the said archbishop and bishops; for the population of them all does not exceed six hundred Spanish citizens, and the one bishop who was in this city was sufficient. One is sufficient for all matters which might arise of which the prelates take cognizance, or which are necessary, for they are very few and unimportant; and those who appeal to the metropolitan go to Mexico and return in one year. The three provinces in which were lately erected the three bishoprics are so near this city that one can come from them in ten or twelve days; and in the one which has the largest settlement of Spaniards there are not more than a hundred citizens, or even so many—namely, in Zebu. The other two, which are Camarines and Cagayan, do not amount, each one, to seventy Spaniards. In each one there is a curate, who administers the sacraments to the Spaniards; and convents of friars, who administer them to the Indians who live in the said villages and their neighborhood. If the prelate who is chosen in Manila is a religious of proved integrity, and industrious, he can very well attend to these matters easily, and without overwork. Whatever has been said or may be said to your Majesty to the contrary, either arises from ignorance of the matter or from private designs, and does not aim at expediency.

[In the margin: "There is nothing to answer."]

3. By a decree of your Majesty which came in the past year, ninety-eight, the governor of these islands was commanded to discontinue a number of false musters which were being paid, and additions to the expenses of the royal treasury. Without mentioning the decree, he pronounced an edict in which he commanded the officials of the royal exchequer of your Majesty to erase them from the royal books, and pay them no more. Afterward, with different pretexts and by various means other salaries and additional expenses were incurred, which it had never been customary to pay—as, for instance, paying salaries to the captains, alferez, and other officers of war for the citizens in the villages. The governor appointed, as alferez of the captain of the town of Arevalo, Don Juan Fajardo; and designated as his salary that of the post of musketeer, for which he served in the said post of alferez. Having appealed it before the Audiencia, after examination and review there, he was commanded to pay the said salary for the time while he had served in the post of alferez. Captain Francisco Rrodriguez, as he was of the troops from Zubu, when he was alcalde-mayor there was ordered by the said governor to give a hundred pesos of additional cost. He appealed from this, and his case is pending in the Audiencia. Although these things appear of little importance, so far as events hitherto are concerned, they may be very important for the future; for, as they are said to be confirmed by the Audiencia the governors will take it as a precedent, in order to be able to make the same move with the other captains and alferezes. The expenses of the royal treasury will thus suffer a large increase, and in matters which never have been done nor are now necessary. It would be well, if your Majesty were so pleased, to command that all the wages, salary, and additional expenses which have been given in the said manner be returned to the royal treasury by the person who ordered them, and that henceforward none should by any means be granted; and, if it be expedient to give any, your Majesty should be informed and a royal order for that purpose awaited.

4. In some provinces where there was one alcalde-mayor only, they have been so multiplied that now there are three, and each one with a deputy—all with salaries from the royal exchequer. To some of them the governors give, beside the salary, additional expenses, amounting to a hundred pesos; because such alcaldes-mayor are captains of the citizens, in the manner explained in the clause before this. Likewise some of the said alcaldes-mayor have Spanish alguazils, although not with salaries, and although there are royal decrees directing the governor to check this, and not allow offices to increase. It would be fitting for your Majesty to command, if you so please, that these alcaldes-mayor be reduced to the following:

In the province of Laguna, one alcalde-mayor with three hundred pesos of salary, which is the ordinary amount. On the opposite coast of Mauban, one corregidor; this is the district next to the said Laguna. He should have two hundred pesos of salary. In the province of Camarines, another alcalde-mayor, with the same salary of three hundred pesos. Another alcalde-mayor, who has recently been appointed in the said province for the island of Catanduanes, should be removed; and the said alcalde-mayor of Camarines should care for that, as he used to do. In the province of Cagayan, another alcalde-mayor, with the same salary. In that of Ylocos, another alcalde-mayor, with the same salary. In Pangasinan, another alcalde-mayor, with the said salary. In the province of Panpanga, another alcalde-mayor, with the proper salary, who should administer the jurisdiction of the district of Bulacan, which borders upon it; all this was formerly under one alcalde. The one who was lately added in Bulacan should be removed.

In the village of Tondo and the bay of this city of Manila (all of which is the suburbs and outskirts of the city), the governors keep another alcalde-mayor and lieutenant, although the whole of it is within the five leagues which, by your Majesty's grace, this city of Manila has as a jurisdiction—whose alcaldes-in-ordinary used to administer justice in all the districts of

the said alcaldía-mayor of Tondo. Now they have no more than within the walls of the city, although they are vested with authority and can make arrests outside. It would be well, if such be your Majesty's pleasure, to discontinue this alcaldía-mayor of Tondo, and let it be served by the two alcaldes-in-ordinary from this city of Manila, each one six months of the year, while the other one is present in this city. In this way, with the provincial judge, there will be quite sufficient people to administer justice in the civil cases; and in the criminal cases there are the auditors and the said alcalde-in-ordinary. In this way the salary of the alcalde-mayor of Tondo will be saved, which is now paid from the royal treasury; and this city will consider it as a singular grace and favor. So likewise will the Indians, for they will be better treated and less annoyed by this form of government; because the man who is appointed to the said alcaldía must make his living from it, and on that account must do things which are illegal—but, as he is usually a retainer of the governor, the latter shields him in the matter. This will cease with the alcaldes-in-ordinary, for they perform their duties without any selfish considerations, being always men of honor and rich, who do not seek the offices through greed for money.

In the province of Zebu there used to be only one alcalde-mayor; but about two years ago another was added in the islands of Leyte, Çamar, and Babao, which are close to Zebu. It was done to the great displeasure of the citizens of Santísimo Nombre de Jesus, which was the first city founded and settled in these islands; for the said three islands were under the jurisdiction of the alcalde-mayor resident in the said city, and with the other one they would be greatly annoyed and molested, since most of the citizens who reside in the said city are encomenderos in the said islands of Leyte, Çamar, and Babao. The alcalde-mayor of these islands takes them from the said city and enters suits against them. He takes them to the said islands as prisoners; and, as they have their property there, and must needs go there every year for the collection of tributes from their encomiendas, they cannot refuse to

go; and thus the said alcalde-mayor molests them as encomenderos, and he of Çubu, on the other hand, as citizens. As this is so, if your Majesty be pleased, the said alcalde-mayor of the said three islands might be removed, and they put under the jurisdiction of the said island of Çubu, whose alcalde-mayor could very well serve all of them.

On the river of Butuan, which is on the confines of this island of Zubu and close to the island of Mindanao, is another corregidor, with a salary of two hundred pesos. In the island of Calamianes is another corregidor, with the ordinary salary. In the district of Oton is an alcalde-mayor, with a salary of three hundred pesos. In Panay is a corregidor, with two hundred pesos salary. All the alcaldes-mayor and corregidores besides those mentioned should be done away with; and no alcalde-mayor or corregidor should have a deputy except when he is absent, and such deputy should not be given a salary.

[*In the margin*: "If there is any reform to be made, have the new governor act therein, and advise us of his action. *Idem. Idem. Idem* in this matter."]

5. One of the things in which, I have understood, the royal exchequer of your Majesty has been the most defrauded and the citizens of these islands the most aggrieved, is in the freighting and despatching of vessels which go from here to Nueva España with merchandise; for the governors have, for some years past, assigned to this duty various special friends and confidants of themselves, and even at times their own servants. The said persons lade in the ships their own property, and even that of their relatives and friends—and likewise, it is said, of any person who will pay them for it. This transaction and negotiation is of great profit for them, and a great fraud upon the royal exchequer; for all the merchandise which they lade in this way, outside of the amount allotted, goes without paying your Majesty the royal duties, and is not a part of the cloth which is assigned to the citizens in

the general allotment which is made to them. As a remedy for this, it will be well that in the future, when the allotment of the cloth is made, there should be present and superintend it, besides the governor and the other persons who are appointed, an auditor and royal official in rotation, each year, commencing with those longest here. As soon as the said allotment shall be finished, the royal official shall take a copy of it, and the persons to whom allotment is made of the said cloth shall come with their invoices, to bale it and pay the royal duty in the presence of the royal officials, who should give warrants for it. One or two of the officials should be present at the port of Cavite, which is the landing-place of ships, two leagues from this city; and there should be also present on the ship, during its lading, the freighters who are ordinarily appointed, and an auditor, so that no cloth will be allowed to be laded except it be that contained in the said allotment. That which is thus authorized shall be vouched for by warrants from the said royal officials that the duties are paid. So great has been the irregularity in this matter that, by having it checked by these strict methods, there would probably be a great gain to the royal treasury.

[*In the margin:* "Write to the new governor about the information given in this letter, and the complaints that are made; and have him remedy this evil, appointing for this persons who are of satisfactory record, and taking care that all this be done with justice—and, if it seem best to him, being sometimes present in person at the inspection."]

6. From the payment of tributes by the Indians in the usual currency there have resulted and still result many inconveniences, losses, injuries, and diminutions to the royal exchequer; for formerly they paid the eight reals of tribute each year in kind, which they gathered on their lands. A short time ago they were given the alternative of paying it in coin if they wished; and since then they have ceased to cultivate the land, make linen fabrics, raise fowls and cattle, or obtain gold from the mines and rivers, with which

articles they used to pay the said tribute. A great part of those articles usually remained with them, because they had all the year for trading and labor, by which the country was supplied with many provisions at a low cost, and clothing of various kinds of linen, with which they were dressed. The encomenderos sailed with these things to Nueva España; and it was not necessary to pay the Chinese what was brought thence in return, and have them carry it off to their country, as they now do, in exchange for the said cloths which they sell. There was a great quantity of gold which was also taken to Nueva España, and from that your Majesty was paid the tenths, which amounted each year to six or eight thousand pesos—not counting another larger quantity which was paid by the tributaries of the encomiendas which are under the royal crown. By reason of the said Indians not paying in kind, so little gold has come to be mined, that in the past year, ninety-eight, from tributes and tenths even, the amount which was collected on your Majesty's account was not a thousand pesos. From this there follows another inconvenience, in that, as the natives of these islands are inclined to laziness and to the vices attendant upon that, since they can easily pay the tribute for one year with ten reals in coin, they seek and pay it, and dress themselves with two or three pieces of cloth, which cost somewhat more. As they find these for sale by the Chinese, they themselves do not manufacture them. It would be expedient, in order that these inconveniences may cease, as well as others which may be seen to result from this matter, that henceforth these Indians should be compelled to agricultural labors and the raising of cattle, according to the conditions of the provinces where they live, and to taking gold from the mines and rivers. If this were put in force, a great deal would be gained by it; for there is a large quantity in the said mines, rivers, and placers. In this way a great part of the trade with the Chinese would cease, and the returns from what was carried to and sold in Nueva España, from both gold and cloth, would remain in this country, and would not be taken away to China, as it now is.

The said Indians would be compelled to this, in such manner that, with the practice and profit which they would get from it, in a few years they and their descendants would do it of their own will, without compulsion. The principal thing to be done in order to start the Indians to do this is, to have them pay the tribute in the kind which they raise and harvest.

[*In the margin*: "With this report write to the new governor to call together the Audiencia, the ecclesiastical prelates who are present in Manila, and the superiors of the religious orders; and have him communicate with those who could not conveniently go there, getting their opinion in writing; and have all of them confer as to what is expedient and ought to be done in this matter—taking into consideration the fact that the Indians should not be annoyed or aggrieved; and that their object should be the cultivation of crops and other things which the land bears; and that for this purpose the tribute should be paid in kind, and the valuation should be as equitable as possible. Whatever they may resolve in regard to this matter, the governor shall cause to be executed, and advise us as to what he does, seeing to it that the Indians labor and are not idle."]

7. With the reestablishment of the said royal Audiencia, the expenses of the royal treasury have been increased by more than sixteen thousand five hundred pesos in the salaries of four auditors and one fiscal. Wherefore it would be well, were your Majesty so pleased, to command that the encomiendas or repartimientos of Indians which may in the future be vacated, up to the amount of ten thousand pesos, be placed under the royal crown, as an aid to the payment of the said salaries; and that, until these are so placed, the governors shall not be able to assign any person an encomienda or repartimiento of Indians.

[*In the margin*: "Have the governor and Audiencia send an information in this matter, and the archbishop a separate one."]

8. I have understood that the governors have been accustomed to assign encomiendas in this country in a manner to suit their own purposes. Thus, if any person possesses an encomienda which ends with his life, they add a reserve in such wise that they make the encomiendas hereditary and perpetual for their relatives, so that they may resign them, and allow the governor to assign them to whomsoever they will. On the other hand, they have an agreement with the governor that he shall assign it to the person designated by the one who resigns it. That this matter may be the better understood, I shall relate a case in which it happened. A certain captain, Juan Maldonado Borrocal, one of the conquerors of these islands, holding a repartimiento as an encomienda, went from here to the court in Spain; and there married a widow, and returned with her to these islands. He died, and conformably to the law of succession, the wife succeeded to the encomienda. The latter had a son by her former husband, and as, on her death, the said encomiendas would remain vacant, she resigned them, and the governor assigned them anew to the son, who was a boy. Neither he nor his father had served in these islands. It is easy to imagine how this pleased the old soldiers who had shed their blood on the said encomiendas to conquer them, and some were eager for that repartimiento. Accordingly it is easy to see how much remedy there was left, when the governor granted the said encomiendas contrary to what your Majesty has ordered. To correct this, it would be fitting that your Majesty order that such resignation should not be made in any manner; and that in such cases the governor cannot assign any repartimiento of Indians.

[In the margin: "Have the decrees which are despatched for the settlement of these matters duplicated, also those that direct that appointments cannot be made by resignation and renunciation of the said encomiendas; order that these be exactly observed and complied with; and let it be again ordered that encomiendas which have been resigned shall not be filled by the governor, but that he shall advise his Majesty, who may

order according to his pleasure in the matter. If he appoints to them, they shall be null and declared void; and the fiscal shall advise concerning them."]

9. In the building of churches on the encomiendas of these islands your royal treasury is subjected to excessive expenses by their being made, as they are, of wood. Your Majesty pays, for those which stand on the encomiendas belonging to your royal crown, two-thirds of the cost—one-third as encomendero, and another as king and lord. In those possessed by private citizens you pay one-third as king. As woods in this country decay very easily, they rot within five or six years, and it is necessary to build the said churches over again. Besides, it often happens that when they are finished they are soon burned down. It would be well for the said churches henceforth to be built of stone or brick; for, with little more than what it costs to build them of wood, they can be built of stone or brick and will last for many years.

[In the margin: "Let the Audiencia investigate this."]

10. The custom has been introduced of supplying wine for the celebration of the mass to the priests of all the orders—not only to those which are in the encomiendas of the royal crown, but to those in private ones. As I understand it, your Majesty is under no obligation to furnish it, except to those who minister in the four convents of Manila, and to the curates of Spaniards and Indians there, and to those who are in your Majesty's missions; and the encomenderos are obliged to furnish them with the said wine on their own encomiendas. Your Majesty will order the action in this matter which is most fitting to your royal service.

[In the margin: "Write to the governor to order that the secular clergy, and those who give instruction in private encomiendas, are not to be given wine on his Majesty's account for the celebration of mass."]

11. During the time of the last royal Audiencia, several offices of regidor were sold; but of those who bought them at that time two only have come here. Governor Gomez Perez, by virtue of a clause of his instructions, appointed, above those which had been bought, enough to amount in all to twelve regidores, from the worthiest men of this city. Some of them left in his time, and others in the time of his son, and finally in that of Governor Don Francisco Tello; others the latter removed. Thereupon he appointed to several of the said offices unsatisfactory persons, for his own interests. Some of these despise the said offices. As it is understood that these appointments were not by honorable means, it would be well if these offices were sold—not by auction, but putting upon them a moderate price, and having them given, with the supervision and approval of the Audiencia, to the men of most merit and best character. There should not be more than eight regidores; for, with the other persons who, by reason of their offices, have votes in the cabildo—namely, the three royal officials, the two wardens of the fortresses, and the alguacil-mayor of the city—there are fourteen votes, which, in a place of three hundred citizens, is a sufficient number. As those appointed understand that they must pay money for the appointments and gifts, in this way they will be given to suitable persons; and this should always be done, so long as they are appointed here, and are not free to attend to their duties as they should—because the governors have had the power to take their offices away without cause, whenever it might appear best to them. The most just way would be to sell them, and use the proceeds to aid the royal treasury in its needs.

[*In the margin:* "Have this sent to the new governor, so that the regidores who were appointed wrongly, or are not proper persons, may be removed; and let others be appointed (such as possess the qualifications and capacity), up to the number of eight in all. Let him advise us of his action."]

12. After Governor Gomez Perez Dasmariñas came, there was offered from the royal exchequer of your Majesty to the accountant Andres Cauchela (who was proprietary), and to Captain Gomez de Machuca—who, on the death of Juan Baptista Rroman, treasurer and factor, was appointed to the said offices by the said Gomez Perez—to these two was assigned the making of a report on all matters which concerned the treasury, to bring before the said governor. It is understand that there were some matters needing correction, for those same officials have written this. This also appears probable from the manner in which the person who was appointed for that office by the said governor conducted himself. He signed the account without seeing or examining the reports, or even noticing whether the charges were made, and if everything had been collected that should be, nor that which concerned the merchandise and the royal warehouses. Nor did he afterward audit any account. For this reason, and because he grew rich during the time while the said offices were held, it would be well to inspect them, and again take charge of said accounts of money, and audit those of merchandise which still remain to be examined. If your Majesty be so pleased, a warrant might be sent to make the said investigation from the time when Licentiate Geronimo Erbez del Corral took the account. It could be entrusted to one of the auditors of this royal Audiencia; but the fact must be considered that Doctor Antonio de Morga is a great friend of Captain Gomez de Machuca, who was factor and treasurer, and who would have to be investigated by him. Likewise it would be expedient to send a warrant for an accountant to audit and revise the accounts.

[In the margin: "A person shall be named by the lord president of the Audiencia to investigate these officials; and the governor shall name, with the consent of the investigator, an accountant to examine the accounts."]

13. Your Majesty commanded by a decree that the office of treasurer of the royal exchequer of these islands be abolished, as it entails no duties

whatever, and the two offices of factor and accountant are sufficient; accordingly, the duties of the treasurer were performed by the factor. On account of the death of Juan Baptista Rroman, who exercised these offices, your Majesty again appointed to the said office of treasurer Captain Hernando Davila. So far as I know, your Majesty was not made aware that a command had been issued to abolish it, since no mention of that is made in the commission of Captain Hernando Davila. The office is a superfluous one, and, as I say, has no duties; for everything which has to be done here pertains to the offices of factor and accountant. It would be well, if your Majesty is so pleased, to command that when this office of treasurer shall become vacant, in whatever manner, no other person shall be appointed to it; but that it shall be merged with that of the factor, as was formerly done. In this way the royal treasury will be relieved from paying two thousand pesos, which the said treasurer draws as a salary.

[In the margin: "Let the new governor inform us concerning this."]

Governor Gomez Perez Dasmariñas established a monopoly on cards, so that the proceeds therefrom could be used to fortify this city; and the cabildo of the city collected that, along with the rest of its property, and expended it in other matters, and not in that for which it was imposed. Accordingly, in this tax, as well as in the administration of the said monopoly, there have been interests of great importance for those who had the power in this community, as will be evident when it is inspected and investigated. For three years past nothing of importance has been done on the wall, although there were many places which needed repairing and finishing, which would be a great detriment and danger in time of war. It would likewise be well to send a warrant to make investigations and audit accounts, concerning both the said monopoly and the other properties of the city.

[*In the margin*: "Let the person who is charged with the residencia of the governor be entrusted with that of the cabildo, and see that that is taken and an account of everything. He shall give an account to the governor of all which results from this, and of the amount of this impost, so that it may be converted to the use for which it was imposed."]

15. By an ordinance of this royal Audiencia the president and two auditors thereof are commanded to audit, at the beginning of each year, the accounts of the royal officials, and to finish them in two months, with the additional amount, for expenses, of twenty-five thousand maravedis for each auditor. In the time of the former royal Audiencia this was done; and they named an accountant each year, to whom they gave fifty thousand maravedis beside. Since that time, what has happened is as follows: Governor Gomez Perez Dasmariñas, at the beginning of the year ninety-five, without an order from your Majesty, created an accountant-in-ordinary of accounts for this purpose, with a salary of five hundred pesos, and a secretary with two hundred and fifty pesos, for which they were to secure the approval of your Majesty—which they have not done in the past. The accounts were audited in two months—or at the most, in three. Accordingly it is not necessary, for so small an account as we have here, to incur a thousand pesos of expense each year to audit them. It could be done for a hundred thousand maravedis, as was formerly done. Your Majesty will command in this as is most fitting for the royal service.

[*In the margin*: "Send this to the new governor, that he may examine into and adjust the matter as appears best to him, and advise us of what action he takes."]

16 The office of secretary of the cabildo has been given by the governors to whom they thought best. In this way they learn what goes on in the cabildo, which is a great evil. It would be better to have this sold; and

accordingly, he who held it—being a proprietor, and one who could not be removed during good behavior—would be free to remain silent.

[In the margin: "Let the governor and Audiencia investigate this."]

17. The office of secretary of the registries has been held by the secretaries of the governors. As a result of this, claims for justice have been relinquished in several grievances of great importance, to the loss both of the Chinese who come to trade here, and of the citizens of the city. It would be well to sell this office, under condition that he who buys it cannot be the secretary or in any wise the servant of the governor at that time acting. As Rroque Espino de Caceres, who is serving it at present, has begged for your Majesty's confirmation, and is a person worthy of it, as appears from the informations made in this royal Audiencia, in its opinion this favor might be extended to him, as he seeks it, with the said condition, and with that of a moderate price for the royal treasury.

[In the margin: "Tell the new governor that it is not expedient that this office should be held by a secretary or servant of the governor, or a subordinate of the auditors and ministers of the Audiencia; and that from worthy persons there he shall appoint three, in whom he believes is found the necessary ability for this office, so that his Majesty may select the one who may seem best to him. In the meantime let him appoint as best he can, and without inconvenience."]

18. In the island of Zubu there is a notary-public who bought the office from your Majesty. The cabildo there have written to me that there is need of still another, and that accordingly it might be sold. Therefore, if your Majesty pleases, you might order another notaryship sold in said island of Zubu.

[*In the margin*: "Have the governor and Audiencia send an information regarding this, and what offices have been sold in those islands, at what price, and to what persons."]

19. The city of Nueva Segovia, of the province of Cagayan, the chief city of that bishopric, has no notary-public named by your Majesty, but only one appointed by the governor, for the cases which there arise. This is a great inconvenience, as wills and other writings cannot be sworn to before him, from which results damage to the citizens. It would be well, if your Majesty were so pleased, to sell a notary-public's office there.

20. The office of depositary-general of this city of Manila, on account of the governors having appointed to it persons who were their confidants, is embarrassed with some difficulties, which would cease if the office were sold, and the royal treasury would be benefited. Your Majesty will command whatever is most expedient for your royal service.

[*In the margin*: "Let the governor and Audiencia inform us whether it is well to sell the office, and who can be found for it; and, in case that it is not well to sell it, what persons there are of character, worth, and conscience which fit them to take the commission for it. Let the royal officials also give information."]

21. About four years ago the preaching of the bulls was commenced here, and the governor appoint a treasurer for them; and it is also said that there came a decree from your Majesty directing that the account be audited every year by a royal official, and that the proceeds from them be remitted. Thus far, no royal official has taken the said accounts; and I have been informed that in sending the proceed thereof there has not been much punctuality, and that the money has been employed in uses and investments for certain private persons. For the correction of all this, it would be well that from now on an auditor should audit the said accounts of the said

treasurer, and cause the balance which is found to be placed in the royal treasury, charging it as a separate account to the royal officials; then, in the first ships which leave, it may be sent to Nueva España, invested in merchandise, whereby it will be doubled, with no more risk than if it were taken in coin. The latter is never taken because what has to be sent is invested, and turned into money in Mexico, and amounts to twice as much. The profit which can be made in this way might better be, for so good a work as that for which the alms of the said bulls is applied.

[*In the margin*: "Let a copy of this clause be given to Señor the licentiate Valtodano, to be examined in the council for the crusade."]

22. Since, even if your Majesty should be pleased to command everything done as above, it will still be necessary to bring money from Mexico for the costs, expenses, and salaries incurred in these islands; and as it is not well that, in order to cover them, it should be necessary for your Majesty to employ more property than they amount to, it has seemed best to me to seek some other methods for this—which, if they should appear expedient for the service of your Majesty, and can be carried out with no scruples of conscience, will not only render unnecessary the bringing of money from outside these islands, but even will make it possible to aid other great expenses which your Majesty has. The means which I have found are the following. Your Majesty pays a stipend to all the citizens and inhabitants of the fortified town which you hold in the island of Tidore, which is one of the Malucas Islands. In order to make these payments, aid is sent every year from Yndia by a galleon; and a quantity of cloth is brought from the royal customs treasury at Goa. With this the said citizens are all given their "quarters," as they call them. [5] This cloth is disposed of among the natives, who trade provisions for it.

It is a law of Yndia and of Maluco that no person can lade or take away cloves from those islands in any manner, unless it be for your Majesty, under penalty of loss of the ship and rigging; from which the profit resulting to the royal exchequer amounts to a third of what is laded, so great is the freight charge. Certain Portuguese came to these islands in their own ships. They take away a quantity of cloves and sell it to merchants, who in turn sell it to Chinese and other persons, who secretly ship it to Nueva España—whence it is taken to the provinces of Peru, the new realm of Granada, Tierra Firme, Guatimala, and other regions. From this there result three losses to the royal exchequer. In the first place, since the cloves are carried from the Malucas by the hand of a third party, your Majesty loses the third due on embarkation. In the second place, it is laded here for Nueva España secretly, and without paying the duties or freight charges. In the third place, when it has arrived at Nueva España, Peru, and other regions, that which is brought from the realms of Castilla loses its value.

All this expense which your Majesty suffers in providing for that fortress, and these losses, could be remedied as follows. Your Majesty has in the island of Panay, one of these Filipinas, which borders on the Malucas Islands, a number of tributary Indians who pay the larger part of their tribute in cleaned rice. After their harvest they have a great deal of rice wine, which is made in these islands, and these are the provisions necessary for the Malucas. If, conformably to what has been said, there were built on your Majesty's account two patages in the island of Panay—such as are commonly built in the said island by the encomenderos, to sell to the said Portuguese in these islands, and which cost about five hundred pesos—two thousand fanegas of cleaned rice, and six hundred jars [*tinajas*] of wine could be loaded in them. The rice would be collected for your Majesty from your royal tributes, at two reals and six maravedis. Each tinaja of wine, with cask and all, is valued at four reals, on board. Likewise two hundred pesos of fine Sangley earthenware is sufficient, which is to be used as follows.

These two patages must, while going to Maluco, of necessity take water at the port of La Caldera, and the earthenware is to be left in the Spanish camp which is there, so that with it they may buy from the natives five hundred quintals of cinnamon, taking care to dry it. In the meantime the two patages resume their voyage, having left this earthenware, and continue with the rice and wine to the fortress of the said Malucas. They will deliver to the warden there half of it, to pay those expenses or quarters to the citizens. With the other half they will buy four hundred *baxes* of cloves, making two thousand four hundred quintals, at six quintals to the bax; [6] this would be brought on your Majesty's account to these islands. Then they are obliged to go back to the said port of La Caldera, where they will take on the cinnamon bought with the earthenware; and all will be brought to the port of Cavite, to be embarked on the ships which your Majesty sends on the voyage from here to Nueva España. When they have arrived there, the royal officials at the port of Acapulco will send a third of the said cloves and cinnamon to Mexico, and two-thirds to Piru and its provinces. If sold at retail, it would be worth three hundred pesos a quintal; going to private persons, in quantity, it is usually worth two hundred pesos; consequently, in this way there would be a great profit gained. I am ready to say that it would be worth to your Majesty almost as much as all the income from the customs of all Portuguese Yndia. For this purpose your Majesty will have to keep a factor in the said island of Panay, to collect tributes, despatch the ships to La Caldera and Maluco, and receive them there; and to correspond with the royal officials in this city so that they may embark all this spice for Nueva España, and with the factor who must be at Acapulco, so that he may make the distribution.

This transaction is so profitable that several of the governors who have been in these islands have taken the trouble to send an armed galley merely to make this purchase of cinnamon at the port of La Caldera, until in the time of Doctor Santiago de Vera this trade was abandoned. Being aware of

the profit in it, Guido de Lavezaris (who governed these islands on the death of the adelantado Miguel Lopez de Legazpi) prohibited trading and trafficking in spices in these islands for any person except the officials of your Majesty, who were to receive, buy, and lade the spices for Mexico, all on the account of your royal exchequer; this was done. In consequence of this, he likewise forbade that any island or any province whatsoever where there were cloves, cinnamon, or other spices should be assigned in encomiendas. Accordingly, from that time on, the transportation of spices by private persons to Nueva España was cut off. All this with the lapse of time, and the interest of certain persons, has been neglected, so that, it is understood, a great quantity of spice is taken to Nueva España every year.

23. The other expedient which occurs to me is that the income from silk to the kingdom of Granada is registered as seventy-two millions, with the condition that no twisted or loose silk can be taken to the Yndias, which does not come from the said kingdom—although, indeed, to fill up this quantity, there is sometimes added silk from the kingdom of Murcia and Andalucia; but it passes through the custom-house of Granada, pays its duties, and is sealed there. In order that there may be no fraud in this, there is in Sevilla an administrator and a commissioned judge, who is ordinarily one of the *alcaldes* of the criminal court of the royal Audiencia. From the kingdom of China a quantity of crude silk is brought in bundles to these islands, and is taken to Nueva España, where it is woven into fabrics, and part of it is dyed. This silk is usually worth in this city a hundred and fifty pesos, although at present it sells at two hundred and forty pesos a pico.

From the transportation of this silk the royal exchequer suffers the following losses. In the first place, the silks brought from Castilla, whether woven or loose, are worth less; and accordingly the royal duties do not amount to so much. In the second place, there are not so many silks brought as would come if these were lacking. Although these pay duties, there is a

loss in this, as duties are not so great as those from Castilla pay. Crude silk is neither necessary nor useful for ordinary maintenance or support; and accordingly it seems best that your Majesty should, if such be your pleasure, obviate these losses which are occurring, and obtain satisfaction for them in some way and meet the great expenses which you have here. Your Majesty should leave liberty, as you always have done, for your vassals to trade in all merchandise with China in all kinds of goods; but should have monopolized and forbidden this trade in crude silk, commanding that no ship which comes from China shall neglect to bring five picos of crude silk, which is a very small quantity. They should be paid a reasonable price for it. In this way there would be the profit which they make in bringing it from China here, whence it is sent to Mexico; and, sold at retail, there will be the profit on it of four hundred per cent. There come usually from China to this city thirty ships and some years fifty, so that the profit on this would be large; and there would remain to the citizens of these islands a great deal of merchandise with which to trade, without their missing these goods. There would be enough to cover all the expenses, salaries, and other things which are necessary in these islands, and must be paid from the royal treasury—which, with all the money that is sent from Mexico, has not enough money to cover all the very important expenses affecting the proper guard, protection, and defense of these islands. This is all that occurs to me at present to say concerning matters relating to the royal exchequer, for its welfare. I shall continue always to watch for what is most fitting for the royal service of your Majesty, and shall attempt to further it; and such is always my desire. May God protect your Majesty many years, with a greater increase of kingdoms and seigniories, according to the needs of Christendom. In the city of Manila, which is in the island of Luzon, the principal one of the Filipinas Islands. July 21, 1599.

The licentiate *Hieronimo de Salazar y Salcedo*

Sire:

Since I have given to your Majesty an account of the affairs of the administration of justice and of the royal exchequer of these Philipinas Islands by two other letters which accompany this, I will here discuss affairs of government. The thing which seems to me most necessary to do for the good government of these islands—and especially for correcting the great excesses which are wont to be committed by some of the religious who have Indian missions in their charge; and by the alcaldes-mayor, corregidores, deputies, and other magistrates, and the encomenderos of Indian repartimientos—is that, at least every two years, an auditor of the royal Audiencia of these islands, commencing with the oldest of them, should make a visitation over all the country in his jurisdiction, as is provided by the ordinances thereof, and in the form which I wrote to your Majesty in July of the past year, ninety-eight. Although the auditors oppose this, it is to avoid the great labor, expense, and danger to health, by sea and enemies, which they must undergo and pass through. Accordingly, if your Majesty pleases, a reasonable allowance for their expenses might be made, and soldiers given them to accompany and guard them, with good vessels, at the expense of the royal exchequer, if the cost should not be covered by the penalties inflicted during the visitation. Your Majesty will be pleased to order in this what is most expedient.

[*In the margin:* "Write to the governor to have this visitation carried out in the pacified country, and where there is no obstacle, conformably to the ordinance. And have him see to it that they do not send soldiers with the auditor, and that he does not take people who would be oppressive to the Indians; and let him take care that this visitation be effectual—for which purpose let him command to be built, and furnished to the auditor, a vessel of suitable size, to go outside of the island of Luzon, at his Majesty's expense. As to the reimbursement which ought to be made beside what is

conceded to them by the ordinance, and the decrees of his Majesty, let him inform us of his opinion." "Have sent a duplicate of the last decree despatched in regard to this visitation."]

The main object of your Majesty's royal decrees, provisions, and orders given to your governors of these islands, is the prosperity of the citizens thereof; for in that way they become established and settled and the islands populated. The governors have not always attended to this as they should, for they have regarded this, which is their principal obligation, as accessory and dependent upon their private interests in order that they may become rich with what the citizens are to gain, as is already well known. And so little is the profit, and so poor the subsistence, of those who live here, and so much is their living interfered with by the governors, and the relatives and dependents whom they bring with them, that, as a result, so little is left for the citizens that they cannot in twenty years make the profit and gain which is acquired in a few years by some of those whom the said governors bring with them. This has often been experienced. For the remedy of this I suggest the following things.

The lading of the ships which go to Nueva España, the allotment of space in them, and other matters touching this, should be conducted according to, and after the manner directed by, clause five of the letter which accompanies this, regarding matters which concern the royal exchequer. No cloth should be laded except that which goes according to the allotment; nor should the governor have any authority therein, because, as the superintendents of lading are persons appointed by him and in his confidence, with letters and orders which he gives, much other cloth is laded after the allotment is made. For the most part this belongs to persons who are underlings, kinsmen, or creatures of the governor, and must necessarily occupy space belonging to the cloth of the citizen, who is thus

obliged to give up his cargo. What I describe is the ordinary way that things go.

[In the margin: "This is provided for in the same clause; and let the governor be charged particularly with the remedy of this."]

In the appointment of offices and means of gain, both of justice and of war, and other offices in the country, the said governors should observe what your Majesty has ordered in so many commands and royal decrees—namely, that "they shall be given only to citizens; and if he appoints to them his creatures or kinsmen, or those of the auditors or fiscal, or of their wives, the royal Audiencia shall check him without any reserve or hesitancy. The fiscal thereof shall oppose him, and take all possible measures to this end." This should be charged upon the consciences of all; and the government notary should be ordered to put upon all commissions of offices of justice or war, or of encomiendas of Indians, or of any other positions of profit whatsoever, which are to be received, the reason therefor, so that the said fiscal may know and understand whether there is any objection to giving the said commission. If any such objection is made, let it remain with the commission, and dispose of it by appealing from the governor to the royal Audiencia, where the question will be decided on examination and review. In the meantime the said title shall not be assumed, for there are many people in these islands whom we are bound to remunerate merely for their own services and those of their fathers, because they are poor and needy, and what we have to give is so little that, even if it were divided among the citizens, many of them would have to remain unprovided for.

[In the margin: "Tell the governor that in this matter he must observe exactly what is ordered by decrees and provisions; and, according to his instructions, shall prefer the most deserving and those longest in the country."]

By order of your Majesty, the viceroy of Nueva España appoints the general, admiral, captains, masters, and other officers of the ships which are despatched from here to that province with merchandise, at the time when the said ships return thence. The persons so appointed bring so large a quantity of money unregistered in the ships as, it may be readily seen, they can do, with the power attached to their offices, since they are the servants and underlings of the said viceroy; accordingly, when they have arrived here they invest their money, and lade the goods in the said ships, although they are prohibited from doing so. This is another opportunity, almost equal to that of the governors who come. That this may be used by the said citizens, it would be fitting that the said general, admiral, masters, and officers of the ships be appointed here, in the sessions of the Audiencia, by vote of the president and auditors; and that those appointed should be citizens of this city of Manila, or of some of the other towns of these islands. The salaries which hitherto have been given to the said general and admiral in Nueva España should be diminished. With the little which is given here to those who are appointed, and from the profits which they will make, there will result no little benefit; since every year, in the ships which are to go, there would be five or six men, and they would return with a profit large enough to maintain themselves, and face the enemy. The ships would be better administered and governed, by persons who understand that better, through the continual practice which they have in these islands in maritime and military affairs; for at times persons come in the said offices who have no experience whatever in the one branch or the other, which is ordinarily the cause of much loss.

[In the margin: "Place the decree with the letters of the governor and Audiencia."]

The troops of war which are raised in Nueva España to be taken to these islands would best be taken by the captains who levied them to the port of

Acapulco, one of the captains being commissioned for this, with some moderate addition for expenses. In the said port they should hand them over to the general of those ships, and the said captain should not come to these islands. In this way would be obviated the damage which is done by their bringing cargoes, and the cost of their coming and returning, which are not necessary for so few troops as come. When the troops arrive here they should be allotted among the companies of infantry of this camp.

[*In the margin*: "Conformably to this, let the viceroy be ordered to do so."]

There is great carelessness in appointing artillerymen for the said ships, for a ship which carries one piece of artillery has had six artillerymen appointed, whereas one ordinary gunner would be sufficient. If your Majesty be pleased, it would be well to command that for each piece of artillery no more than one artilleryman should be appointed; because, besides their cost to the royal exchequer, they are likewise a damage to this community, on account of the quantity of money which they bring and carry back invested to Nueva España.

[*In the margin*: "Have a letter written to the viceroy together with this report, that, if this be so, it appears excessive, and he shall correct it."]

In the ships which come from Nueva España a great deal of money is brought which is not registered. Beside not paying in Acapulco the duties of two and a half per cent, which are due to your Majesty, there results to this commonwealth a great deal of damage; for this money belongs for the most part to merchants and citizens of Piru and Mexico. Although in the sale which is made of the said ships, when they arrive at the port of Cavite, investigation is made—as I did this year, when I asked permission from the Audiencia to go to the inspection of the ships which came—and although I went there, only a very small quantity of this money was found, on account

of the great care which was taken to hide it. At times, it even belongs to the most powerful people here; consequently those who are bringing it are very bold, and it is necessary to inspect the vessels before they arrive at the said port. It would be expedient for your Majesty to command that the fiscal of the said Audiencia should always be present at the making of this inspection, so that he can take all measures which appear to him suitable for that purpose, and can make the inspection before the ships arrive at the port, wherever he may wish. All the coin or silver bullion which is seized for registry should be applied for the royal treasury, some moderate portion being given to the person who denounces the culprit, so that there may be persons to do this.

[*In the margin:* "Write to the governor that it is understood that this practice has become established, and let him try to prevent and correct it. Let the fiscal accompany the royal officials in the inspection of those ships, at the point which may appear most convenient to them, and let all which is discovered without registration, and contrary to the decree, be rigorously confiscated; and let them give to the informer such part as may seem best to the Audiencia."]

At present nothing else occurs of which your Majesty should be advised in matters concerning the government. I shall continually look out for what is most expedient for it, and will advise you of what should be done. May God protect your Majesty, according to His power, with a larger increase of kingdoms and seigniories, according to the needs of Christendom. Manila, July 21, 1599.

The licentiate *Hieronimo de Salazar y Salzedo*

[*Endorsed:* "Examined and answered."]

Letter from the King of Borneo to Governor Tello

The contents of this letter, written this year, one thousand five hundred and ninety-nine, by the king of Burney to his Highness Don Francisco Tello, knight of the Order of Santiago, governor and captain-general of the Philipinas Islands for the king our sovereign, and president of the royal Audiencia and Chancillería resident therein, and translated by a good and exact interpreter, are as follows.

Soltan Adil Lula:

Letter of friendship sent by the king of Burney to Don Francisco Tello, captain-general of the fortress of the city of Manila, because of the information I have received that he governs that city exceedingly well, not only for the service of God, but furnishing justice to the regions about, with protection to the poor—whereat I have rejoiced greatly, and all the nobles and natives of my kingdom have done the same.

I received the letter that your Lordship sent me through Hernando, Don Francisco Tael, and Don Joan Solit. It gave me much happiness, for I understood thoroughly the message conveyed by it to me from your Lordship. I am exceedingly rejoiced in heart and mind, for I desire fast friendship with the captain-general of Manila. Therefore, I request that, when my vassals go to Manila, you will give them kind treatment; and I shall do the same when men from Manila come to my country. This is in token of friendship, and if this is always observed, I shall be very glad, and likewise if you will have pity on the Burneys. I received two Burneys, whom the Spaniards had captured; they arrived at my court. And, inasmuch as your Lordship orders me, in your letter that I receive, to send any Sangleys that I might have here to Manila, I am now sending two who were captured by the Camutones; one is named Bonzhuan and the other Adali. I

am sending them to your Lordship as a token of lasting friendship with the Burneys. Furthermore, I am sending five taes of camphor, of Burney weight, and three large Burney mats. And that your Highness may not jest at my present, know that I am sending you a [*word uncertain in MS.*]

The above translation was made by Constantino Xuarez and Miguel Yaat, a native of Burney. They declared it to have been thoroughly and exactly made, without any change of sense. They signed the same before me, Estevan de Marquina, alcalde-mayor of Tondo and its district, for the king our sovereign. July twenty-seven of the said year, one thousand five hundred and ninety-nine. [7]

Estevan de Marquina

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Constantyno Xuarez [Miguel Yaat]

[*Endorsed*: "Original letter written by the king of Burney to Don Francisco Tello, governor of the Phelippinas, translated from the Burney tongue into Castilian."]

Letters from Francisco Tello to the King

Sire:

I have striven for your Majesty's service in this government to the extent of my ability, and I have done my duty with much care and diligence. I have

punished certain individuals, as it seemed proper to do; and hence it has resulted that I have rivals—as have all of us who have governed, and are engaged in your Majesty's service in the Indias. Although in all things I have always been favorable to Doctor Morga—who was my lieutenant-general, and who is now auditor of this royal Audiencia—I have been informed by many persons that he has spoken ill of my proceedings, and has even opened the way for others to write evil of me to your Majesty. I have never paid any attention to this, since I felt that my actions proved my innocence; nor have I ever thought it necessary to write to your Majesty about this matter, although some things seemed to affect my honor; for, having been bred in honor, I thought that in the end the truth must come to light, and could not be obscured, [*MS. worn*] the royal service could not be hindered here. [But now I feel] [8] myself compelled to speak of this, because a letter was written [to] the auditor, Tellez Almacan, in September of last year, which was a slanderous libel, without signature; and I have another which was written this year, at the port, to the auditor Don Antonio Maldonado, in the name of a friar. The handwriting of it must be Doctor Morga's, although it is disguised, [for so it was considered] by the auditor Almaçan, who is writing to your Majesty about this, as also is the fiscal of this Audiencia. I beg your Majesty to commission whomsoever your Majesty deems best, to investigate this matter, for it is not just that this evil act be passed by in silence. I assure your Majesty that I have seriously tried, and am still trying, not to be offended by their insults in this land; and that in the Audiencia, not only have I kept, and still maintain, great harmony, but I am also trying to harmonize the auditors and the fiscal; for now they are not in accord, and many [of them] have disputes and all [come to me,] and I reconcile them. In order that your Majesty may know the manner in which I have served you, and my method of procedure in this government, and in order that it may be seen that [*MS. worn*] whatever may have been reported, or shall be reported, to your Majesty in another way, I have wished to make,

before this same Doctor Morga, the report that I am sending to your Majesty, from the most honorable people of this land, in order that you may understand better my zeal for your Majesty's royal service, and the good of this realm. May our Lord preserve the Catholic person of your Majesty, as is befitting. Manila, July 14, 99.

Don Francisco Tello

[*Endorsed:* "Governor Don Francisco Tello, July 14. Let this be kept until that which is mentioned here arrives, and then let it be presented."]

Sire:

I wrote your Majesty by the ships sailing from here to Nueva España this year, about the news I had from Malaca concerning the English ships which had come to Sunda, and had made a settlement and fortification there; and that I was awaiting a more detailed account of the enemy's designs from the commandant of Malaca, and everything else relating to the subject. [9] Advices have now come from the commandant of Maluco that two English ships had arrived there, and had formed an alliance with Terrenate, as your Majesty will be informed in greater detail by the copies of his letters which I enclose, and also those of the king of Tidore and the people of that stronghold, requesting in strong terms that I send them aid. [10]

I then called a council of war to consider the disposition of the affairs of these islands, and what was to be done therefor—since affairs are in the condition which I have described to your Majesty in other letters. As there are but few and badly-armed troops, and so few supplies with which we could send help, it was unanimously agreed to give no aid whatever to Maluco, but to undertake the no small task of preserving this land.

Notwithstanding, I am thinking of sending reinforcements of supplies, powder, ammunition, and other military supplies such as can be given, also a dozen musketeers. As that land belongs to your Majesty, it is but just that your Majesty's servants and vassals should make all possible efforts to aid it. I assure your Majesty that if you are not pleased to provide this realm with a goodly number of well-armed troops and with money from Nueva España, according to the demands made by him who shall be governor—who, since this fort is placed in his keeping, can well be entrusted with twenty thousand pesos more, in control of the officials of your Majesty's royal exchequer—we may find ourselves hard pressed. I fulfil my duty by giving account thereof to your Majesty, and by defending this land as occasion may arise therefor. In whatever I find to do, here or elsewhere, I shall strive to serve your Majesty well; but if on account of my little strength, I should be somewhat remiss, I beg your Majesty to understand that I could do no more.

At the news of the English, it was urgently necessary to aid Cebu. But as we did not have it to send, and the presidio of La Caldera, [11] with its eighty Spanish soldiers (who go more than a legua by water), [12] was in danger; and since the English and Terrenatans are confederated, they may attack the fort, and if the water is cut off from them the Spaniards are lost—I have resolved, with the approval of the council of war, immediately to withdraw those troops with their artillery; and that they, after burning their fort, shall go to Cebu. When it shall appear to me that a favorable opportunity occurs, they can return to La Caldera, from which, according to orders, it is necessary that punishment be inflicted on the king of Jolo for the crimes, and the murders of Spaniards committed in this land.

I am writing to the viceroy of Nueva España the information I have received of the hostile ships; I am asking for reinforcements, [13] and that the ships which return next year must sail very cautiously, as perchance the

enemy might be awaiting them at the mouth of the channel, or outside of it. Moreover, he should send the duties and freight-charges that are paid at Acapulco from the Chinese merchandise. Your Majesty has ordered that this money be returned to us, but it has never been done. If it were sent to this royal treasury, this kingdom would not suffer its present necessity and danger.

For some time past I have exercised great care and diligence in the founding of artillery, [14] and it is being more carefully done. Four out of five medium-sized pieces, which were being founded, have resulted well, and I am very well pleased. The said founding is being continued by native Indians, and I have a quantity of metals for said work in the royal warehouses of your Majesty. May God our Lord preserve the royal Catholic person of your Majesty. Manila, August 7, 1599.

Don Francisco Tello

Letters from Felipe III to Tello

The King: To Don Francisco Tello, my governor and captain-general of the Filipinas Islands, and president of my royal Audiencia therein established. Your letter of June 23 of last year, 98, has been received. I understand by it that quiet and peace has been restored in Mindanao, and that you were examining the papers brought by the master-of-camp, to see whether any of the subdued people were to be punished or not. Keep me informed of what you shall do in that respect.

You speak also of other insurrections among the Canbales Indians in Panpanga, who were already pacified; and of your intention of taking to that city [Manila] an Indian who has been the chief of those people, in order to remove him to a location where his presence would be less dangerous. This is well; do what is needed and keep me informed of the proceedings.

We have considered what you say of your caution and forethought concerning the fears which Japan is wont to cause; also your behavior, friendship, and correspondence with certain chiefs of that country, whom you have entertained. It is well to continue these efforts, and to give us notice of what takes place.

What you say about retiring two companies is commendable; nevertheless, if you think best in the future to increase one of them, do so, and make the necessary provisions. Keep me informed of the measures that you shall take.

I am writing to the viceroy of Nueva España, that I have assisted you with what is necessary, and shall ask him to see that the people whom he sends to those islands be useful and carry weapons. He shall take care to punish the captains for their excesses. You shall do the same in what concerns you.

In regard to the needs of the soldiers, which you attribute to their not having, and the impossibility of providing them with, encomiendas for a long time; and as it concerns the temporary employments which you give them instead of the servants, and even these employments are not sufficient for all—you shall observe the instructions, laws, and ordinances which you possess. You shall see that the distribution of what is available be made among worthy men who have served in that land.

As to the remedy which you propose in the marriage of elderly women, and encomenderas of the land, you shall introduce no innovation. But you shall enable marriages freely to take their proper course. At Denia, August 16, 1599.

I The King

By order of the king our sovereign:

Juan de Ybarra

The King: To my governor and captain-general of the Philippinas Islands, and the president and auditors of my royal Audiencia thereof. I have understood that the Chinese Indians who trade in that country bring thither each year eight hundred thousand pesos' worth of merchandise, and often more than a million; and that in the ten days which they spend in that country they make more than a hundred per cent, and that in the last year, ninety-eight, it was said that they secured two hundred per cent. Since in their own country they pay increased duties, and since so great profit comes to them from the merchandise which they bring to those islands, while they pay me no more than three per cent in duties, which is the amount formerly imposed by Governor Don Gonzalo Ronquillo, it would be just that they should pay the said duties proportionately to the profits; and accordingly these might be increased by at least another three per cent. As I wish to be informed more minutely concerning what is expedient in this matter, and whether an increase of the said duties would or could result in any inconvenience whatsoever, and for what reason; and, in case that there is no objection, to what extent the duty can be increased—I command you to send a report thereof, with your opinion. Done at Denia, on the sixteenth of August, of the year one thousand five hundred and ninety-nine.

I The King

Countersigned by *Juan de Ybarra*.

Signed by the Council.

I [the King:] to the archbishop of Manila.

[*Endorsed*: "To the governor and Audiencia of the Philipinas; let them give information concerning the report that the duties can be raised on the merchandise from China."]

Documents of 1600

The pacification of Mindanao. [Unsigned and undated; 1600?]
Oliver van Noordt's attack on Luzón. Francisco Tello, and others;
October-December.

Source: These documents are obtained from MSS. in the Archivo general de Indias, Sevilla.

Translations: The first document is translated by Robert W. Haight; in the second, the commission to Morga is translated by James A. Robertson; the instructions to him and to Alcega, by Jose M. and Clara M. Asensio; the account of the battle, by Arthur B. Myrick, of Harvard University, and James A. Robertson.

The Pacification of Mindanao

Concerning the pacification of the island of Mindanao; in the year 1600

In the relation of the last year you will have learned how occurred the death, in the pacification of the island of Mindanao, of Estevan Rodriguez de Figueroa, who offered to carry out this pacification under the conditions which he stipulated with Gomez Perez Dasmariñas, formerly governor of these islands—copies of which were sent to his Majesty, and to master-of-camp Juan de Lajara, formerly of the said expedition, who succeeded to his place when the camp was abandoned, and came to Manila. Don Francisco Tello, governor and captain-general of the said Philipinas Islands, who at that time had taken possession of the government was considering how to aid and stimulate the said pacification at the expense of the heirs of Estevan Rodriguez, and with the agreement of the captains and persons who were long resident and experienced in war in the said islands. Don Juan Ronquillo was appointed commander of the galleys, to prosecute the said pacification; and in the meantime, in order to be present and continue the expedition, Captain Torivio de Miranda was sent forward to encourage and animate the troops, under orders to keep them in his charge; and in case the post should be abandoned, and a retreat made to Manila, he should detain the troops and return to Mindanao. The said Captain Toribio de Miranda having arrived at the island of La Caldera, which lies forty leagues from the river of Mindanao, there found the whole camp, which was returning from the said islands. Conformably to the orders which he had, he turned back and fortified the site where they had first been, which was on the river, four leagues from the forts of the enemy. Juan Ronquillo, having been despatched to Mindanao, had taken the camp in his charge, and begun to achieve some success. He achieved a victory in the battle which he fought with the Terrenatans, who had entered with eight hundred men to give aid to

the people of Mindanao. Before these successes, he had written a letter in disparagement of that country (a copy of which was sent to his Majesty)—on account of which, in a council of war which had been held, the general Don Juan Ronquillo had been ordered to make a last effort against the Mindanaos, doing them all possible damage. He was then to come to the island of La Caldera, and there build a fort, to be garrisoned with a hundred Spanish soldiers, with artillery, arms, and munitions; and leave them there as a check upon Terrenate and Mindanao, in charge of a good soldier, one of the captains of the camp, and with the rest return to Manila. Although Don Juan Ronquillo received this order, after having won considerable victories, he again wrote that he would not abandon that place, even if such were the order, because it would not be expedient to retire from the camp and comply with what had been ordered, when he was leaving the island of Mindanao already pacified—the chiefs, with whom he had used gentle means, that they might all be more contented, having again rendered submission to his Majesty; and likewise as the king of Jolo again rendered obedience and submission. Confiding in this, Captain Cristoval Villagra, whom Don Juan Ronquillo had appointed commander of the garrison of La Caldera, had sent thirty soldiers to the island of Jolo for supplies. They found at this time in Jolo a Mindanao chief—an uncle of the king of Mindanao, and a brother-in-law of the king of Jolo—who had been driven out of Mindanao because he was rebellious. He treacherously killed thirteen Spanish soldiers. When news of this was brought, Juan Pacho was sent to take the troops of La Caldera in charge; and, when it should seem best to him, to try to inflict punishment on the king of Jolo. Having gone out to inflict the said punishment with six hundred Spaniards, the enemy unfortunately killed the said Juan Pacho and twenty-nine Spaniards, the rest of them retiring without any success. This news having come to the governor, he sent in place of Juan Pacho Captain Toribio de Miranda, a person in whom he had entire confidence, with an order not to attempt any

punishment until he had force enough for it. After this Captain Toribio de Miranda arrived at La Caldera on the twenty-sixth of August in ninety-nine. When the garrison was given into his charge he put the defensive works in order; and with the arms which he brought, and those which he found in the fort, he armed all the troops, amounting to a hundred and fourteen soldiers. As directed by an order of the governor, he sent a chief of the Pintados to Mindanao with letters to the chiefs of the island, in which he informed them that they would be protected, favored, and upheld in justice, as vassals of his Majesty, and that with this object a garrison had been placed in La Caldera; and that to aid in maintaining it, and in covering the expenses which they had caused in the war by their disobedience, the largest possible quantity of tributes would be collected for his Majesty, and that he would send for them shortly—which had not been done earlier because the Mindanaos had been so spent and afflicted. Having arrived on the second of September at the river of Mindanao, and delivered his despatch, this chief was well received, and found the people in the settled state in which General Don Juan Ronquillo had left them. Adiamora, the main chief of Mindanao, in the name of them all, sent him back on the fifteenth of the said month, offering to give to his Majesty all the tribute which they could collect.

At this time—news from the chief captain of Malaca having reached the governor, to the effect that in the Sunda, [15] a hundred and fifty leagues from that port, there had been seen a number of English ships, whose designs were not known; and, a little later, word from the commander of the fort of Maluco that there were at Terrenate, within the port, two English ships with four hundred men and fifty pieces of artillery—a council of war was held as to what was best to do. The said council decided to withdraw the garrison from La Caldera to Zibu, so that the enemy should not take that place; and, if they should attempt to do damage to that province, they would find it in a state of defense. Accordingly an order was sent to Captain

Toribio de Miranda to withdraw with the troops, arms, artillery, and munitions, dismantling the fort; he was also told that he could return shortly to the island with more troops and arms, in order to assist in its defense. On the ninth of September Captain Toribio de Miranda arrived at Zibu, with all the troops, artillery, arms, and munitions; and at the same time General Don Juan Tello arrived at Zibu with a hundred men, who came as reënforcement from the city of Manila. Having spent six months there and commenced to build a fort of stone, the governor, as they had no more news of the English referred to, sent an order to the said Don Juan to come to the city of Manila—which he did with the hundred men, leaving the province of Zibu in a prosperous condition, with the troops which are usually kept there, and those of the garrison of La Caldera, which in all amount to two hundred and fifty Spaniards.

After all this, in June of 1600 the governor received news, by way of Malaca, that the ships which had passed to the South Sea belonged to Dutch merchants, who had come to load with spices in the Maluco Islands. Having transacted their business, they had returned to their own country by way of Yndia, without doing any damage to the islands of the west; it therefore seems that we are safe, notwithstanding the news received of those enemies.

Oliver van Noordt's Attack on Luzon

Commission to Antonio de Morga

In the city of Manila, on the thirty-first of October of the year one thousand six hundred, the president and auditors of the royal Audiencia and

Chancillería of the Philipinas Islands having assembled, the president announced to the said auditors that news had been received that, on the sixteenth of the current month and year, two foreign ships had anchored in the bay of Albay, outside the mouth of the channel of these islands; whereupon he sent by land Captains Pedro de Arceo, Cobarrubias, and Christoval de Axqueta with seventy soldiers—arquebusiers and musketeers—to the place where said ships were stationed, in order to make the defense and resistance that occasion and opportunity might offer. He also ordered several ships to be equipped and prepared at the port of Cavite, so that they could attack the said vessels. At this juncture of affairs, it was now reported that, on the twenty-fourth of the current month and year, the said ships had weighed anchor, left the said bay of Albay, entered the channel of Capul, and anchored at the island of Capul, where they still were. The enemy's intention, according to the president, is to advance upon this city. Accordingly, whatever may happen, both in order to resist him, and to prevent among these islands the possible effects to them and the vessels about to come from Castilla, it is very advisable and necessary to go, with all haste, in pursuit of said enemy, and to assure the safety of the vessels and the port of Cavite. As has been gathered from recent discussions held in the presence of the said president and auditors, with certain captains and men of experience, it is necessary to equip the deep-draught vessels quickly, and what light vessels can be prepared, so that they may attack the enemy. Now in order that the aforesaid preparations may be effected and executed with all diligence and precision by all, it is advisable for the said president and auditors—the latter acting jointly with the said president—to attend personally to this matter, on account of its importance; for thus will the despatch be effected more quickly, and with the necessary equipment. The president requested that, attentive to the aforesaid, they decide and determine the course advisable to pursue in this matter. After having considered the above proposition, the said president and auditors resolved

that Doctor Antonio de Morga, auditor of this Audiencia, should go immediately to the port of Cavite and take charge of the despatch and preparation of the vessels about to go to attack the said enemy, and to place the said port in a state of defense. For this purpose he shall request the necessary means, which shall be given him as may be provided and ordained. The licentiate Tellez Almazan, also an auditor of this Audiencia, shall remain in this city to attend to what is necessary for its defense, and for the provision of the said port of Cavite. The president declares that the commandant at either place shall also assist and aid in such work as may be necessary, and as occasion may demand, so that by this means all possible diligence, together with the requisite haste, may be observed.

Don Francisco Tello Doctor Antonio de Morga The licentiate Tellez Almazan

Before me: *Pedro Hurtado de Esquivel*

In the city of Manila, on the thirteenth of January in the year one thousand six hundred and one, I, Pedro Hurtado de Esquivel, clerk of court for the king our sovereign, in his royal Audiencia and Chancillería of these Philipinas Islands, at the request and order of Doctor Antonio de Morga, of the council of the king our sovereign, and his auditor in this said royal Audiencia, had this copy drawn from its original, which is in the book of the government of his royal Audiencia. It is a true and faithful copy, and agrees with the original thereof, witnesses to its copying, correction, and comparison, being Pedro Muñoz de Herrera, Joan de Arana, and Miguel de Talledo, citizens of Manila.

In testimony thereof, I affix my seal, in witness of the truth.

Pedro Hurtado Desquivel, clerk of court.

[*Endorsed*: "Testimony of the resolution of the Audiencia of the Filipinas in respect to the entrance of the Dutch corsair among the islands."]

Instructions given by the governor to Doctor Antonio de Morga

The course of action to be pursued by Doctor Antonio de Morga, auditor of the royal Audiencia of these Filipinas Islands, and captain-general of the fleet about to go in pursuit of the English [*sic*] enemy, is as follows.

First: Inasmuch as news has been received that the English enemy, against whom this expedition is directed, is stationed in the harbor of Marayuma, and inasmuch as he might take flight without awaiting attack, should he, by any chance, hear of our fleet, it is ordered that our fleet, with the least possible delay, shall start in pursuit of the enemy, in order to engage and fight him, until, with our Lord's help, he is killed or sunk.

Item: The engagement with the enemy must be conducted with all diligence and care, whether in firing or in boarding his ships—whichever may be possible, in accordance with the best and readiest opportunity permitted by the weather. Should the enemy take flight on sighting our fleet, he must be pursued, until the object sought is accomplished.

Item: Should the enemy have left this coast when the fleet is despatched against him, and should information be received that he has gone to any other of these islands, then the fleet shall seek and pursue him, until he is captured or sunk. Should the enemy have left these islands, he shall be pursued as far as possible, in accordance with his [Morga's] judgment, in order that the end desired may be attained.

Item: Inasmuch as the master-of-camp and the captains present at a council of war, held on the second of this current month and year, declared that, in their opinion, if no exact information as to the course and route

taken by the enemy should be received, said fleet should follow the coast of Ilocos toward the strait of Zinapura, where it is thought the enemy must pass, in order to make his voyage. Yet, notwithstanding the said council of war, the said general, in the event of receiving no information as to the enemy's course, shall pursue what course he considers most advisable, as he is the one in direct charge of the matter, and as weather and occasion allow, endeavoring to attain the end desired—namely, the pursuit and destruction of the enemy.

Item: Should the fleet encounter any enemies whatsoever, pirates or others, who may be among the islands, or who shall have left them after committing depredations among them—whether English or Japanese, Terrenatans or Mindanaos, or from any other nation—they must be attacked and punished, in order that some good result may be attained in this case also, should opportunity arise.

Item: After the capture of the enemy, as it is hoped, God our Lord willing, the fleet will return with as many of the enemy as are still living, and the captured ships.

Item: The booty found in said ships shall be divided among those who gain the victory, as is customary on similar occasions.

Item: The greatest care must be taken that the crews of the fleet are peaceable and well disciplined, in regard to which the regulations followed on similar occasions shall be applied.

Item: Good management must be exercised in regard to the supplies and ammunition carried; and they must be consumed sparingly, especially if the fleet leaves these islands.

Item: If perchance the fleet shall have engaged the enemy, or pursued him outside these islands, it must return to the islands as soon as possible after the desired end has been attained. Should the weather not permit the return voyage until the coming of the monsoon, then he [Morga] shall endeavor to preserve, provide, and equip the fleet with all needful things, at his Majesty's expense, in order that his voyage may be made with the greatest promptness and security possible. Given in the city of Manila, on the tenth of December, one thousand six hundred. [16]

Don Francisco Tello

By order of the governor and captain-general,

Gaspar de Azevo

Instructions given by Doctor Antonio de Morga to Captain Joan de Alcega

The order to be pursued by Captain Joan de Alcega, admiral of this fleet of the king our sovereign, in the course of this voyage and expedition, is as follows.

[1.] First: Inasmuch as the end for which this fleet has been prepared is for the search and pursuit of the English [*sic*] ships, which have come but lately among these islands, and, as we are informed, are near this place; and as in conformity with the instructions of the governor and captain-general of these islands, the said enemy must be pursued and followed with all care and diligence wherever found, and must be engaged, and captured or sunk: therefore it is necessary that the said almiranta [17] proceed very cautiously, and be ready with sailors, soldiers, and artillery, in order, on their part, to accomplish the said purpose, when opportunity offers.

[2.] Further, the said almiranta shall follow the flagship to leeward, unless it be rendered necessary for progress, or because of the enemy, to beat to windward. It shall have a care that the other smaller vessels of the fleet do not fall behind or deviate from the course—this to be without prejudice to their navigation and voyage, and their accompanying the flagship, which is the most important thing.

[3.] *Item:* Should opportunity be offered to engage the enemy, the almiranta shall endeavor to engage him at the same moment as the flagship or alone, in case that flagship is to leeward, or so situated that it cannot do the same so quickly; for the flagship will endeavor to come to its aid in whatever happens, with all haste and speed possible.

4. *Item:* Upon overtaking the two ships of the enemy, efforts shall be made to grapple and board their flagship, where their force is carried. This same effort shall be made by the flagship of this fleet; but in case the flagship of the enemy cannot be overtaken, and their almiranta is in such a condition that something may be done with it, it shall be attempted.

5. *Item:* Should our fleet attack the enemy and grapple, both ships—the almiranta and the flagship—shall endeavor to grapple on the same side. But if that cannot be done, care shall be taken that our artillery and arquebuses are not turned on our own ships and men. In this the greatest possible care and precaution shall be observed.

6. *Item:* Upon grappling the enemy, efforts shall be made to make him fast to our ship and to lower his sails, so that he may not become separated from us. Before boarding with troops, the nettings and deck of the enemy shall be rendered safe by clearing and raking them, in order that there may be as little risk as possible to our men.

7. In the course of this voyage in pursuit of the enemy, not a musket or arquebus shall be fired, nor a powder-box touched, until after his discovery. Neither shall any artillery be fired, for an effort must be made to find the enemy at anchor, and to see that he have no knowledge of the fleet that is pursuing him.

8. Should the almiranta be in any urgent need that requires aid, a shot shall be fired in the direction of the flagship, as a signal for help. The same will be done by the flagship in case it encounters a like necessity.

9. *Item:* Should the flagship display a flag in the shrouds, it will be a signal-call for a council of war, or other matters of importance, for which the admiral shall come to the flagship in whatever boat may be most convenient.

10. *Item:* One of the two caracoas that accompany the fleet shall keep as close to the almiranta as possible, in order to act as tender to it and supply its necessities.

11. *Item:* The greatest possible care and caution shall be taken in the use of the ammunition and supplies, in order that this voyage may be prolonged.

12. *Item:* All these vessels must endeavor to keep together. But if one of the vessels should become separated from the others, by storm or by any other necessity, no direction for the exact route to be followed is given, as the design or course of the enemy is unknown. It is observed only that all the vessels are under obligation to seek for and pursue the enemy until they shall drive him, if nothing more shall be possible, from these islands, and leave the islands safe and free from the said enemy. But the best thing for the ship to do that becomes separated, as said above, will be to find out the course taken by the enemy, and to pursue that same course until it shall rejoin the fleet.

13. *Item:* Inasmuch as the governor and captain-general of these islands has given Captain Joan Tello y Aguirre, who is aboard the said almiranta, command as captain of infantry of what men I may assign him, I do hereby assign to him the infantry troops aboard said ship for the time that said expedition shall endure and last. The said admiral shall deliver these men to said Captain Joan Tello y Aguirre, in order that, as their captain, he may have charge of them, and punish and discipline them.

All the above plan must be kept and observed now and henceforth throughout the course of this voyage. I give these instructions to the said admiral and other persons whom they may concern, in conformity with the command that I hold from the said governor and captain-general of these islands. In testimony thereof, I affixed my signature aboard the flagship, off the island of Mariveles, Wednesday, December thirteen, one thousand six hundred. [18]

Doctor Antonio de Morga

Account of the battle between Morga and Van Noordt

The license and daring of these heretical enemies of our holy religion and faith are so well known to all, that no one can relate satisfactorily the misfortunes that they have brought upon us, the destructions and deaths that they have caused among us, and the rich booty that they have carried away—which God in His righteous judgment permitted. As they behold themselves so favored by fortune, their greed is increasing continually, and they are continuing to prosecute their designs, as was the case when Francisco Draque [19] passed the Strait of Magellan and coasted along Chile and Piru, where he seized the vessel "San Joan" of Anzona, with a large consignment of silver, in the year 1579. Again in the year 1587, they passed the straits under the English general Don Tomas Canbler. [20] Within sight of the Californias they seized and sacked the vessel "Sanctana," which was sailing from these islands to Nueva España with a large cargo of silk and gold. Having easily made this seizure, they returned home, displaying innumerable banners, streamers, and pennons; and it is even affirmed that their sails were of damask. Their countrymen, upon seeing them return so rich and prosperous in so short a time, were so enthusiastic as to launch a similar undertaking. Among those who resolved to make a voyage to these parts was Oliver Daudtnord [21] a native of Nostradama [Amsterdam], one of the islands of Olanda and Xelanda [Holland and Zeeland]. Being persuaded and informed by the boatswain who sailed on the vessel that seized the ship "Sanctana"—to whom he gave title as captain and chief pilot—and being attracted to privateering, he asked

permission of Mauricio, count of Nasao, and prince of Orange, [22] in whose dominions the above islands are located, to equip four ships. He received permission, whereupon he collected as many men and as much of supplies and artillery as he deemed necessary. He placed forty of the total of two hundred and sixty men aboard two of the ships, which sailed from the port of Nostradama—while the other two sailed from the port of Rrotadama [Rotterdam]—on the eleventh or twelfth of August, in the year 1598. They laid their course toward the straits of Magellanes; and while skirting the coast of Brasil, the Portuguese there hoisted a flag of peace. This being seen by the English and Irish, twelve of them went ashore in the shallop, where the Portuguese, who numbered perhaps ten or twelve, received them with pleasant countenances, and invited them to dine. But while at dinner the Portuguese murdered all the Irishmen, among them the chief pilot, upon whom the others relied because of his familiarity with the said course and voyage. Thereupon the enemy, furious at the manner in which they had been treated, landed forty or fifty arquebusiers in order to avenge the injury that they had received. The Portuguese, in anticipation of this, intrenched themselves very strongly, so that the enemy was unable to enter their fort, but was, on the contrary, forced to retire to his boats with a loss of six men. They set sail and laid their course for the strait [of Magellan], where they arrived a year and seven months from the time when they sailed from their own country. When they arrived there they encountered many storms and head-winds, and sickness to such an extent that they were obliged to transfer the men still remaining on one ship to the other three. Then they sunk this vessel, and with the three vessels pursued their course, followed continually by storms which never left them. They sighted a vessel, which upon investigation turned out to be English. By it they were informed that another squadron of four vessels had sailed from Yngalaterra [England], and that this vessel, being unable to carry so much sail as the others, had been left to its fate, and knew naught more of the others. The Dutch ships

continued their course and sailed ahead, so that within a few days they lost sight of this vessel. They passed through the strait, where they lost four or five months. After this it happened that the general fell out with his admiral, whom he charged with negligence of his orders. The admiral was tried, the charges sustained, and traitorous misdeeds proved against him; therefore he was abandoned on a desert island near the coast of Chile. [23] Then the general appointed as admiral one of the most valiant and experienced soldiers of his band. He reached the coast of Chile, where he made a few captures, although of no especial importance. The first was a fragata, [24] which was seized near the island of Sancta Maria Domingo de Rramos in the year 1600. They were informed by this vessel that two ships had gone to Arica for the king's silver; but they were warned that there were war-vessels at Callao. This fragata, they say, was carrying three consignments of gold; but our men, upon seeing that they were lost, threw it overboard. The enemy seized the pilot, who was a Portuguese, and took the fragata along with them, together with two negroes who were aboard of her. The latter told them that the pilot had had all the gold thrown overboard, whereupon they ordered the pilot to be cast into the sea alive. They captured at Santiago on the same coast another vessel laden with tallow and Cordovan leather [morocco]. Considering that it was worth little to them, they burned it, and its crew escaped by swimming, except a few Spaniards and natives who perished in the water. The enemy seeing that they were acquiring small profit in that neighborhood, decided to go up along the coast of Nueva España, and wait at the entrance of the Californias for the annual vessels from these islands—the very purpose and object for which they had resolved upon their navigation, as is evident from the aforesaid. However they abandoned that purpose, upon being told by the negroes whom they had brought with them that Don Luis de Velazco, viceroy of Piru, had left Lima in person for the port of Callao to superintend the preparation of a large fleet, as he had been informed that pirates had passed and were along

the coast. The enemy, fearful of this, and recalling the fact that, five years previously, Arricharse de Aquines, [25] an Englishman, was defeated and captured by our men, after the greater part of his force was killed, decided to abandon their voyage to the Californias, and to head for these islands, with the intention of awaiting at the Ladrones the shipments of silver from Nueva España to Manila. With the said intent, they put to sea, but after sailing for several days, they encountered a storm, which brought them all nearly to the verge of destruction. One very dark and stormy night they lost sight of the almiranta, and never saw it again. Seeing himself without this vessel, the general chose as almiranta the fly-boat which he had remaining. This was a vessel of perhaps fifty toneladas burden, called "La Concordia," under command of a captain called Esias Delende. Then they resumed their course, with the same intention of capturing our silver, but, if unable to do more, to proceed to Maluco to barter for cloves, for which purpose they carried mirrors, knives, basins, and other small wares. They reached the Ladrones Islands—our Lord thus permitting—four or five days after our vessels had passed. They were detained there for several days, where, upon seeing their plans frustrated, they burned the fragata that they had brought from Piru. Thereupon they set sail and made the principal channel of these islands, eighty or ninety leguas from this city of Manila, where they stopped—either for iron, or, as our people here said, because of a need of provisions; or, as I believe, and as they themselves asserted, purposely. In short, instead of going by way of Capul, the right and necessary path for the voyage they were making, they entered a small bay called Albay, on the Camarines coast, where they anchored as if they were in their own harbors, and with as little fear and mistrust, as was clearly seen later on. They were hospitably received in this district, for our people supplied them with abundance of rice, with which to satisfy their need. They paid well for it, in order to relieve their necessity—they could not, had they wished, pay for more—for the purpose of assuring the natives that they had not come to

harm them. They told the natives that they were vassals of the king Don Phelipe, our sovereign, in whose service and by whose permission they were coming. As is proved by those selfsame papers, the general showed the natives some counterfeit decrees, with which they ought to be satisfied. A messenger was sent to Manila to give information of the vessels that had arrived there. The news reached here on the nineteenth of October, when Captain Xiron reported that he was in the Camarines, and that he had boarded the general's ship, which was coming well-supplied with munitions, arms, and artillery. He gave information also concerning the number of men who, in his opinion, were carried by the two vessels—about ninety men, of whom some were sick; and of his dealings with them, and that they claimed to be vassals of the king our sovereign. As soon as news of the enemy reached this city, Don Francisco Tello, governor of these islands, sent soldiers as scouts along the Camarines coast, with orders to hide all the provisions, as he was unaware of the generous supply that the enemy had. It is quite true, as the English themselves said, that they could have had as much as they wanted, by paying for it.

Captain Pedro de Arseo and Captain Christobal de Arseo Etaminchaca, both of the infantry, were also ordered to go with a command of men along the coast to form ambushes, should the enemy land. But this was all to no purpose, for the enemy, in little more than a month, came out of the bay and sailed away on one course or another—which seemed quite impossible to the people here, because they were confident that the enemy could not get out of the bay in which they lay. But it finally turned out quite to the contrary; for, as I say, they departed and laid their course to Capul, until they cast anchor in a harbor, where they are said to have cleaned the ships and sent men ashore to burn a small native village. One of the English was left behind there among the Indians, who seized and brought him to this city. They took his deposition, in which he told some of the things related above.

Toward the last of November, one of the negroes, named Salvador, who had escaped by swimming one night near Capul, arrived here. He reported that the enemy were directing their course toward Maluco, and that meanwhile they were trying to discover if there were any plunder among these islands. He said that the capture of the enemy would be greatly facilitated by attacking them with a fleet; and his advice was not bad. All this time the enemy were coming nearer, until they anchored in the port of El Frayle, near Mariveles, where they lay very much at ease and without any fear, watching for the vessels coming to this city. They captured a fragata, which they sank. They took a quantity of flour from a Japanese vessel that was on its way here. In order to quiet the Japanese, they gave them a sword, and a few trinkets of no particular value. They captured a Chinese champan, by which they were informed that the Chinese vessels would arrive within a few months, laden with silks and merchandise of great value. This news pleased the enemy so highly that they did not propose to leave until they should seize some of the Chinese. From this place they wrote a letter to Don Francisco Tello, in which they declared that the Indians there had stolen a number of fowls from them, that his Lordship should order the Indians to make them good, and that they were coming to pay their respects to him. It may be seen by this how little they feared the governor.

While these things were taking place, the governor had three ships fitted out—one from the city of Cebu, to act as flagship; another, a galizabra, still in the shipyard—which was launched a few days before the departure—called "San Bartolome," to act as almiranta; and a Portuguese patache [26] which had come from Malaca—with artillery, men, and munitions sufficient to overbalance the greater strength of the enemy. Doctor Antonio de Morga, auditor of this royal Audiencia, was appointed captain-general of this fleet, an appointment which highly displeased the old captains, because in their opinion they should have been considered. They thought it unjust that the

auditors should take part in the affair, especially because it left only one auditor in the Audiencia. In the end, however, neither these nor other reasons sufficed to prevent his appointment. The general appointed as admiral Captain Joan de Alzega, a very courageous soldier, of considerable reputation and credit, a Biscayan by birth. Many noble and wealthy people assisted in serving his Majesty in this expedition, in all about three hundred men, counting the paid soldiers, the seamen, and others. They embarked very gallantly, with the resolution and intention of attempting not only that undertaking, but another of greater weight and difficulty.

The general was impatient for the fleet to depart, and accordingly set sail on Tuesday, the twelfth of December. The flagship and almiranta left, without waiting for the Portuguese vessel, or allotting it sufficient crew or munitions, taking advantage of a tide which was discovered at the time of their departure, which was favorable to them. Accordingly they began their voyage. As they left the bay, beyond the river of Canas, three leguas from the harbor, the shallop which was carried on the stern of the almiranta went to the bottom, and drowned two seamen who were in it. They continued their voyage, and that night cast anchor at Mariveles, where they lay the rest of the night. In the morning they were informed by the alferez Albarran, who was stationed on that island as sentinel, that the enemy were anchored at Azebu, five or six leagues from there. Upon receiving this news, on that same day (St. Lucy's) our men began to spread the *pavesades*, [27] and ballasted the flagship a trifle more. They were all in the highest of spirits, and so eager were they to come to close quarters with the enemy, that every hour's delay seemed a hundred years to them. At midnight, or a little later, on St. Lucy's day, the flagship weighed anchor without notifying its almiranta. The latter, seeing the flagship make sail, followed. Without waiting for the small Portuguese vessel, they followed the course of the enemy, and at dawn the next day, which was the fourteenth of the said month, they discovered them. They investigated and ascertained beyond all

doubt that it was the enemy. Their only fear was lest the latter might escape from them. Our men thought that if but once the enemy were grappled, they could overcome ten vessels. However, in a little while they were made to see the difference between fighting in imagination and actually using their hands in real earnest. In short, as above stated, our flagship was leading the advance; and when the enemy saw it, he ordered his almiranta to weigh anchor and reconnoiter. The order was obeyed, and although the almiranta put out to sea but a little distance, it recognized them as armed vessels, which was reported to the general. The latter ordered the almiranta to keep a sharp lookout and to run close-hauled; and, if it was apparent that the two vessels were approaching to attack them, to return to his assistance. But his intent was to see if he could not in any way separate their force, because he said that, ship for ship, his force was the abler. Since our flagship was drawing nearer and outstripping the almiranta, it was overtaking the enemy, who put to sea with his flagship and waited close-hauled. He fired a shot, which carried away part of the tops and the main halyard on our flagship. Ours returned the fire, but struck the water. When they almost touched our ship, the enemy fired another shot, which destroyed a pump and killed two or three Indians. Thereupon our men crowded on all sail, and attacked with the greatest determination that was ever seen—for, as they say, they were going with all sails set. Our ship grappled with its opponent, so that our men could board easily. With the vessels in this condition, shots were fired on both sides. About twelve of our men leaped aboard the enemy's ship. The enemy retreated to the bow, where they intrenched themselves, and made loopholes, through which they fired their muskets—although, being fearful lest our almiranta should come up to grapple with them, they did but little damage, before they were compelled to strike their own colors and hoist ours in their place. At this moment our almiranta came up with the intention of boarding on the other side. Thereupon our men who were aboard the enemy's ship cried out: "Victory! victory! for the king of España! Pass on

ahead! Do not fire and kill us, for the ship has surrendered already." However, the admiral, Joan de Alezega, caused two pieces to be fired and a discharge of his musketry and arquebuses upon the enemy. It is understood that with one piece of this broadside, he did the enemy considerable injury, as was proved. As soon as the admiral understood that our men were advising him to pass on, and that the enemy's almiranta was fleeing under a press of canvas, he bore away in pursuit of it.

The enemy's flagship, seeing that our almiranta had departed, began to serve their artillery more rapidly, and their musketry from the bow, so that they inflicted considerable loss upon those of our men who boarded their ship with only shields on their arms, and their swords. In this way they would have defeated the enemy if they had attacked with fifty men in a body. Instead of taking such good counsel, they boarded in parties of threes, while the enemy continued to wound and kill them. Even this lack of system and concord did not stop here, but it is understood that the enemy pierced our flagship with a ball at the water-line. Our men, flushed with the exultation of the victory they had won at first, and confused by much shouting, did not hasten to repair the damage; for they were people who did not like to be ordered, and their general could do nothing with them, as they were all captains and men of distinction. On account of this, and as the ship was so occupied by the sailors' berths, they could not, or did not, notice the shot which our ship received. When they did perceive it by the rising of the water to the second deck, they all became frightened; and, instead of boarding the enemy's ship, with the thought that if they were losing a ship, they were gaining one, they began to devise means of escape. Accordingly some leaped into the enemy's small boat without orders from the general, whereby a few escaped, while others had recourse to our own small boat. Thus eight or ten of them contrived to escape, without waiting for anything else. A little before this, they addressed the general, Antonio de Morga, saying: "Escape, your Grace, for the ship is sinking." He answered that it

was not suitable to his reputation to leave his ship and not die with all the others, from which answer it was understood that, in case the ship went down, he was confident of his own strength and dexterity. The rest of our men—it may be seen what sort of men they were—seeing that the vessel was settling little by little, and that the enemy did not cease to serve their guns, huddled together in fright as they saw their ship filling with water—a state of affairs which would make others undertake not only the exploit of boarding the ship and mastering it, but even more difficult enterprises. In short, by the just judgments of God, which our sinful countrymen so well deserved, He disturbed their minds and deserted them, so that they would make no effort, excepting a few—of whom I shall make particular mention below, because they deserve it. There was one who, in order that he might take them with him, ordered a gold chain and other jewels brought to him. Seeing things in this condition and the danger so evident, a father of the Society, by name Father Santiago, took a crucifix in his hands, and commenced to call out to the Christian Spaniards: "Where is that courage of yours? See, this is the cause of God! Die, die like good soldiers of Jesus Christ! If you do not care to be food for fishes, consider that the lesser of the two evils which threaten us is to board that ship of the enemy, for if we are losing one ship, we are gaining another." After this exhortation, several men hastened to board their enemy's ship. Those who did not do it were prevented by two reasons: first, because they saw a fire breaking out on the enemy's ship, caused by some charges of powder which they set off purposely to terrify our men, and make them believe that they were about to blow up the ship; the second, because our pilot told them that, although the ship was so full of water up to the second deck, all hands could be saved even if the ship were lost, as the distance from there to the island of Fortuna was little more than one-half legua, and, if they would cast loose from the enemy and crowd on sail, their purpose would be just as well effected. The idea of escaping with their lives seemed very attractive to all, and

accordingly this plan was immediately put into execution. They began to cut the cables and to cast loose from the enemy. In a few moments our ship started off in such a way that they saw the dead bodies of drowned men floating about between decks. The general, upon seeing this, began to strip off his clothing, at the persuasion of a private servant of his named Josepe Denaveda, who gave him a mattress of [*MS. worn*] on which the two naked men threw themselves into the sea. Many others did likewise, though only a few reached shore. Our ship gave a lurch and foundered, carrying down with it all those whom fear of their inability to swim prevented from taking to the water—some of whom were armed—so that the majority of the men were carried down with the ship. Many who were very good swimmers were dragged to the bottom by the force of the suction. All our men who were still on the surface tried by all the means in their power to save their lives. It was the unhappy fate of some of them to reach the enemy's ship itself where those heretics hastened to receive them with pikes, and speared them with great cruelty. Among those they wounded Captain Gomez de Molina with a lance; however he continued to swim thus wounded, until he reached the shore, where he died from loss of blood, at the water's edge. In this way many died, and those who escaped took shelter on the island of Fortuna, eighteen leguas from the city, until some vessels might pass by.

At this moment the small Portuguese ship, seeing the outcome, laid its course to Malaca, because it had arrived only at that moment. Our ship had grappled with the enemy for six hours, from eight in the morning until two in the afternoon, when the former foundered.

Admiral Joan de Alcaga, who was chasing the enemy's almiranta, overtook it, and after he had fired two or three volleys of his artillery, musketry, and arquebuses, he grappled it on its stern-quarter on the starboard side. Our men immediately boarded the enemy, the said admiral being among the first. The enemy defended themselves well, serving their

artillery and thrice setting a fire purposely with some powder cartridges, but our men hastened to put out the fire with buckets of water. The enemy seeing the strength of their assailants and how unfortunately the action was turning out, because the best of them were killed, honorably surrendered. Admiral Joan de Alcaga agreed, and so they were captured with nineteen men alive. On our side only one man was killed by a gun-shot, one Joan Baptista de Mondragon, a nephew of the precentor in the cathedral at Manila. Another from the Canarias was drowned while trying to jump from one ship to the other. Some were seriously wounded; the captain and master of our almiranta, Joan Lopez de Serra, was shot through the thigh, and a certain Calderon was shot through one side of his shoulder and part of his arm. There were others wounded, but none seriously. Some booty was found on the vessel, two pipes of oil and two of wine, a number of basins, candlesticks, and brass mortars, iron in plates and bars, and some other small wares of little value. They captured twelve pieces of artillery—eight heavy and excellent pieces of cast iron, and four small ones. Among other things captured, was found a small iron coffer which was kept in the after-cabin, and in which the admiral carried the papers and commissions which the prince of Orange had given him when he appointed him captain of that ship. One was in his own tongue and the other in ours, which is the one copied at the end of this relation.

One or two charts were found, which they brought for Piru; these the holy Inquisition has in its possession. Then Admiral Joan de Alcega ordered a few sailors to be transferred to the ship surrendered by the enemy, and set them to making repairs in order to take it into Manila; for its main mast and rigging were lost, and our men in boarding left nothing standing by which they could navigate. They took it to an island near by, called Luban, While there, our men sighted a dismantled ship which seemed to be coming toward them, which they took to be the enemy's flagship, which was already ours, and that it was being sent, like their own, to be repaired. Their

expectation was not unfounded, for they had seen our men in it and heard them shouting, "Victory!" so that it seemed to them that nothing else could be possible. But in actual truth it was the enemy, who was coming, upon seeing his almiranta, to see if he could assist it. But when the enemy saw the two ships close together, and heard no noise of guns, he tacked about, and hitherto nothing has been known of his whereabouts. It is believed that his flagship was badly injured and battered, since it did not wait, although victorious by having sent our flagship to the bottom. However, we may give credit to some who said that when they were in the water, they saw the crew of the enemy casting lances at our men who were swimming, whom they could overtake.

Our almiranta, after its recent success, set sail to return to Manila, where they thought that our flagship was calmly lying at anchor. They arrived at Mariveles and there they heard of the misfortune our people had suffered. The admiral sent a messenger to the governor of this city to procure his orders, and to tell him that he was waiting there. He was ordered to follow instantly and pursue the enemy as far as Malaca, or wherever else he might hear that he was. Immediately he received another order to cruise among those islands—when, if he should not find the enemy, he was to return. This he did after sending the survivors of the enemy to this city. The admiral himself came later to the city, and the governor ordered him to be arrested, but afterward set him at liberty. I do not know what justification there was for either act. After all this, the governor, with perfect justice, notwithstanding the word that Admiral Joan de Alcega had pledged to them, ordered all the prisoners to be garroted. [28] This sentence was fulfilled and executed upon thirteen of them because the rest were boys. The latter, who are not young children, are divided among the monasteries, with I know not what end in view. Twelve [of those executed] died good Catholics and converts, and with many tears, so that the religious were obliged to administer the most holy sacrament of the eucharist to them. The

Confraternity of La Sancta Misericordia buried them with great charity. The only one who refused conversion was the English admiral [Lambert Biezman], the most stubborn fellow [29] and the most obstinate heretic I have ever seen in my life.

According to the reports received, a total of one hundred and thirty-seven men were killed or drowned.

Copy of the commission which was found in the iron box

(This is a faithful and exact copy of a letter and patent, written lengthwise on white parchment in large letters, and illuminated with letters of gold. The first line is covered with a pendent seal of red wax, the size of a consecrated wafer. This document appears to have been issued by Mauricio de Nashau, who styles himself "Prince of Orange," as commission for the captain or second in command of a certain armed fleet, and is countersigned by J. Melander; its tenor is as follows. [30])

Mauricio, Prince of Orange; Count of Nasau, Catzenelleboghen, and Bietz; Marquis of Veer and Flissinge; governor, captain-general, and admiral of the United Provinces of Flandes, etc.: To all who see or hear these presents, our affectionate greeting, etc. Whereas, in order to contract friendship with certain foreign nations and kingdoms, and for many other considerations, we have seen fit to send a goodly number of vessels, in good order and well equipped, to the coasts of Asia, Africa, and America, and the islands of Eastern Yndia, to make treaties and carry on trade with the subjects and inhabitants thereof; and because we have been informed that the Spanish and the Portuguese are hostile to the subjects of these provinces, and obstruct their navigation and commerce in those parts, contrary to all natural right of all cities and nations; we have found it necessary to entrust, to certain valiant and experienced captains, the task of executing this our intention. Being well-informed of the fidelity and

experience of Esaías de Lende, we have appointed him captain of the ship named "La Concordia," of about fifty toneladas register, with very detailed and explicit orders to go to the said islands, to resist and make war on, and to harm and injure as far as possible, all the said Spanish and Portuguese, and any others who attempt to obstruct them in their duties, and in the performance of everything which shall be further commanded by their admiral and captain-general, Olivier van Noordt. That he may execute this, his commission and charge, with greater facility and readiness, we have ordered that he shall raise as many men as he shall deem necessary, and as shall be entrusted to him by the said admiral. We strictly order these men to obey and respect the said captain, and to obey all his orders to them in the name of the said admiral. In everything else he shall do all that a good and faithful captain is bound and obliged to do—always excepting that neither he nor any of his men shall dare to do any harm or injury to the subjects of his imperial Majesty, or those of the kings of Francia, Anglatierra, Escocia, Denemarqua, Suedia, and Polonia, or of the princes of the Empire, [31] or of any other rulers who are friends of these provinces, or inclined to the true Christian religion. Therefore we request and require all the said kings and princes, and all other states, and all persons whom the said Esaías de Lende shall encounter; and we also give express orders to all admirals, vice-admirals, colonels, captains, and other military men on sea or land, and others who are under the government of these provinces and owe them obedience—to recognize him as captain of the said ship, and to allow him, with the said ship and crew, not only to go and trade wherever he shall please, but also to assist him, and extend him all favor, aid, and succor, from which we shall receive great and especial favor and satisfaction. We will render favors to them on like occasions, and our people will perform for them the services for which they are under obligation. Given at La Haya [The Hague], on the twelfth of May in the year one thousand five hundred and ninety-eight.

Maurici de Nashau

By order of his Excellency:

J. Melander

[This is followed by a certificate (dated February 6, 1601) of the accuracy of the copy, with the statement that the original had been delivered to the royal notary for copying by Doctor Antonio de Morga.]

Documents of 1601

Report to the governor, on the battle with the Dutch. Antonio de Morga, January 5.

Annual letters from the Philippine Islands. Francisco Vaez, S.J.; June 10.

Letter to Felipe III. Diego Garcia, S.J.; July 8.

Letter from the fiscal to Felipe III. Hieronimo de Salazar y Salcedo; July 16.

Complaint of the cabildo of Manila against Morga. Gonzalo Ronquillo de Vallesteros, and others; July 20.

Letter to Felipe III. Antonio de Morga; July 30.

Grant to Jesuit school in Cebú. Council of Indias; December 11.

Sources: All these documents save one are obtained from MSS. in the Archivo general de Indias, Sevilla; the second is taken from John Hay's

compilation *De rebus Iaponicis, Indicis, et Pervanis* (Antverpiæ, M. DC. v.), pp. 950-968, from the copy in the Library of Congress.

Translations: The first and fourth of these documents are translated by Norman F. Hall, of Harvard University; the second, by Henry B. Lathrop, of the University of Wisconsin; the third, fifth, and sixth, by Robert W. Haight; the seventh, by James A. Robertson.

Morga's Report to the Governor on the Battle with the Dutch

Copy of a petition of Dr. Antonio de Morga to the governor, in which he gives an account of all that happened in the expedition against the Dutch corsair, presented as soon as he returned from it.

This is a copy well and faithfully made from a petition which it seems was presented by Dr. Antonio de Morga, auditor of the royal Audiencia of these islands, to Don Francisco Tello, knight of the Order of Santiago, who is governor and captain-general of these islands. This is in connection with a suit brought by order of the said governor against Joan de Alcega, admiral of the royal fleet which went against the Dutch enemy which was sailing among these islands. The said auditor was commander-in-chief of this fleet, and the admiral was the said Joan de Alcega, who deserted the royal flagship in time of battle. It runs as follows:

I, Dr. Antonio de Morga, auditor of the royal Audiencia and Chancilleria of these Philipinas Islands, say that in the month of October just passed, in the year one thousand six hundred, there came to these Islands for the purpose of robbery one Oliver de Nor, corsair and a heretic, and a native of the states of Flandes, with two men-of-war well provided with men,

artillery, and munitions. One of the two ships was large and strong, and was the flagship; the other, smaller and of less importance and strength, was the admiral's ship. With these he had entered the South Sea through the Strait of Magallanes, and skirted the coast of Chile; and then came and anchored outside the entrance to these islands, in the bay of Alway. After making inquiries about affairs in these islands, and finding that there was no fleet, and no arrangement by which one that could molest him could be created, he passed by Capul and proceeded on his way until he reached the mouth of the bay of this city of Manila. There he made some captures and committed some robberies on vessels which entered, and he was hoping to commit greater ones on the ships which are expected this year, both from China and from Nueva España, with the money belonging to these islands. On this account your Lordship, together with the royal Audiencia, by a decree in due form dated the last day of the aforesaid month of October, commanded me to go to the port of Cavite and to place it and keep it in a state of defense; and likewise to finish some vessels which had been begun there in the dockyard, and to prepare and put in order those which could be used quickly for a fleet to go out and resist and punish the enemy. By working personally day and night, without having anything given to me for it, I put all this into operation with the greatest diligence and care, in thirty-two days. When I came to this city to give your Lordship an account of the good condition of the fleet—in order that it might be immediately arranged who was to go out in it, and the soldiers and seamen who were to embark—considering the fact that the corsair still remained near this bay, your Lordship, influenced by urgent causes and reasons, ordered and commanded me in writing, in the name of our lord the king, to set out with the volunteers of this city, who were placed at my disposal for this expedition. It was understood that I was to conduct this expedition, and, with another body composed of hired soldiers from this district, was to go out as quickly as possible in search of the enemy, and was to fight with him

until I overcame him or sent him to the bottom. There were many other conditions which are contained more fully in the letter of instructions which your Lordship gave me, signed and sealed, to which I refer. In fulfilment of this, and only for the service of God and of our lord the king (which service your Lordship commended to me so strongly), leaving my house and quiet life, leaving my wife and nine children, I obeyed your Lordship's command. At my own cost, without having anything supplied from the royal treasury either to myself or to the volunteers who were with me, and who formed the larger part of all the body, I embarked on the fleet on the twelfth day of the month of December of the aforesaid year, taking as flagship the vessel "San Diego," which is of about two hundred tons burden; and in its convoy the ship "San Bartolome" as admiral's ship, of the same burden, in command of the captain Joan de Alçega, admiral of the fleet, and other small vessels for the service of the fleet.

That same day I set sail from the port of Cavite in search of the enemy; and on the following Thursday, the fourteenth of December, I came in sight of him. Both ships of his fleet were anchored near the mouth of the bay at the point of Balagtigui, with his boats at the stern. The flagship of the enemy, from behind, was very easily seen to be a strong vessel, but the admiral's ship was not. When he discovered the two ships of the royal fleet and saw that we were keeping together, in order jointly to board and attack his flagship, he weighed anchor; and, after sending the said admiral's ship out to sea under all sail, in order to divide us, thinking that one of our ships would go after it, he with his flagship luffed toward our vessels, in order to get to windward of us, which he was not able to accomplish. On the contrary, when I discovered the number and excellence of his artillery, with which he began to cannonade me, I saw that success must consist in coming hand to hand with him as soon as possible, with both of our vessels, according to the arrangement which I had made on the day before, the thirteenth of December, when I had given orders and instructions to that

effect in writing to the said admiral. So with my flagship I boarded the corsair's flagship, and grappled with it side to side, on the port quarter of the enemy, in the expectation that my admiral would do the same on the other side, as he was perfectly able to do. At the first volley from the artillery and arquebuses I swept the deck of the enemy, unrigged his main and mizzen masts, sent his yards and shrouds into the sea, burned his sails, and won and took into my power the flag at the topmast, the standard and flag at the stern, and the others which the ship bore. Then I sent on board of him a band of men with arms and a banner of infantry, who captured the poop and the cabin and took the shallop or long-boat which it had at the stern. All the enemy retired below the harpings and coverings at the bow. Seeing from there that my admiral was already coming upon them, and that they could not defend themselves, they sent to ask protection for their lives, and to say that they would surrender; and I granted their request, in order to end the battle with the least possible loss and with the greatest safety.

At this time the admiral's ship of my fleet ought to have boarded the enemy as I had done, according to his duty, and to the order which he had from me; and, without orders from me, ought not to have passed by, and still less to have gone in pursuit of, the opposing admiral's ship which was going out to sea. These orders, for many reasons, I could not be expected to give him, especially at that time, until the flagship had completely surrendered and a guard had been placed over it and over the people on it, which would be impossible with my ship alone. Nevertheless our admiral aforesaid, for some reasons of his own which he had, passed by, and with all sail started to pursue and overtake the admiral's ship of the corsair. When the enemy on the flagship saw this, and that they were alone, and that, on account of the superiority of his ship and artillery, he might hope to defend himself, he turned a deaf ear to the terms which I sent him; and he not only did not surrender, but he put himself on the defensive, and fought with me with all the fury of his artillery and of his musketry, from both sides of the

ship, and with fire contrivances, with which he was well supplied. The battle lasted six hours, with both ships lashed side to side, but in all this time my admiral aforesaid did not leave his course, or return to succor or help me. On the contrary he began, in our sight, to fight with the admiral's ship of the enemy, which he had overtaken, and he easily captured it because it was a very small ship, with about twenty-two men, including boys and the sick; and after it had surrendered he remained there, instead of returning to help me in time of battle. The enemy killed ten or twelve Spaniards of my men, and some Indians of the service, and on his side most of his men died; so that, being still so hard pressed, he himself set fire to his ship of his own accord, at the stern, where our men were on the poop with the banner. The fire so increased there that we feared that both ships were going to be consumed.

Furthermore, my flagship, which was not a strong one, having been made especially for the merchant trade, sprang a leak at the bow with the force of the artillery which had been fired in this long combat; and it made water so fast that nothing could be done, because we had no pumps, as they had been knocked to pieces by one of the enemy's shot. On this account, by the advice and counsel of the chief pilot and of the seamen who understood the situation, I was asked to loosen myself from the enemy and to go to save my ship (or at least the artillery and men on it) at the island of Fortun, which was to leeward of us a legua and a half away, and which they said we could reach quickly. When I saw the opinion of the aforesaid men and the danger which my ship was in, both from the fire on the enemy and from the risk of sinking, I followed the advice; and, having withdrawn the men and the banner that I had on the poop-castle of the corsair's ship, which was left, as I have said, so broken and disabled, I started for the aforesaid island of Fortun to make repairs; but the water which the ship was taking in increased so that all at once the ship sank.

When the enemy saw himself alone, with the few men that he had, he hastily began to put out the fire on his ship; and with the foresail, which he had had up all the time, he took flight toward the island of Luban, where he has not appeared since that day, nor in any other of the adjacent islands. From this and from the fact that he was so broken and so stripped of men and without any long-boat, it may be inferred that he went to the bottom. Some indications of this have been seen since in the shape of yards and sails, and bodies of the enemy's men, so that we may presume that it is so.

When the flagship of the fleet on which I was went to the bottom, there was no shallop or boat to save the men, because the boats had been taken by some sailors and soldiers, who to escape the danger, had gone with them to the aforesaid island of Fortun. Consequently when the ship sank I was left in the water, and saved myself at the end of four hours by swimming with great exertion to the island of Fortun, which was a legua and a half away, against many waves and a high wind. The same thing was done by two hundred other persons, including Spaniards and slaves, but the rest drowned and perished, with what was left in the ship. Then I made haste to take all the people from that island, because it was without inhabitants and without water, and I started them on the way to this city. After that I went along the coast to get information about the enemy which had fled, and in search of the admiral's ship and of the captured vessel; but I could not find them, nor could I in the islands of that district, although I searched among them in light vessels, for they had departed thence. At last, having heard that they were near Mariveles, I came to claim them, but did not enter them because your Lordship wrote to me, at just that time, to come to this city on other business in the service of his Majesty.

Thus that expedition ended. It is true that the desired end was accomplished—namely, to destroy the aforesaid corsair so that he should not be able to do the damage which he was doing in this sea, and to conquer

him, which was done. Nevertheless it could have been accomplished fully without the loss which there was, if my orders had been followed in the aforesaid fleet, and if there had not been other transgressions and irregularities—which I should have proceeded against and executed justice upon if I had had opportunity to return to the aforesaid fleet, as I tried to do. Since on my part this is all ended, it remains for your Lordship, as captain-general of this realm, to take action in this cause—not only to execute whatever may be just in the matter, but also in order to give an account to our lord the king of what has happened. I have had this in mind in giving to your Lordship so faithful and exact an account of the case, and of the aforesaid irregularities, of which the ones that need particular attention are the following.

First. When the fleet was on the point of setting out from the port of Cavite, although it was already scantily equipped with seamen and artillerymen (which was a matter of the greatest importance), the majority of those who had been provided and supplied absented themselves and fled from the aforesaid fleet at the time of setting out, so that they could not be reached; and the fleet had to go without them, which was the cause of a great deal of suffering and loss. It can be determined who were guilty of this through the lists of allowances and apportionment which are in the possession of the factor of the royal treasury, and through the register which the accountant afterwards made of both fleets at Mariveles.

Item: Although your Lordship, at my request, had some seamen sought out in this city, and had them sent to me with the sergeant Pedro Lopez to Mariveles (where the fleet was anchored) on Wednesday, December thirteenth, and although the aforesaid men arrived on Wednesday, they refused to go on the expedition because they were men of wealth and property; and they did not go to the fleet that night, but went to the settlement on the island. There they remained until the fleet had gone in

pursuit of the enemy in the early morning, when they left the village and returned to this city.

Third. The Sangley nation of this city offered themselves, with three ships, according to their custom, to go in the service and convoy of the aforesaid fleet. They were armed and set out after it from Cavite for that purpose, but when they reached the station at Mariveles, where the fleet was anchored, they left it; and it was necessary to send to them and order that on the following day they should join the fleet and follow it without moving off, under pain of their lives. Not only did they not comply with this, but on the following day, when they saw the battle, they remained more than three leguas behind, looking at it; and although they could have been of great assistance, when they saw my flagship founder, they returned toward the bay, ringing bells and beating drums, as is their custom.

Fourth. The aforesaid captain Joan de Alcega, admiral of the fleet, did not obey the orders and instructions which on the day before the battle I gave to him in writing, signed with my name, according to which both ships, flagship and admiral's ship, were to board and fight with the enemy's flagship, because it was a strong vessel. Nevertheless, though he had seen me board, he passed by without having an order from me to do so, and still less having any order to follow and to fight with the opposing admiral's ship, and thus abandon me. If he had done as he was under obligation to do, the flagship would have been made to surrender completely without the loss of one of our men; and we could have captured for his Majesty a beautiful ship and twenty-six pieces of artillery, and many other things of price and value for all, and my flagship would not have been lost, and the people of worth who died in it would not have perished. After that, it would have been a sure and easy thing to capture the admiral's ship, which was a small boat, of no strength. Your Lordship should send promptly to the admiral to write the instructions which I gave him originally in Mariveles on the

thirteenth of December by the hand of the captain Joan Tello y Aguirre, who came for them—signed with my name, without any erasures or changes whatever—because through them the above matter will be verified, without any fraud or deceit.

Fifth. After my flagship had foundered, the enemy in his, as broken as it was, took to flight with only the foresail up, and passed within sight of the admiral's ship of my convoy, and although the admiral was aware of my loss, and that that was the enemy's ship, and made sail after her, he did not try to follow her; and so he let her go, although he could easily have overtaken her, as she bore only the foresail, and could have captured her, as she was so broken and without men. Most of us who were on the island of Fortun saw this from there; and the captive Flamenco admiral will say the same thing, as well as those who came in our admiral's ship and remained in it.

Item: Although our admiral's ship ought to have come in search of its flagship, which it saw sinking in the sea from its companion ship—or at least in aid of its men who had escaped to the island of Fortun, which was near, in order to rescue us from that island, uninhabited and without water, where we were in evident risk of our lives—yet he did not do it. On the contrary, he went away with all speed, and returned to the mainland to the station of Mareyuma; consequently we could not find him, and he could not receive orders from me, his commander, concerning what he was to do in such matters as following the aforesaid enemy (in which a great opportunity was lost), as well as in other things in the service of his Majesty which ought to have been done.

Seventh and last. Although the aforesaid admiral ought not to have allowed out of his convoy the vessel which he had captured and taken from the enemy, so that it might not be lost again on account of his having put

very few men on it, he left it; and, under pretense that he was sending it to be repaired, he ordered it to the island of Luban with other intentions—where on the same day, near night-time, there appeared the flagship of the enemy, which, if it had seen this ship, could have seized and taken it easily, because it was without defense. Then, without having been repaired, it left Luban and returned to the aforesaid admiral's ship at Mareyuma.

Of all this your Lordship is sufficiently informed through the reports which have been sent to your Lordship about the aforesaid event, and through the investigations made by the alcalde-mayor of the province of Balayan, in whose territory and under whose jurisdiction the event took place. Your Lordship will also be informed by the searchings and investigations which your Lordship ought to make concerning the aforesaid case and every particular of it, personally and very soon, before the guilty ones pervert them so that the truth may not be understood. They have been preparing for this, holding investigations before themselves in the admiral's ship, about their own affairs and business; but opportunity ought not to be given for these, nor any attention paid to them, for they are void and fraudulent, and malicious.

I ask and pray your Lordship to do and perform in this matter, since it is of such quality and importance, whatever may be proper in the service of God and of his Majesty, so that those may be punished who are guilty in a matter of such harm and loss, and that our lord the king and the gentlemen of his Council of the Indias may be informed faithfully of all that has happened and of what has been done—since, as far as I am concerned in this matter, as there no longer remains to me any authority or jurisdiction of commander in the fleet, I have done my duty. For this I have, etc., and ask it for testimony.

Doctor Antonio de Morga

In Manila, on the fifth of the month of January in the year one thousand six hundred and one, before the governor and captain-general of these islands, Don Francisco Tello, appeared the doctor Antonio de Morga, and presented this petition; and when his Lordship had seen it, he ordered it to be joined with the investigation which the alcalde-mayor of Balayan made, in order that the other proper verifications may be made according to what is provided, and that whatever is just may be done.

Tello

Before me:

Gaspar de Azebo

This copy was made, as has been said, from the aforesaid original petition, which is in the aforesaid suit of petition and mandate by the aforesaid auditor, and is exact and correct. In the city of Manila, on the twentieth of the month of November in the year one thousand six hundred and two; the witnesses being: Joan P[ablo?] Monfredo, and Gregorio del Castillo, and Josephe de Naveda Alvarado.

In testimony of truth, I have affixed my seal.

Joan Paez de Sotomayor, royal notary.

We, the notaries who sign here, certify and give our word that Joan Paez de Sotomayor, by whom this testimony is signed and sealed, is a royal notary, as he signs himself, and commissioner of the royal Audiencia of these islands; and, as such, complete faith and credit has been given and is given to all acts and writings which have passed and do pass before him, in court and out of it. And, to certify to this, we give these presents in Manila

on the twentieth of November in the year one thousand six hundred and two. I have affixed my seal, in witness of truth.

Francisco de Valencia, notary-public.

I have affixed my seal, in testimony of truth.

Jhoan Francisco Aparicio, notary-public.

Annual Letters from the Philippine Islands

From Father Francisco Vaez, [32] June 10, 1601, to Reverend Father Claudio Aquaviva, general of the Society of Jesus.

Amid all the calamities and miseries which it has pleased the Lord to inflict on these islands, the chief has been the loss of some ships which were wrecked, including among others the flagship and the ship of the second in command. They set sail from this coast during the last year, 1600, for Nueva España, being laden with a large amount of treasure and merchandise; and by them the records of this province and the letters from Japan for your Paternity were sent. But, after sailing for eight months, these ships encountered a violent contrary wind, and, having on board a great number of sailors, were gradually driven back by sickness, hunger, and the fury of the waves, which swept the men from the very decks of the ships to be drowned in the waters. The vessels struck on rocks and were wrecked, a few men only being rescued, like the servants of Job, from the immediate danger, to announce the destruction—which, being increased by one misfortune and mishap in war after another, heaped sorrow upon us. On one

of these ships, called the "San Geronimo," was Father Pedro Lopez de Parra, a professed religious of our Society—who, as we trust, after this long voyage (or rather that longer one of thirty-seven years in religion), has entered the gate of eternal life, laden with a rich treasure of good works. He taught philosophy and theology in Nueva España, having been one of the first members of the Society formerly sent thither; he trained our ministers with fruitful results. Although we have heard nothing certain with regard to the details of his death, yet, as he took great delight in the duty of hearing confessions and helping souls, it is likely that with great devotion he aided all in that extremity of danger. [33]

In another disaster we have lost another priest and a brother, if loss be the proper name to give to the death of those who have been slain for the gain of souls, and while aiding their brethren in a just war against heretic pirates. These were Hollanders and Zeelanders who were driven to the Philippine Islands in the year 1600, and came to get booty on the sea called the Northern Ocean, or "Mar del Norte" (for they had already made spoil of a Portuguese ship), and, after passing the Strait of Magellan, had, in that southerly ocean called "Mar del Sur," done likewise with a small vessel from Peru. Their leading vessels, the flagship and the almiranta, took a station six leagues from Manila, where the Spanish, Japanese, and Chinese ships had to unload their cargoes, and to which all the smacks and other small boats that left the city had to hold their course. Against these ships of the enemy there were sent out from Manila two ships provided with three hundred of the best soldiers of these islands, together with many bombards and other equipments of war. In the chief ships were Father Diego de Santiago and Brother Bartolomeo Calvo, at the request of the general, Antonio de Morga, auditor of the royal Audiencia, and of other officers of rank, who were accustomed to confess to the said father.

Now when the father had exerted himself to receive the confessions of the soldiery, and had exhorted them to fight bravely, on the fourteenth of December they came in sight of the enemy; and the flagship spread its sails and bore down so swiftly on the other flagship that the passage from one to the other was easy. In the conflict our men tore away the enemy's flags and carried them back to their own ship, shouting, "Victory!" with joyful voices. Just then our ship, having taken in a great quantity of water from all sides, was by the permission of God suddenly swallowed in the waves with all the sailors, except a few who by the help of a skiff captured from the Dutch, or by swimming, made their way to land. The general was one who threw himself into the water with two flags of the enemy's.

Then the almiranta, having encountered the enemy's almiranta, captured it, and carried it away to Manila, where punishment was inflicted on all the sailors. Among the number of those on our side who were slain or drowned, a hundred and fifty-nine in all, Father Diego was drowned. He had heard, as it appeared, the confessions of all; and as he was making the effort to throw himself clear into the sea, he was called back by the voice of a captain desiring to make his confession. While he was hearing the confession he was drowned, with the brother and the rest. The father was in the twenty-ninth year of his age, and had lived fifteen years in the Society. The brother, his companion, was of the same age, and had lived in the Society seven years; he had entered it in these regions. He was a man endowed with every virtue, being especially noteworthy for his obedience, to which he was always greatly inclined.

Of the brethren there has also died Martin Sanchez, a native of these islands, who was for a decade a member of the Society, and who left a glorious example in life and death. There remain in this vice-province thirty priests and twenty-nine brethren (of whom two are scholastics and four novices)—those nine being included whom your Paternity has sent hither

with Father Gregorio Lopez, in whom this vice-province assuredly receives a great assistance. As it is of later birth, more scantily supplied with workers, and further from Rome, it is likewise poorer; and, as the younger daughter, ought to be the dearer and more precious to your Paternity.

College of Manila

There live in this college (the leading one [34] in this vice-province) seventeen of Ours—seven priests and ten brethren. All of them, by the favor of divine Providence, have by their example and labor brought in a rich harvest from the spiritual tilling of this city. This has been added to on account of the war and the earthquake, the loss of the ships, and other calamities; and we have learned by experience that piety grows more rapidly in adverse than in prosperous fortune. The earthquake has made us hesitate to go on with the completion of the college buildings, for we are compelled first to repair what has already fallen or is on the verge of ruin. Last year we wrote that on the twenty-first of June the main part of the nave of the church had fallen; but in this year of 1601, on the sixteenth of January, the other part corresponding to it was overthrown, and the rest so shaken that it had to be leveled with the ground. We regard it as a great blessing that these buildings fell without injuring anyone, although the first of the earthquakes came while the people were in the church at mass, the other when it was least expected. The people of Manila have accordingly been warned by Ours of the daily peril of life on earth, and have begun to lift up their hearts to heaven, and to pray for its care and protection. By a happy lot it has been obtained for them by the patronage and advocacy of St. Polycarp, [35] bishop and martyr, the disciple of St. John the Evangelist;

and in his honor they have begun to celebrate an annual feast with a solemn procession.

The beginning of another pious work has been made this year with marked results. This is the practice of scourging, not as hitherto on three days in Lent, but every Friday throughout the year, in our church. There is a great concourse of people at that time to hear the fiftieth psalm, *Miserere*, by the melancholy harmony of which they are most moved to devotion and to doing penance. Not infrequently the royal auditors and the governor himself have been present, as well as other leading men.

Those in prison also have been aided by the reception of sacramental confessions and by pious exhortations; and—a thing that has edified the people not a little—the necessary food was for some days carried all the way to the prisons on our shoulders. From children, too, the food of Christian doctrine has not been withheld on Sundays; and with the children arranged in the form of a procession we went out during Lent to the military barracks, where after delivering sermons we reaped fruit not to be ashamed of.

The congregation of scholastics begun this year has made the best of progress. Every month, according to the rules, they make their confession to the priest, and partake of the divine food. On feast-days they spend the afternoons in listening to spiritual reading and in commemorating the examples of the saints. The solemn feasts of the Blessed Virgin they celebrate with the greatest fervor and joy. On one of these they go with their cloaks cast off, each with a silver ewer and basin in his hands, and carry food to the prisons, marching in the finest order and system; and with great readiness and humility they serve the unhappy men. They are believed to have taken their manner of procedure, in all respects, from the congregation at Rome. The privileges of the Sodality, also, have so much attracted

laymen that it has been necessary to divide them into two orders. As for the adult men and householders who look forward to spending Sundays and feast-days to advantage in the Sodality, the father-visitor has made a beginning, by delivering to them familiar exhortations, and narratives of pious examples taken from the Lives of the Saints; and we have every reason to hope that the undertaking will succeed to the greater glory of God, with the most noble of advantages to the city. Even now there are some who, having heard one or another sermon, have entered upon more holy and profitable ways of living than they followed before.

A beginning was also made this year in selecting some saint's name by lot (a custom introduced in some towns); and there has been a great concourse of people. One man was plunged into the sea along with many others in the naval battle with the Dutch already spoken of; but because he invoked the name of his patron, St. Nicanor, who had fallen to his lot that month, he was rescued from that danger in which the others were swallowed up; and by swimming a whole league at last got to shore, to his own great wonder.

The number of those confessing and communicating this year has surpassed that of any previous year, for upon their old devotion has been heaped up new, kindled by the torches of calamity. The quarrels of many have also been brought to an end. In Lent, moreover, their zeal for all piety flamed forth in the confession of many evils, and in doing penance for them with daily scourgings, and other exercises of devotion.

The chastity of a certain woman was assailed by some of the wicked, with entreaties and the bestowal of gifts; but by the weapons of more frequent communion and confession she repulsed the attacks of the enemy. Yet even then the enemy was not made entirely to desist. One day, after the holy communion, which she had devoutly taken in our church, she was

walking in a lonely place; and there he came up to her, and with his dagger at her bosom, he threatened her with death unless she consented to wickedness. But she answered with firmness that she preferred death to offending God. Then with blows and words of insult she vanquished the beastly desires of her adversary, barely escaping with her honor.

Another, giving up all thought of God and of his own salvation, had spent many years in dreadful sin, and especially in a disgraceful lust, which was so deeply rooted and fixed in his innermost heart that he regarded our priest, who strove to lead him away from this vile manner of life, as only less than a fool. So completely had he plunged himself into the filth of these pollutions of his soul that, like a sow in a wallow, he seemed to take pleasure in nothing else. Yet at last this obstinate man yielded to argument and persuasion, and not only gave up visiting his harlot, but tore all lust from his heart by the roots as completely as if he had had no knowledge of it; for by a general confession of the lapses of his past life he so corrected his morals that all those who knew him before were amazed at the sudden change in his life.

When the Dutch pirates of whom we have spoken were condemned to death in Manila by the judges, the governor thought it well to entrust them to several religious, as they might perhaps abjure their errors and be reconciled to Holy Church. It pleased the divine goodness to restore all, to the number of thirteen, except the admiral, who as an obstinate heretic was hanged and cast into the sea. The others with so great sorrow for their crimes subjected themselves to the obedience of the holy Roman church that it seemed good to the religious fathers to admit them to the holy communion. Of five commended to our Society I can affirm that they greatly edified all, for they made a confession of the sins of all their life and approached the holy communion with many tears, having previously made public profession of the Roman Catholic faith and abjured their heresies,

being prepared to live and die in the said faith. Two days later, with rosaries around their necks they were led forth to the place of execution in great joy of mind that they could atone for their sins by death.

Our Order has been no less occupied with the Indians in these regions than with others—partly because there is a greater number of them gathered in this town of Manila than anywhere else, partly because they feel a greater good-will toward the members of the Society than toward any others. They never lack some one of Ours to aid their confessions; and they would need old priests the year round, if there were so many who understood the language, to hear the confessions of all. They greatly affect the holy communion, and report wonderful fruit from it. Every week, on Saturday, very many hasten to perform their discipline with the others; and more would come if the city gates which separate the Indians from the Spaniards were not closed at nightfall. Indeed many do not fear to creep through the little hole in the gates in order not to neglect that salutary penance. They hasten, too, on the Sabbath to hear the sacrament of the mass of the Blessed Virgin, and in Lent to hear sermons, and that in such numbers that, although our church is of considerable size, they fill it completely. And when it was overthrown by the earthquake, they all hastened together, down to the very children, to give their help in carrying stones away. It was a delightful sight to see them swarming like ants upon the rubbish and the wall—men and women, young and old, powdered with dust and lime, carrying baskets on their shoulders and vying with each other in carrying off the ruins so as to clear the space.

The girls' sodality, recently introduced among the natives, has marvelously roused all the others. Sometimes they have fed the poor with such liberality that much was left for the prisoners and other needy persons. After the meal was over, they poured water for the hands of the poor persons, and kissed them; and then the poor persons fell on their knees and

prayed God for their benefactors. At another place these same Indian members of sodalities went to the Indian hospital and there gave their aid to the sick by making their beds and digging up the ground for them—a thing worthy of special admiration in this race, for they abhor visiting hospitals. The sodality members, although poor, offer the usual alms to the church and to those who are in need. They are given to hearing sermons and to fasting, being content for whole weeks with bread and water. They are glad to go to our churches for confession and spiritual instruction, and obtain great spiritual benefit and edification.

A certain Christian woman who was for a long time held in slavery to the infidels in the islands of Mindanao and Borneo, which are given to the faith of Mahomet, could not be torn from the true belief, or be persuaded to the worship of idols, although she visited many of their places.

An Indian man, who along with some others had made his confession that he might receive the holy communion, declares that he had kept silent as to the circumstances of some sins; and that in a vision he saw a beautiful child offering to him the holy eucharist. But when he answered that he was a great sinner, the child replied: "Thou are indeed not worthy of the communion, for in thy confession thou hast hidden such and such a circumstance." Therefore when he awoke he hurried to our church, revealed the vision to one of the fathers, and desired to repeat his confession.

Another had so accustomed himself to the scourging of his body that one day when he was required to march with a troop of soldiers, he withdrew from it in the night, in order that he might not omit this holy exercise. When the officer of the infantry, going his rounds at night, secretly perceived this, he thought the man was meditating some mischief, and silently followed him. At last he saw him enter the cemetery of a church, and after pouring forth prayers to God, beat his back severely. When the scourging was

finished, the officer approached; and when he recognized this Indian, he was even more edified. And when he asked him where he was from, he answered that he came from the city of Manila, and said that he was in the habit of confessing to Ours. The captain, marveling that a tyro in the Christian religion should take such care of his soul's health, gave him some money and told him to go back home, that he might not be perverted by the habits of the soldiery.

A priest with a brother as his companion was sent off as on a mission to some Seilan villages, which, being without parish priests, needed instruction. When they reached there the plague was raging; and the father and brother freely assisted them, not only by the administration of the sacraments of confession and the communion, but by that of food, which was prepared in our church.

On another mission performed by the rector of the college and another priest, there was a mighty fruit of their labors reaped in hearing confessions, in reconciling enemies, and in recalling the perverse to a better life. Twenty adults were initiated by the sacrament of baptism, having been imbued with the Christian faith by a certain blind man. He, though deprived of the use of his eyes, yet took such care of his catechumens that if a single one out of any number, however great, was missing, he regularly informed the father. We think the more of this from the fact that he who formerly was numbered among the catalons—that is, petty priests of idols—now since his conversion has become a teacher of Christian doctrine.

Residence of Antipolo [36]

In this residence are ordinarily maintained three priests, to care for the harvest of three thousand Christians. More than five hundred have been baptized this year. We have tested the great devotion of this people, and their rare sense of piety in frequenting the sacraments, in offering prayers, and in undergoing discipline and performing other good and edifying works; and, finally, there has been wrought in them all a great change in conduct.

The father-visitor has laid the foundation of a hospital, which is of great importance. On the day when the roof was finished the father-visitor led them in serving the poor who were gathered there, by pouring water on their hands, and then kissing their hands on his bended knees, which example was followed by all the chief men there present. And thus the custom has been established that four members of the confraternity established for this purpose bring them their food every day. The same thing is done by the women for the sick of their sex.

A beginning has been made of a school for boys, in which they may be educated from their earliest years in all virtue and good morals, according to the laws of Christ, so far as these are open to their capacity. This is a thing not merely necessary for their receiving the true doctrine, but also easy and delightful. They are all fed with rice sent by their parents, and by other contributions. Their occupations are learning to read and to form their letters, and to do such other things as are appropriate to childish years.

The custom has everywhere been introduced of singing throughout the year, in honor of the Virgin Mother of God, the anthem *Salve Regina*; and on Saturdays in Lent of performing the discipline in church. So when some Indians were bathing in the river, as is the custom in hot countries, and heard the bell give the call for *Salve* and the discipline, they put on their clothes and set out. Only one remained, and laughing at his companions

said in their language: "*Acoi ouian!*"—that is, "Bring back something for me," which is their expression of ridicule. When the others had gone away, he who was alone was attacked and killed by a crocodile—a fierce animal of these regions, which is very fond of human flesh—and that before they could render him any assistance, spiritual or temporal. This event was indeed the occasion of no little wonder, for this beast is very voracious, and swallows men whole, or piece by piece, or at least tears off hand or foot; but this man he left whole and untorn, which the Indians attribute to the virtue of the *Salve* that they sang and the discipline that they performed.

Residence of Zebu

This residence is in the province called Pintados, in which the greater part of Ours have lived and are working for the salvation of the Indians, although ordinarily not more than three priests and four brothers labor there. The situation is extremely convenient, because all the other residences carry on their work from it as a center. The ministry of the Society is exercised with great profit to the city. A boys' school has been opened, and the Latin language is taught. Last year the most reverend bishop, the officials, and other leading men, in letters sent to his Catholic Majesty, made a full statement of the great spiritual harvest with which Ours in these regions exercise their ministry, among both Spaniards and Indians; and they also earnestly entreated that he would be pleased to render that residence permanent by some annual provision, in order that they might be able to continue to enjoy the labors of our fathers.

The excellent bishop walked on foot, although a man sixty years old, throughout the whole of his diocese; [37] and, turning aside into our houses,

he there dwelt with us in such humility and familiarity that he seemed to be one of our members. After he had finished the visitation of the diocese, he was accustomed to say that he had greatly admired the modesty and piety of the women in it; for in gossip and conversation their reputation had long been very much to the contrary. He added that he had seen nothing like it in all Nueva España. Turning to our fathers, he declared that they ought to be contented with their lot, because they had undertaken the duty of disseminating the word of God in those regions; for in his opinion they were spending their lives in a part of the world which was the best of all, and the best beloved by God, and that from which they would be able to obtain the most ample fruit for their labor.

In our churches we began this year the practice of the discipline, with a great number of penitents and great devotion from the people. We also delivered sermons, with the Christian catechism, to the garrison, with extraordinary results.

A certain father added that a sick Indian had lost the faculty of speech before he had confessed, so that he could not receive an exhortation to a pious death. Accordingly, he urged him to attempt at least to pronounce the name of Jesus. The sick man obeyed, and uttered it obscurely so that he could scarcely be heard. The father continued to urge him to speak more distinctly. Finally with a moderate effort he uttered it with the greatest distinctness, made a complete confession, and on the following day left his bed well.

Father Miguel Gomez [38] was sent to a tribe at a considerable distance. At first he gave all his attention to learning the names of those who had not yet been washed in the holy waters of baptism; and there were brought to him sixty, besides some others who are known as Visaians. And to all these, after he had sufficiently demonstrated the vanity of idols and the truth of the

Christian belief, he imparted baptism, with so great a degree of consolation to them all, although they were old men, that they all marveled. But before dawn, behold some others, men and women of very great age, who had hidden by the gate of our house that they might be initiated by means of the same sacrament. Accordingly sixty, along with six children, were initiated; and in this number was included the chief of the place, a man already more than sixty years old.

Residence of Bohol

This residence is subject to the preceding one, that of Zebu. The harvest reaped in it your Paternity will learn from the letter of Father Valerio Ledesma [39] herewith enclosed. He says: "In accordance with the direction of your Reverence I visited the island of Bohol and gave my first attention to collecting the people, who were scattered everywhere, into one place. To many I suggested means of peace, and proposed efficacious remedies; and at last I succeeded in getting a thousand men, the greater part of whom had been trained in the use of arms, to leave their mountains, from which it had been impossible to draw them before, and to assemble at one spot. We also attempted to attract a number of barbarian inhabitants of the mountains, who had never looked upon any mortals before they saw our fathers, making use of all of the offices of humanity and of the allurements suitable to their nature, and we succeeded. We assigned them a settlement near the river, where they have now built a church, to which they flock on Sundays. We have baptized one hundred and twenty of their children, or even more. The adults have not only laid aside all of their fierceness, but pray for baptism with the greatest ardor, singing chants, and night and day recite the Christian faith.

"On the day sacred to St. Anne, to whom the church was dedicated, the conversion of a certain old chief, on whom they all look as a father, made a beginning for the conversion of the rest. He on bended knees begged me with the most humble prayers that I would bathe him in the sacred fount. His example greatly confirmed in their purpose those who were ready for baptism, and excited others to desire it; so that one after another, to the number of more than one hundred, came as suppliants for baptism. In Visaia I baptized eighty-nine adults at one time, and a few days later ninety-four—partly children, partly adults; and on another day all the rest of the natives. Leaving here I crossed a mountain; and the Lord obtained as spiritual gain twenty-nine children, with faces like those of angels; and with the cleansing water we sprinkled them in the name of the Holy Trinity, along with three adults whom I had taken with me that they might hear the sacrifice of the mass, and might by word and example be more accurately instructed in the Christian faith. After we had gone some distance thence, we came to a hamlet in which the natives had built a convenient church in preparation for our arrival, extending over a space of ten cubits. Here we began to spread our net, or rather the net of Christ, and caught in it all the fish that were there; for all the leading men and women, with old and young, great and small, cast themselves at the feet of Christ Jesus, recognizing Him as the true God and ardently pleading to be joined to Him in faith through the mystery of baptism. And here I began to recognize the favor which God had shown me, in calling me forth from España in these days; for this single instance was enough reason to call me forth. On the very first occasion when we baptized, we plunged a hundred persons in the sacred fount; on the second, all the rest without exception.

"When I was once explaining to a fierce and barbarous fellow the great glory of paradise and the dire pains of hell, he answered, just as if he had been possessed by a demon, that he had rather go to hell than to paradise; and, as he was one of the chiefs in that region, he carried a great many with

him to the same decision of a perverse mind. But I did not hesitate to attack the foolish fellow again and again, and I insisted upon the horror and the eternity of the torments with great vehemence of language; but he answered that he certainly ought to go, after this life, there, where his parents and the rest of his ancestors had departed, rather than anywhere else. Then I responded that he had better just try the force of fire; but he, with hands as hard as his heart, did not hesitate to snatch up some burning coals from the hearth. However, a few days later, his mind divinely changed, he ran out into the fields and meadows, and, calling all his tribesmen together, he urged them to accept the Christian sacraments, with such zeal that he had no equal among the Visaians."

In another letter sent to the father-visitor from the same place, the same Father Valerio writes that another father had written to him that in the islands Lobo and Dita he had sprinkled four hundred persons, chiefly infants, with the most holy waters. Thus within the interval of three months more than a thousand had been initiated by the same sacraments, and numberless others are left burning with the same desire. Therefore the members of our Order declare that the time is come for the salvation of that island, and eagerly wait for workers.

But your Paternity will learn of a more glorious fruit from these missions in Bohol from the letters of Father Gabriel Sanchez and Father Cristoforo Ximenez, [40] who have been assigned to that mission. [41] In letters written in the month of October, Father Gabriel writes as follows: "Our Lord has singularly blessed our attempts and labors. For after the flocks of the heathen were gathered in one place they were converted to God with such earnestness, so completely without pretense, that I can say nothing else than that God their Maker and Redeemer has desired by some peculiar favor in their calling to add them to His flock—inasmuch as within two months two thousand mortals have yielded themselves to the laws and

customs of Christ, by accepting baptism. And it is my opinion that, if some fathers are ready, the whole of them will accept the yoke of Christ. It is beyond the power of language to tell with what spiritual joy I am affected when I see men who are almost savages of the forests hastening down from the mountains to supplicate the benefits of baptism. Nay, the very children, like to angels, taught by I know not whom, now repeat the Christian faith. Indeed, a few days ago one came to me not ignorant of his catechism, whom I had not seen for ten years, and with great earnestness begged me not to refuse to baptize him. The catalons, or priests of the idols, also come, and show by so many proofs that they desire baptism with all their hearts, that it is necessary to satisfy their desires. Truly, my Father, I abound in delight, I rejoice, I exult; nor is there anything in this world set before me than to serve our Lord God with all my heart, and to desire that all should be turned to the worship of His Divine Majesty. On Sunday, in church and elsewhere, there were counted seven hundred persons. If your Reverence were to see at sunset a hundred mountain boys and girls who have been newly added to Christ marching in procession along the bank of the river, praising God in harmony and chanting all together the Christian faith, he could not help dissolving in tears of joy. A few days ago in Dita five hundred were purified with holy baptism. Thus in the whole region of Bohol we may now easily count three thousand Christians. At the beginning there were only eight hundred; now, by the accession of a new blessing of God, twice thirteen hundred have been added in baptism."

With regard to another brief mission undertaken by a priest, the same Father writes as follows: "God adorns and enriches this Tobigon [42] people with so many heavenly gifts that I do not dare depart hence, and break the thread of our most happy progress. The church is filled with people morning and evening; no one is anxious about food, although they may not have it, or may have to bring it from a distance. All their care is to be Christians, and to be initiated in baptism. In these fifteen days in which we

have instructed them in the rudiments of the Christian faith, there have been baptized more than two hundred and fifty adults. There remain forty catechumens, for the rest will be baptized after our return.

"An old man, a chief who is held in high honor, and who has hitherto been obstinate, has at last told me that he is ready to bow his head to baptism. He is all white-haired and decrepit, so that he can scarcely combine word with word. Since he is unable to come to church, I am compelled to go to his house. I will baptize him, with another man of advanced age, as early as possible. It seems to me no small evidence that they have been predestinated, that both of them have waited so long, and that they now begin to glow with so great a desire for baptism."

With regard to another mission, Father Gabriel Sanchez writes that the archdeacon of Zebu, who holds a benefice in Tana, went to the island of Bohol, twelve leagues distant, to ask our superior for a father skilled in the language, to preach the gospel to his tribe. Father Gabriel was sent, and in one month heard four hundred confessions, and offered to many the sacred body of the Lord. He also baptized eighty small children and some larger ones. The custom was there introduced of having boys march in procession in the public streets, and chant the Christian belief. The same thing has been done in the church, so greatly to the delight of the people that even the chiefs of the tribe think it small honor to them if they are not sometimes examined in the same belief.

The Indian wife of a local governor was bedridden, and one night began to suffer so intensely that she was entirely deprived of the power of speech. A father of the Society was called, who found her entirely speechless. And since she had not confessed her sins, although she tried to do so, the father began to recite the holy gospel, and to sprinkle her with holy water; and when this was done she collected her strength and, after pronouncing the

name of Jesus, said, "Have mercy upon me!" Then, in the presence of many, she desired to confess; and after less than a quarter of an hour she arose from her bed, so well and whole that the father would not listen to her, but directed her to come to church on the following day to make her confession, which she did. The same thing happened to the same father in the case of two other sick persons, whom by the recitation of the gospel and by the sprinkling of holy water he restored to sense and health, so that they were able to confess their sins. Further, on two different days having gone to two children near to death, and deprived of the power of speech, with the same antidote of the gospel and of holy water, he restored both to their former health, so that one of them went so far as to jump suddenly out of his bed and return to his boyish sports.

The same priest also went, for the sake of hearing confession, to a man who lived a league and a half from the town, whose body was so weakened and torn by sickness that he could not bear to be touched or to be turned from one side to the other. When his confession had been heard and the gospel had been recited, the father went away on Saturday of that week. On the following Sunday, when the father asked how the sick man was, he was told that he had been restored to health, and had gone out to an island in order to get by hunting what was necessary for his food. One night, while the daughters of one of the chiefs were chanting the heads of the Christian law, they looked up from a sort of portico and saw a crucifix in the sky, with a kind of crown on the head, rough but beautiful, and with the whole body and breast plainly visible. It shone like the sun, and went up to heaven until it reached the sphere of the moon; as soon as it had reached that it vanished. The sight of this vision caused the spectators as much joy as its disappearance did sorrow. The father commanded that the whole thing be recounted in church, in the presence of many, by those very persons who had seen it; although, as that tribe is very simple and modest, they showed great fear and shame in telling the story. Afterwards it was learned that the

same crucifix had appeared in another place two leagues away. This vision ought to be recognized as of greater value because it befell persons of exceeding virtue, who are persevering in their pristine habits of holy living.

Residence of Samar

Since the inhabitants of this island are scattered along an extended coastline of the sea, it was necessary to send six of the fathers for the greater part of last year to cultivate it, with the results which might be expected from such missions. We learned from the letters of Ours that the people of this island who live along the coast have begun to offer their names in order to receive the Christian religion, and that all the chiefs have already been purified by holy baptism. The duty of visiting fourteen places rests upon this residence. In this year three thousand six hundred and eighty persons, for the most part adults, have been joined to the spouse of Christ through the holy waters of baptism. In one tiny island, which had not been visited for two years, two of Ours who had been sent thither on mission were received by the whole tribe with such delight that, all the way from the beach of the sea to the church of the place, they adorned all the roads with green branches; and then they were led to the church by a procession of boys and girls singing the Christian teaching with joyous voices. And when Ours asked to have placed on the lists the names of those who desired to receive baptism, they answered that there was no need of a list, that they all wished to become Christians. The old men—who are generally more perverse than the rest, and are unwilling to learn the Christian teaching—brought forward no other ground for the baptism which they so much desired than that their old age promised them no long life. Thus all by the divine grace were made children of God, and inheritors of eternal life.

The news that these had thus been added to Christ soon moved other islands also to desire our fathers. On one of these islands, within fifteen days one hundred and sixty adults and five children forsook the dark wilderness of infidelity for the light of the gospel. Among them was one old woman one hundred and thirty years of age—blind, deaf, incapable of motion; for, wherever she was carried, there she remained like an unmoving stone. Afterward in other places there were baptized five hundred adults and two infants. When they returned on a second mission, after an interval of three months, eight hundred and thirty-seven were baptized, and from the most of these their concubines were taken away. Besides this, in other places many were plunged into the same waters, the total number reaching three thousand six hundred and eighty.

Residence of Dulac

The most ample fruit has resulted from the Christian teaching among the people of Dulac, [43] given by the seven men of our Society. The foundations of a boys' school have been laid. In it thirty are imbued with good morals and solid virtues, and give their aid to Ours in explaining the catechism to the more ignorant people and those of the lower order, and that with happy results; for whenever Ours go where these pupils have exerted their diligence, they find all the people well prepared to receive baptism.

To the old Christians and some of the more intelligent adults familiar sermons are delivered on the life of Christ and those of the saints, and on the manner of profitably receiving communion, and notable results are evident. On account of these pious exercises and the uprightness of life shown by these converts, the Christian religion is ordinarily held in such high esteem that few remain who do not desire to be initiated into it by

baptism. In Advent and at the feast of the Nativity we baptized more than seven hundred persons. We have baptized in all, from last year to the present date, two thousand and twenty, or more.

To this residence are annexed, besides other charges, the care of two great and populous districts, which give surest proof of their virtue by clean morals and by obedience. We are informed by letters that, at the feast of the Nativity, in one of them eight hundred infidels pledged themselves to the Christian faith; and that the believers do not yield to España in frequenting the sacraments of confession and communion.

There was found in one little village an old man leading the life practically of a hermit; and when our father asked him about his manner of life, he answered so wisely that the father was greatly surprised. Among other things he said that though his bodily life was passed on earth, yet his soul lived in heaven. He had no dreams at night except about the other life, and he was accustomed to see the blessed surrounded with great splendor, and one among them who excelled them all. And when the father gave him a picture of the Last Judgment to look at, in which was expressed the glory of paradise, he asked him if his dreams agreed with this picture of the blessed life. The wonderful old man answered: "Should I see nothing but this, my father? Much more! much more!" The father was amazed to find such a treasure of spiritual riches laid up in this man; for he afterward said that his meditation and the occupation of his mind would be of nothing else than of Jesus and Mary, until he had exchanged this life for the eternal one.

Two of Ours, happening to enter a wretched rustic hut, found a man more than eighty years old lying upon some reeds. He was deprived of all his senses and his whole body was so worn out that the skin scarcely adhered to his bones—a living image of death. Our fathers pitied the man, and prayed to God for him that He would not deny His compassion to this most pitiable

of men. Soon after, the dying man revived, and with great joy received baptism. As soon as he had received it he was again deprived of his senses, and, gently calling on the names of Jesus and Mary, he rendered up his soul to God.

Information was brought that there was a man lying grievously ill in the most distant part of the district. Although we were not a little deterred from the journey by the darkness of night and the great number of serpents, as well as by the necessity of crossing a river full of crocodiles; yet we did not regard all these things as of so much consequence as the value of a single soul redeemed by the blood of Jesus Christ. One of the fathers, therefore, went thither, and with a medicine healed the sick man in the name of Jesus. On the father's return, something more extraordinary happened to him. He came upon a sick woman, who, although she did not seem to be dangerously ill, yet departed to the better life as soon as she had received baptism. As two of Ours were making their way over a sandy soil at noon, under the dreadful heat of the burning sun, being without any food or drink, they laid this their affliction before the Lord God; and behold! suddenly, at this most unusual time, there was a man sitting on the ground, who showed himself most kind and courteous. He ungrudgingly offered to the hungry and thirsty men fresh fruit from his basket. When they accepted it readily, he not only took great pleasure in that, but also urged them, with a certain strange earnestness, to feed upon it as if it were their own. Strengthened with this little meal they went on, which they could hardly have done otherwise, and offered great thanks to God that He had come to their assistance in their extremity. Afterward, when they had considered all the circumstances of the fact, and of the place in which the man was found with the fruit, and had reflected that no Indian was in the habit of going on a journey alone in the heat of the day, and again that, although they were unknown to him, he had shared the fruit with them so kindly and generously, they came directly to the conclusion that he was an angel of

God. At least it was a proof of the singular providence of God; and it is well worthy of belief, that God in this manner had been willing to show His bounty to them, inasmuch as the said two fathers had exercised their ministry with great spiritual fruit in that place from which they had set out on that day.

Residence of Alangala

In this residence four priests and three brethren give their energy to cultivating the vineyard of the Lord. They go afoot through the rivers, the pools, and the marshes, the water often reaching to their navels, and the sun burning above them. But since their labor is wrought through the love of God, He, in His unmeasured kindness, never deprives them of His solace in the utmost perils. They write that, from the end of last year up to the present time, more than fourteen hundred have received the sacred washing of regeneration. They give diligent attention to the divine offices, which are celebrated in this residence with greater magnificence than elsewhere, on account of the convenience of three Indian chapels, which far surpass the Spanish. They follow the practice of singing *Salve Regina*, in honor of our Lady the Virgin; and, throughout Lent, of singing the psalm *Miserere* to accompany the discipline.

Several missions have been established in various places, with manifold increase of baptisms and other spiritual fruits. I will give an account of some. While a father was living in one little district, an Indian, crippled in both hands and feet, made his way straight to the father by boat, and that alone, to the astonishment of all—God and his guardian angel doubtless impelling the boat. He begged the father for baptism, and declared that the

author of his request had been a certain Spaniard who had told him that all those who did not accept the Christian law would be carried off to hell.

The greatest results have been obtained from the schools, for the pupils have each of them become teachers in the paternal homes of all the domestics; and by the good example of their lives they incite others to accept the true doctrine. A boy, a cantor in church, being solicited by a Spaniard to perpetrate a foul deed, answered: "Sir, I know well by what remedy you should drive away that temptation of yours. Let us recite together a rosary in honor of the blessed Virgin Mary, and instantly all these wicked thoughts will vanish in smoke." Thus by the newly converted Christian he was instructed who ought rightly to have been the teacher and master of others.

In the island Leita there were counted last year above five hundred and twenty-nine thousand souls; and they have the instruction of our priests only, who are six in number. By their hands the most holy waters of baptism have, in the course of a year, in this and other islands, been sprinkled upon at least ten thousand nine hundred heads. And this, in brief, is the harvest of this vice-province.

* * * * *

It only remains that your Paternity should cast your eyes upon this new and tiny plant, separated from Rome by so great an interval of distance and situated in the most remote parts of the world, as it has also obtained the last place in the government of the Society; and that you should show to it all kindness and favor by sending to it some laborers with these words from the eighteenth chapter of Isaiah: *Ite, angeli veloces, ad gentem conuulsam et dilaceratam, ad populum terribilem, post quem non est alius.* [44] Thus they may bring unto these places of darkness some light by their preaching

of the gospel, and all may bend the knee before the true God, the maker of the world, and adore and revere Him.

These treasures the India of the Philippines offers to your Paternity, and it is confident that by the divine grace and your blessing it will offer greater ones. Finally, may our Lord protect and preserve the health of your Paternity for many years, to the advantage of the whole church and the increase of the Society. Your Paternity's son and servant in Christ,

Francisco Vaez

Letter from Diego Garcia to Felipe III

Sire:

In the year ninety-nine I came to these islands, by order of my general, to console and visit in his name the fathers and brothers of our Society who reside in them. We were much pleased to see how much has been done for the service of our Lord and your Majesty, and the good of the Indians.

The Society of Jesus has in its charge a good part of the islands called the Pintados, where the holy gospel had never been preached. In the period of four years, eleven or twelve thousand have been converted and baptized. Matters are now in such course that in a short time, with the divine grace, there will be more than forty thousand baptized. As the priests who are occupied in this conversion are not more than thirteen, [45] the results, if there were many more, would also have been incomparably greater. For the honor of God, I beseech your Majesty to be pleased to command that

workers be sent, as it is a great shame that, when the season for the harvest is upon us, it should be lost through lack of reapers.

[In the margin of the preceding paragraph:

Already provided for."]

The Indians of these Pintados Islands have by nature good dispositions and abilities. I have learned by experience with some few, who were brought up in our houses, from the time when they were children, that if there were several seminaries where the education of the youth might be carefully attended to, taking them out of the power of their heathen parents, while still children (for the latter would give them up willingly), inside of a few years there would be a very prosperous Christian community in the sight of God and men. In my opinion there is no more effective means to establish the faith firmly among these barbarians than this.

Your Majesty would do a great service to our Lord by ordering that a seminary for these people should be established. I believe that the money which has been collected from the fourths, where there is no instruction, might well be employed in this work. In all conscience, it ought to be spent for the spiritual good of those Indians, as your Majesty directed by your royal decree. And none will do so well as this, which is the seed for all the rest. I have learned that, in the royal buildings at Manila, fourteen or fifteen thousand pesos are spent which are obtained from these fourths. From these and some other funds which lie in the treasury and are every day accumulating, several of the said seminaries might be well established.

[In the margin of the preceding paragraph: "Have the papers brought which relate to this."]

It is a great disadvantage for conversions to our holy faith, and for the civilization of these same Indians, for them to be dispersed like wild beasts among the mountains. It would be a great relief for the burden on the royal conscience of your Majesty, if your ministers should execute the order given by your Majesty to reduce this people to settlements. As they now are, the labor of the ministers is immense, and the results are small; and they are unable to establish Christianity and civilization as they should. [46]

[In the margin of the previous paragraph: "Write to Don Pedro de Acuña that with the help of these fathers, with all possible gentleness, and at the least cost, he shall see to it that the Indians be thus reduced; and if there be any great difficulty or disadvantage therein, let him advise us of it."]

The Indians have many grievances against the corregidores and encomenderos. With fewer or none of these judges there would be more justice; and if the encomenderos or collectors of tributes were not present in villages, the Indians would be better guarded.

[In the margin of this paragraph: "Let Don Pedro de Acuña send information."]

The students in this country receive no reward for their studies, and accordingly tire of them and leave them at the most important time. It would be well if your Majesty would give permission for us to graduate them from our courses of study, which are the first that were established in this country. In this way the sons of the country will be encouraged; and the cost of bringing masters from España, and maintaining them with a perpetual salary, will be saved to the royal treasury. In great part there will also be saved the expense of bringing ministers from Europe, since they will be trained in this country—where they are used to the climate, and know the language of the natives. Although at present we cannot found so

organized a university, at least they can be graduated in arts and theology, which are the sciences lectured upon in our Society.

[In the margin of this paragraph: "Provided for in the duplicate of this."]

There are many persons in these islands who have toiled in the service of your Majesty, and your Majesty would direct his favor well if he extended it, among others, to Doctor Antonio de Morga, auditor of this royal Audiencia, who is a man of good parts and fitted for any matter pertaining to the service of your Majesty. Likewise the licentiate Don Antonio de Ribera, auditor of this royal Audiencia, has done a great deal in saving a galleon in which was carried the entire wealth and support of this country. Captain Hernando de Avila, treasurer of the royal exchequer of your Majesty, is filling that office as a faithful servant. Captain Christoval Ascueta Menchaca has served many years and is worthy of reward.

[In the margin: "On the memorandum of the exchequer."]

Throughout our entire order, especial care is taken in all matters respecting your Majesty, and we shall still continue this, beseeching our Lord to protect your Majesty many years for us, as He may see is fitting for the welfare of His church and of the kingdoms of your Majesty. Manila, July 8, 1601.

Diego Garcia, visitor of the Society of Jesus.

Letter from the Fiscal to Felipe III

Sire:

I, the licentiate Geronimo de Salazar y Salcedo, fiscal for your Majesty in the royal Audiencia and Chancilleria of the Philipinas Islands, say that, as it has been heard in the islands that your Majesty has done them the favor of appointing Don Pedro de Acuña as governor and captain-general, and president of the royal Audiencia, this has greatly pleased and satisfied them, on account of the good reputation which he has of being an excellent soldier, and not at all self-seeking. Therefore his arrival is desired, because it is very necessary for all and [*illegible in MS.*] for the matters of war, in which many mistakes have been made up to the present time—which I will not mention, however, since the remedy is so soon expected with the arrival of Don Pedro de Acuña. If this had occurred a year ago, it is certain that a great misfortune would have been avoided which these islands suffered, and which was as follows.

On the sixteenth of October of the year 1600 just past, there entered the little bay of Aluay, which is in these islands, near the entrance to them, two vessels, which, from some people who went on board of them, were found to belong to strangers. After having robbed some vessels they came toward the port of Cavite, which is two leguas from this city, and is the place where vessels anchor. It was decided that some ships should be fitted out in the aforesaid port—namely, a ship built in the island of Cebu, called the "Sant Diego," which belonged to some private persons; a galicabra called the "Sant Bartolome," which belongs to your Majesty; a galley of twenty benches, also belonging to your Majesty; and a pataje belonging to some Portuguese from Malaca, who were in the port. [47]

It seemed to Don Francisco Tello, governor and captain-general of these islands and president of the royal Audiencia, and to the doctor Antonio de Morga and the licentiate Cristoval Tellez de Almacan, auditors therein, that it would be well, in order that the ships might be got ready in the best way and as quickly as possible, for the aforesaid Dr. Antonio de Morga to go to

Cavite for that purpose, and so he went there early in November. Later, desiring to go as commander-in-chief of the expedition, he asked for that office from the president, who proposed it to the licentiate Cristoval Tellez de Almacan, desiring him to secure it through a session of the Audiencia, but the latter opposed it. I afterward spoke to him of the lack there was of auditors, and of some other matters, and suggested to him to write about this and let each one give his opinion. Yet, although the said president agreed to do so, he did not, but secretly gave the title of commander-in-chief of the fleet to the said Dr. Antonio de Morga, although your Majesty had here Don Juan Ronquillo, who was receiving a salary as commander-in-chief of the galleys, and who was a veteran soldier, together with many others who have well approved themselves on the occasions for service which have arisen. The doctor, fearing that the president might change his mind, made haste to leave the port; and, although he could have had the galeota fitted out, he did not do so. It was understood that the reason given was that Don Juan Ronquillo said that it should not go out because he was commander-in-chief of the galleys for your Majesty, and that the right to go in the galeota could not be taken from him. Likewise, although he could have taken the pataje from Malaca, for which he had received some supplies and artillery at your Majesty's expense, he did not wait for it; and some say that friends of the doctor said that he ought not to take the pataje, because the Portuguese on it said that he should not, although the victory would have been to their account.

So on the twelfth of December he set out from Cavite for the port of Mariveles, which is seven leguas distant, and there [MS. *illegible*] the flagship which was the ship "Sant Diego;" and on the following day, the thirteenth, at eleven or twelve o'clock of a very black night, he left the port of Mariveles, without informing his admiral's ship, which was the galicabra, and in which sailed as admiral the captain Juan de Alcega. However, after the flagship had been gone more than an hour, the other ship saw it by

accident, and went after it. At daybreak our flagship recognized that of the enemy, which, together with its admiral's ship, was between the islands of Anacebu and Fortun. On account of the roughness of the weather, they were unable to unite; so the enemy's flagship kept up into the wind to wait for ours, which gained the windward of it and closed with it under full sail, while the admiral's ship of the enemy took to flight.

Meanwhile the two flagships were fighting. For each man of the enemy our ship had four Spaniards—not to mention the Indians and negroes, who helped very much—and a great deal of artillery, powder, and munitions and instruments of war; and they destroyed the enemy to such an extent that as many of our men as wished to do so entered it and took the banners and standards and other things belonging to the enemy, without having anyone appear on it, for they had retired to the bow. At this point our admiral's ship arrived, and with its artillery and arquebuses did some damage to the Dutch flagship; and our men on it, especially Alonso de Mansilla, the sargento-mayor's adjutant, called aloud, telling the others not to do them any damage, but to pass on to the admiral's ship of the enemy, because their flagship had already surrendered to your Majesty; whereupon our admiral's ship went in pursuit of the Dutch admiral's ship, which was more than two leguas away. The two flagships remained thus over three hours more, besides the two during which they had already been together. The enemy did not fight, and on our ship there was no one to order or govern, or command anyone to pass to the other ship. Then it was said that our ship was going to the bottom, and so loudly that the enemy heard it and took courage again. In our ship there was no one to command what was to be done, so that it did go to the bottom. There escaped on mattresses and on shields, and by swimming, Dr. Antonio de Morga and [*illegible in MS.*] other persons; but more than as many Spaniards again were lost, and more than a hundred Indians and negroes. The best artillery that there was in these islands, which had been taken from the fortresses for this purpose, was also utterly lost,

besides all that the vessel carried, which was a great deal. That same day the admiral, Juan de Alcega, captured the Dutch admiral's ship, and sent its men to this city.

Then it was that they were found to be Dutch. They called themselves vassals of Mauricio, Prince of Orange and Count of Nasau; and they bore a patent, a copy of which is subjoined. The president thought it well to send after the enemy's flagship, and for this purpose he ordered that our admiral's ship should go, with Admiral Juan de Alcega as commander; and that the Dutch vessel should go as admiral's ship, with Captain Juan Tello de Aguirre as admiral, who had had the position over the infantry in our admiral's ship. They went where they were ordered, but did not find a trace of the Dutch flagship. The commander of this was Oliver van Noordt, and in command of the admiral's ship was Lanverto Viesman. They were heretics who, with other ships, had set out from the port of Nostradamus [*i.e.*, Amsterdam] in Olanda, on the twelfth of September in the year 98; and had come by the Canaria Islands and by Brasil, through the Strait of Magallanes and along the coast of Chile, to these islands.

As I thought from the beginning, as soon as I knew of the loss of our flagship, that they would try to conceal it from your Majesty, I made an investigation about it, a copy of which is subjoined. [48] From this it can be seen who was to blame; and whatever is written to your Majesty contrary to this, or to what is contained in the report on the investigation, is not to be relied upon. The president has made an investigation in this matter, trying to shield himself and the guilty ones; and it has been carried on in such a way that it is known that no witness has dared to tell the truth. On this account I presented a petition to the president, asking that he refrain from trying the case, because the witnesses did not speak freely for fear of the power of the guilty, and because I intended to ask your Majesty to appoint a judge who could try the case, since the president could not do so. I also asked that a

copy might be given to me of all that had been written about this matter, in order that I might give it to your Majesty and ask for what might be proper. This was denied me by the president, and I appealed to the royal Audiencia, but for lack of auditors, of whom there was only the licentiate Tellez de Almazan, no action was taken. If a judge were to be appointed, there would be none who would dare to declare against the will of the guilty. Although the licentiate Don Antonio de Rivera Maldonado has come since, it has been impossible for me to take up this matter, because I have been ill now for more than forty days. So I beg your Majesty to order that this report be examined, and that whatever is proper may be done. Our Lord keep the Catholic and royal person of your Majesty, with a greater increase of realms and power. From Manila, which is in the Philipinas Islands, on the sixteenth of July of the year 1601.

Hieronimo de Salazar y Salcedo

Complaint of the Cabildo of Manila Against Morga

Sire:

The most faithful city of Manila in the Philipinas Islands humbly informs your Majesty that for some years past this city and realm have suffered, and are at present suffering, so many hardships and misfortunes, both in wars and in the loss of wealth and prestige, that it has been very close to entire ruin. This has arisen and arises not from unavoidable accidents which ordinarily happen in states and communities, but from those which the persons in charge of the government and who reside there could avoid, but do not prepare for; and they are notoriously due to the fault and

misgovernment of the persons to whom your Majesty has entrusted the administration of these islands—partly on account of their scant energy and vigilance, but most of all through what has resulted from their not being willing to fulfil the orders, instructions, and royal decrees which your Majesty had previously issued for the attainment of your objects and for particular ends; these they have directly violated. Since such conditions require a remedy, and as this must depend upon the royal will of your Majesty, who are not informed of the actual truth concerning events which have occurred here, these states must remain without relief on your Majesty's part, and with the said danger of our ruin. Owing to the general obligation which rests upon us as vassals of your Majesty, and that which in conscience especially obliges us as regidors of this city, which is the capital of all these islands, the following account has been written.

In the first place, a matter whence many other losses have resulted is this. Your Majesty having ordered the conquest of the kingdom of Mindanao to be entrusted to Captain Estevan Rodriguez de Figueroa, conformably to the edict or ordinance which treats of the conquest of newly-discovered countries and settlements in the Yndias, and this order having been despatched to the said Captain Estevan Rodriguez de Figueroa, Governor Don Louis Das Mariñas arrived here in the year 96. When the former reached Mindanao with his expedition, he (and he alone) was killed by the natives of that island on the unfortunate day of St. Mark of the same year. When Don Francisco Tello arrived in the following June of the said year and took this government, he immediately undertook to send a person to conduct the said conquest of Mindanao. As all the troops were there which had been taken by the said Captain Estevan Rodriguez, and as Don Joan Ronquillo (your Majesty's commander of the galleys and of naval affairs in these islands) had gone there with another detachment of troops, and had remained in the said islands until March of the year 98—where, during all this time, he won many victories over the enemy, and latterly one against

the king of Terrenate (who was sending his fleet to aid the said island), wherein he routed and captured the vessels and killed their commander, who was an uncle of the said king of Terrenate—at this the natives of the said island of Mindanao, who until that time had defended themselves, began negotiations for surrender, and for rendering submission to your Majesty; a part of them did so, and paid tribute to your Majesty. The said Don Francisco Tello, with the approval of Doctor Antonio de Morga, without considering the state in which this matter lay, or reflecting upon the injuries which might result from issuing such orders as they did (as may be seen later by what will be written further on), sent the said Don Joan Rronquillo an order to dismantle the fortifications of the said island, without leaving any fortified station, and to tear down the forts which your Majesty held there. Although he saw the great loss which would result from this, yet, as there was a clause in the said order directing him to do this without any reply, under penalty of being held contumacious and liable to punishment, he left the said island and came to this city with the fleet and troops which he had there, in the month of April of the year 98. The said Don Francisco Tello and the said Doctor Morga, seeing the great error which they had committed, attempted to exonerate themselves before the said Don Joan Rronquillo should arrive in this city. They arrested him, charging him with having taken away the protection of the said island of Mindanao, without their having sent him any strict order which would oblige him to do it. In order to give color to this—as they were aware that, in the voyage which the said Don Joan Rronquillo made while returning, his ship was partly wrecked, and they supposed that the said order which they had sent him had been lost, they intrigued with the government notary, and had him produce in the prosecution against the said Don Joan the order which had been given to dismantle the fortresses of Mindanao, omitting therefrom those words which made it obligatory for him to do so—namely, that he should do so under penalty of being contumacious and liable to

punishment. In this way they were released from responsibility for their act, and the said Don Joan Ronquillo was inculpated without excuse, since in so serious an affair he, being on the spot, should not have done so for a simple command. The case having been continued, and he having presented the original order which they thought had been lost, and having given other explanations, he was even by them acquitted of that charge. All this appears sufficiently by the record of the case, which remains in these islands. Your Majesty having been made aware of the abandonment of the said islands during the last year, there arrived here your royal decree directing the investigation and punishment of whomsoever was responsible. As they were to blame in the affair, as can be seen by this relation, they remained silent, and have taken no action. From the abandonment of what was already gained, through the said order, it has followed that the Indians who are natives of the said islands of Ufanos, which the Spaniards had left, considering that this was due to fear, assembled, with others from other neighboring kingdoms, to come to work havoc in the lands of your Majesty. Accordingly, in the past year of 1600 they came with a fleet of many vessels to the Pintados provinces, which are subject to your Majesty; and in the region known as Bantayan they burned the village and the church, killed many, and took captive more than eight hundred persons. Thence they came to the river of Panay, an encomienda assigned to the royal crown, and killed a great many more, taking six hundred more prisoners from the said encomiendas. They burned the church and the image of our Lady which was in it, which a few days before that had for a considerable time miraculously sweated out many drops of water, as if in premonition of the impending event. They drank out of the chalice in their feasts, scoffing at the consecration of it, after the fashion of Mahometan people, whereby the natives and Spaniards of those regions were greatly afflicted and terrorized, as may be imagined.

As has already been said, the reason for the coming of these Indians to inflict the said damage was the command to take away your Majesty's camp from the said land of Mindanao. But the cause for their having wrought those injuries after they arrived was, as was said at the beginning, that the order and decree of your Majesty was not obeyed. For your Majesty had in this camp four captains of infantry with the four hundred soldiers which your Majesty had commanded to be left there as a garrison, and the said captains were satisfactory persons; and it was ordered that there should be no more than the said four captains there, as any more would be superfluous, since there were so few soldiers. Doctor Antonio de Morga, auditor of this royal Audiencia, has reached such arrogance and restlessness of mind, caused by his having wrought so many injuries to this afflicted commonwealth through the power and authority which he has, both in general and in particular, to many citizens thereof; but, with his customary facility for speaking ill to some one's prejudice, he escapes, without anyone daring to speak of the matter. In the little time which he had spent in this country, he found himself rich and powerful through his trading and commerce. Accordingly he commenced to procure taking away the employments and offices from soldiers and men of war whom your Majesty has here, and appropriated them to himself and his relations. Thus, contrary to the said limitation of number, and in violation of what your Majesty commands by your ordinances and decrees—namely, that offices of profit shall not be given to the auditors, or to their kindred, servants, or dependents—Governor Don Francisco Tello appointed, as alcalde-mayor of the island of Mindoro, a certain Pedro Coteló de Morales, a first cousin of the wife of the said Doctor Morga, who came with the latter to these islands; and passed by, in giving it, many of the conquerors and poor settlers. But the said Doctor Morga would not accept this, saying that he would have no appointment for him unless it was a paid captaincy. The man was a mere youth, and in all his life had never fired an arquebus, and was

not skilled or experienced in war. On the contrary, he had led a very evil life, which cannot be fittingly described to your Majesty, and so is left unsaid. Accordingly, to give some color to what he desired to do, and in order that he might not appear to be exceeding the said number of four captains, the said governor appointed this man captain of infantry, so that he could go out of this city to the said Pintados provinces, where they were in fear that the said enemies were going. He was assigned the regular salary for a captain, and in like manner the other officers of his company were established with pay; and they likewise were men of the same way of life and the same amount of experience in war as the said Pedro Coteló. He went with the troops to the city of Santísimo Nombre de Jhesus, which is in the said provinces of the Pintados, thus leaving in this city of Manila the four regular captains of infantry, who had some knowledge of the affair, in idleness and without any troops; for among all four of the companies there did not remain a hundred soldiers fit for service. As he was in the said city at the time when the said enemies came, and received word that they were in the said village of Bantayan, the alcalde-mayor and commander of the troops of war, who was in the said city, despatched the said Pedro Coteló de Morales with ships and troops against them. Although the journey from the place where he was to that where the enemies were situated was two days long, he took four to it. If he had arrived at the time when he might have done so, he would have found the enemy drawn up on the land, and would have burned their fleet and taken away their prizes. When he arrived, sailing on from that place, he again heard the noise of the engines of war which they had with them, near some islands; and some of the soldiers, even, climbing up the masts of the ships, saw those of the enemy. But he would not go against them either, alleging various excuses—as your Majesty may have seen more at length by the information which accompanies this.

Besides this, the said Pedro Coteló Morales, having arrived with his fleet at the town of Arevalo, a settlement of Spaniards, the commander and

alcalde-mayor there resident gave him more ships and troops, and ordered him in a council of war (in which Pedro Coteló himself took part) to go and seek the enemy; and, if he did not find him in an island near there, to come back immediately to the said town of Arevalo on account of the fear lest the enemy should escape thither. The said Pedro Coteló, taking no heed of the said order, as one who held the post of alcalde should, and in order to flee the battle, did not observe this command, and went into another region without coming back to the said town. In the meantime the enemy came there and landed, and the town was almost ruined. They killed the alcalde-mayor and commander of the troops, and then withdrew. If the said Pedro Coteló had come back as had been ordered by the said council of war, he would have found them fighting there with their ships in the bays and rivers, in such wise that not a man or a ship could escape. In this way the enemy left with the two prizes mentioned. And this year we have even now information that they are coming back with increased forces; and in the preparation which has been already made or is now under way, more than fifty thousand pesos have been spent from the exchequer of your Majesty and furnished by private persons, to say nothing of the losses which the pirates will inflict when they return. The said Doctor Morga has been to blame for all this; because, contrary to the orders of your Majesty, he succeeded in having his relative placed in an office which he did not deserve, and for which he was not competent. Concerning this last affair, a copy of the proceedings of the council of war was sent to your Majesty, in which was the above-mentioned order to the said Coteló. In order that it may be more thoroughly proved, they sent to the said town of Arevalo to have the matter investigated; but the magistrate there, for fear of the said Doctor Morga, would take no action.

The said Doctor Morga, continuing his bold acts, was not content with having been responsible for the losses to property. Two Dutch ships having arrived in the past year of six hundred, in these islands, and having come in

the month of November to the mouth of the bay of this city, while they were beating about in the bay, ships were put in readiness to go out against them. The said Don Joan Ronquillo, commander of the naval forces of your Majesty, having gone to the port of Cavite for this purpose, the said Doctor Morga commenced his machinations, and claimed that he should go as commander of the said expedition. To give this some foundation and color, when the said Don Joan Ronquillo had come to this city to seek various supplies for the said expedition, he was arrested; and on the next day following the said Doctor Morga went to the port of Cavite, saying that he had best be present in person to encourage the despatching of the fleet. In fact, through scheming and plotting, and by the authority of his office, he succeeded in taking the said expedition away from the said Don Joan Ronquillo, and having it given to himself. He wrote letters, the originals of which are extant, to the governor of these islands, asking him that, even if Don Joan Ronquillo should petition for judgment against him, he in no wise respond or have to do with him until the despatch of the vessels should be completed, so that the latter might not appeal to the Audiencia and obtain a decree which would hinder the said Doctor Morga in the expedition. When three ships were armed and fitted with artillery to go out against the enemy's fleet, he went with the two vessels, which were the flagship and almiranta, to the island of Mariveles, eight leagues from the point of Cavite and five leagues from where the enemy were—without awaiting the other third ship which lay at Cavite, and belonged to several Portuguese, which arrived at the said island of Marbeles the same night when Doctor Morga sailed away. Having sighted the enemy on Thursday morning, without waiting for Captain Joan de Alcega, who was in the other ship, as admiral, or taking advice as to what should be done, he was confident of the victory on account of the report which had been made concerning the few troops which the enemy carried, and the large number that he himself had on board with him. Consequently the flukes of the anchors were put upon the side of

the ship; and having come up with and grappled the enemy at the sixth hour, the latter, seeing the force which the flagship had, gave up, and put himself with all his men under cover, without firing a single arquebus for more than an hour by the clock. Some of the soldiers and sailors from our ship, having entered theirs without orders (for the said Doctor was not able to give the order), and having found the deck of the enemy's ship without men and all the troops withdrawn—the banners being captured, and cast over to our ships—when the enemy saw how little care was given to the taking possession, since the troops were coming aboard without orders or any plan, they began to recover their courage somewhat, and commenced to defend themselves. When they had killed one or two of ours, as the latter had no one to command or direct them—because the said Doctor, as soon as they came in to close quarters with the enemy, had thrown himself down behind the capstan of the ship with a number of mattresses—the troops became so demoralized that no one was able to accomplish anything. Although some of them went up to the said Doctor and told him to board the ship, or to send troops on board of it with an order, he would not do so, as he was so overcome by fright and lacking in courage. Likewise, when they came to tell him that the ship was taking in much water through the gun-ports, because, when the fleeing troops left the side where they were grappled, and passed to the other side without fighting, the said ship careened and the water entered—although he was told of this several times, that he might remedy it, it was the same in this matter as the rest. Accordingly so much water was entering the ship that it was in danger. A father of the Society of Jesus, bearing a crucifix in his hand, told him that since the ship was in danger he should go over with the men to that of the enemy; since as they were so near together, and there was no resistance, it would be like passing from one dwelling to another. He would not do it, but on the contrary threw the mattresses with which he had fortified the capstan into the water, in order to go to a small islet which lay near and escape, as

he did. The enemy rushed upon all the troops, who threw themselves into the water, and the killed and drowned amounted to more than one hundred and twenty Spaniards of the most distinguished and important people of these islands, without counting more than a hundred negroes and natives beside.

Such was the manner of the surrender of the said ship of the enemy as soon as it was grappled. When the said captain, Joan de Alcega, arrived with his almiranta on the other beam of the enemy, giving him a volley of artillery and musketry, and when he finally undertook to board the enemy's ship, the Spaniards who were on the inside under its deck (among them being the adjutant of the sargento-mayor), told them not to fire, or they would kill the Spaniards; and to go ahead and follow the enemy's almiranta, which had taken to flight, as the flagship was already in your Majesty's hands, and there was nothing to do there. Accordingly the said admiral went after the other ship, and, coming up with it three or four leagues away, caused its surrender and brought the enemies who remained alive to this city, where justice was meted to them. The ship, with very good artillery, lies in this port.

Besides the said loss, there was much artillery which the said Doctor Morga was taking in the said ship, and supplies of war, as he had taken what lay in the forts of this city, leaving them destitute of supplies, and the royal storehouses almost without powder; for he took six hundred barrels of it on the said flagship. Owing to the lack of men—so great that hardly anyone appeared on the streets—and that of the said artillery and arms of various kinds, this city was in such danger of ruin as never before, if some of the many enemies who surround it had attacked it with even a small force. Likewise the opportunity for the capture of the said flagship of the enemy was lost, in which was stored all which they had captured since leaving Olanda, and twenty pieces of artillery which they brought, many

stores, and eight hundred muskets—all of which they were carrying, according to the declaration of the enemies who were in our power. For this country, where there is such a want of that kind of articles, and so many occasions continually arising in which they are necessary, it would have been of great importance and value; but the enemy is taking them away to buy with them cloves and pepper, and other drugs from these regions, as they are at present doing. For we have certain news that they went to the Maluco Islands, where they are anchored, and will leave the enemy there—who are most warlike, and who are most continually making war upon us—strengthened with arms like ours, whereby they will become skilful in their use; and from that will follow many difficulties, as may be imagined.

Likewise there results another very great injury to these regions, because, the said ship of the enemy having escaped, they carry with them an excellent knowledge of these regions and of the sailing-routes; for day by day they record in writing their bearings, and the courses by which they have navigated. There is a society which has been formed in Olanda and other states, for the destruction of these regions, according to the account which all the enemies who were captured alive agreed in. Five great galleons for this purpose were being built here, so that if any of those ships should come from there the Spaniards might sally out with more force.

We are sending your Majesty a copy of an information in this matter which was secured by your Majesty's fiscal with great secrecy, before the licentiate Almacan, auditor of this royal Audiencia. There is likewise a testimonial concerning the arms, military stores, artillery, and troops taken by the said Doctor Morga, in his flagship against that of the enemy; of the troops, not more than fifty-six people in all came back. There is another to the effect that on the morning of the day when the enemy were discovered the commander sent to the admiral fourteen of the twenty-seven that he had. There are some documents, drawn up at the petition of the said Doctor

Morga, concerning the artillery and other articles which he caused to be given to the third ship that he was to take with him. On account of his not waiting for this two hours, and not being willing to assign it men, the misfortune came about by which, as he confesses in his petition, two hundred persons escaped; whereas it is known that the dead of the Spaniards alone amounted to more than a hundred and twenty, so that, according to this, he took five or six men with him for every enemy.

He has drawn up a number of informations which, considering the dignity and power of his office, may obscure this truth and give some color to his case, as he is confident that it has done—and as he has likewise done in other matters, as he has used such bold and excessive measures ever since his arrival in this country. In this manner he has reached such a point that he petitioned for justice because he, as commander, had to divide the prize which he took in the enemy's captured ship, and maintained that a great part of it belonged to him. Afterward, by another petition he says that, as a vassal and servant of your Majesty, he relinquishes the part which falls to him and gives it to your Majesty, so that a share of what was taken may be given to him. A copy of these petitions is being sent, which makes this evident.

There is also sent a copy of the commission as commander which the said Doctor Morga bore, and an edict which he drew up and enacted, by which the governor ordered him to go as commander. We do not undertake to explain to your Majesty any of the matter therein contained, since in these papers may be plainly seen what audacity he shows in trying to make it understood that he is a warrior, and that at other times, by your Majesty's order, he has had similar matters in charge; and from those very papers may be learned his conduct in many other matters in this country, against many people, without his taking into consideration in the least what was owing to them.

The majority of the people through all this city have been hurt and injured, from the time when he came to this country, by the procedures of the said Doctor Morga, both in his actions and words against them, and in letters which he has written treacherously regarding the circumstances of various people, signing false names to them, and disguising his handwriting. Afterward he showed copies of these to other persons, in order to give the impression that he was not the author of them. At present, since this affair, the ill-feeling has grown with all these people, and become much greater, because most of the soldiers whom he took (serving at their own expense) went under threat and against their will; and as the relatives of our citizens died on this occasion, and their death was notoriously due to the fault and mismanagement of the said Doctor, it could not fail to arouse resentment against him. In the same way the said Doctor has been opposed to them, so that all the men who went in the almiranta are desirous of maintaining that they conquered, and not he; consequently what with the ill-feeling of the said Doctor against some of them, and of others against him, there are very few people in these islands who are not concerned. Accordingly he is odious and suspected in his office by all men; and no lawsuit is brought up in which he is not accused, as is now happening in several cases. The general ill-feeling here is no less owing to the fact that, whereas there are so many soldiers here who have come to these regions with no declared object except to serve your Majesty, and have done so since their arrival here, with good success, the said Doctor Morga should bring this about under the claim and pretext that there were no persons in these islands to whom such a matter could be entrusted; and that by this means the Spaniards had lost a victory so obviously theirs that it would without doubt have been gained if it had been entrusted to the least famous soldier here. We humbly beseech your Majesty in consideration of all these matters pertaining to the said Doctor, that a remedy may be applied to them, as is usually done by your Majesty, owing to your holy zeal and righteous

justice. May our Lord protect your Majesty as we, your Majesty's vassals, desire. Manila, July 20, 1601.

*Don Gonzalo Ronquillo de Vallesteros Francisco de las Missas
Francisco Mercado Dandrade Hernando da [illegible in MS.] Bernardino
de Avila Diego Melendez Florez*

By command of the city of Manila:

Luys de Contreras, clerk of the cabildo.

Letter from Morga to Felipe III

Sire:

During the month of March of the past year, 1600, there passed through the Strait of Magallanes into the South Sea a squadron of armed ships from Holland, belonging to Count Mauricio, having as commander Oliver de el Nort, and as admiral Lamberto Biezman, with a patent and instructions in Flemish and Castilian to make war with fire and sword upon the Castilians and Portuguese whom they might meet in these parts. After they had made a few captures of little importance on the coast of Piru, the commander's ship and admiral's ship, together with their long-boats, came to these islands, where they came out of the channel on the sixteenth of November of the said year.

Governor Don Francisco Tello found himself unprovided with any kind of fleet to resist them by sea; for he had no galleys and no other kind of ship with which to carry on offensive warfare, because a galizabra which had been commenced the year before in the shipyard of Cavite had been abandoned, and its build changed to that of a merchant ship. As he feared that the enemy would come down to the said port, and burn the few ships which were on the voyage from Nueva España, in order to secure himself from the seaside at all points he commanded Don Juan Ronquillo de Castillo (who was drawing his salary as commander of galleys when there were none) immediately to go to the said port, and put it in a state of defense, and build a fleet with which to go out against the pirate. He went to the port, which is two leagues from this city, and on the third day returned to the city without having undertaken to do anything, or shown any disposition to do so. He interposed difficulties, and asked for so many things which he said were necessary, and which were not at hand, that he made the thing out impossible; and not only was the governor disgusted with him for it, but Don Juan allowed himself to say things which obliged the governor to arrest him, as he did. The pirate continued his voyage in the direction of the bay of this city, and the president and governor, seeing himself hard pressed, communicated with the Audiencia and sought its aid. The latter, desiring to make the greatest effort possible, decided that I should go to Cavite and put the port in a state of defense and likewise secure a fleet. I opposed no difficulties or excuses to this, nor did I seek any rewards or aids for the expense, nor any impossible things. On the contrary, that same day I went to the port and fortified it so adequately that it was in a good state of defense—so that, although the enemy came into the mouth of the bay, they dared not enter or carry out their designs, on account of the knowledge that they had of my preparation. At the same time I finished the galizabra and launched it; and I fitted out another vessel, belonging to private persons, which lay there. I armed both of them and set sail in thirty

days with a number of volunteer troops, men of quality, who were resolved to accompany me on the service of your Majesty on such an occasion (all at their own cost), as the enemy was well established at the mouth of the bay, waiting for the ships of the Chinese and the vessels from Nueva España with the silver, in order to capture them. When the governor saw the state in which I had put things, and at so little cost to your Majesty's exchequer, and that the troops with which the expedition must be made would not do so, or even go in the fleet if I did not go as its leader, and realized the great importance of promptness, he ordered me in the name of your Majesty to make the expedition immediately. He told me that in no other wise on this occasion could I serve your Majesty. I obeyed, and made ready to go where I was ordered, without seeking any pay of profit. I spent more than four thousand pesos of my scanty property to procure the necessities for the expedition, some reinforcements, an outfit of arms, and other things. I risked my person, honor, property, and the support of ten children whom God has given me, and a good wife, solely for the service of God and your Majesty; for it is certain that no other interest or profit could take me from my house, where I was in quiet and safety, since I never sought or asked for this thing.

This resolution was distasteful to the said Don Juan Ronquillo de el Castillo and his retainers—chief of whom are the factor, Francisco de las Missas [49] and the licentiate Tellez Almazan, auditor of this Audiencia. These men quite openly proposed to the governor to give Don Juan the expedition, as he was the commander of the galleys; and other things to this purpose, which satisfied the governor but little. It seemed best to him not to change the design if I should desire it, or at least should not be burdened by it.

I sailed with the two armed ships in quest of the pirate, from the port of Cabite, on the twelfth of December. On Thursday, the fourteenth of the

same month, I came to close quarters with him, and the battle resulted as your Majesty will learn more at length by the relation which accompanies this.

I took as admiral, by the appointment of the governor, a certain captain Juan de Alcega, a citizen of this city, and a partisan of the said Don Juan Ronquillo; he is for this reason a great friend of the said licentiate Tellez Almazan, the auditor, and likewise because at the time when he came to this city the latter was hospitable and kind to him, and has always continued so. He is a man skilful in war with the Indians, as it is practiced here; but is of an irritable temperament, and desirous of having his own way on occasion, without obeying his superiors, of which there has been proof enough. When I had fully recognized the enemy and knew that he was carrying all his force on the flagship, I ordered the admiral in writing on the day before the battle, what particularly must be done—namely, that with both our ships we must engage the said flagship of the pirates. Accordingly as soon as I discovered the enemy the next day, I kept the almiranta near me, and grappled with the enemy and moored to him. When the admiral arrived and should have done the same, he shoved the tiller aside and, without my order, contrary to the command which I had given him, went after the almiranta of the pirate, which was sailing away; thus he left me unprotected and alone, for which reason my commander's ship fared as recounted in the relation.

For this disobedience, and others of which he was guilty and of great importance, immediately upon our entrance into the city the governor arrested the said captain Juan de Alcega, and is proceeding against him. Through the favor of the said auditor and his party, and various measures which they have taken—especially with the licentiate Salazar, fiscal of this Audiencia, who is openly of the said party—they have shielded him in this case in such manner as might be expected of a person who is so near losing

his office, and to whom it is so important not to make more enemies for his residencia. Accordingly thus far there has been nothing done in the case, and I have no hope that anything will be accomplished by the present proceedings.

This Captain Joan de Alcega was freighter of the ship "Santo Thomas" [50] in the year 99, which left here for Nueva España in company with two other vessels from this city. In the loading of this ship, so great was the dishonesty and deceit on his part that it is understood that your Majesty's exchequer was defrauded of more than a hundred thousand pesos. The governor, in order to wash his hands of this wrongdoing, began suit against them and condemned them to heavy fines and penalties, as he must have informed your Majesty. The case came on appeal to this Audiencia. On account of the said friendship and partiality, the fiscal hushed up this case, as he has others, without discussion upon it, and with no reparation to your Majesty or to this commonwealth.

In this manner Juan de Alcega not only remained unpunished but, aided by the said persons with several letters, informations and documents, which they had secretly made and composed, they are attempting to underrate my good service and seek for him the reward. I have not wished to set down in a boastful way anything more than the naked truth, which your Majesty now has before your eyes. I most humbly beseech your Majesty to be pleased to look upon my good intentions and labors with the clemency and benevolence which they deserve, extending to me the favor which is due, in such wise that they shall not remain without the recompense which the servants of your Majesty receive on similar occasions. And the chief of these should be to order me withdrawn from this exile, to a place where I can spend the rest of my life in greater peace in the service of your Majesty, and start my children upon the same path. God protect the royal Catholic person of your Majesty for many long years. Manila, June 30, 1601.

Don Antonio de Morga

Grant to Jesuit School in Cebu

Sire:

Hernando de Espinosa, procurator of the Society of Jesus in the Yndias, in the name of the residence [51] of this order in the city of Santisimo Nombre de Jesus of the Philipinas Islands, has represented that, because of the great need of persons to administer the sacraments to Spaniards, Indians, and Sangleys residing in and about that city, and to preach to them the holy gospel, the provincial of the said Society, with the permission of the governor, founded the said residence six years ago. It is productive of much good, for, besides the preaching to the Spaniards, natives, and Sangleys, and hearing their confessions, the other sacraments are administered to them; and there is a school where reading and writing are taught and Latin studied, which is of great gain and benefit to the community. The religious who are there are in great poverty; for they have no income, nor do they receive any alms from the people. The said procurator entreats from you a very moderate consideration, on account of their poverty. This being evident to the said governor, he ordered that to them be given annually, for such period as should seem fitting to him, two hundred pesos and two hundred fanegas of rice, as an alms, from the treasury of the fourths from the encomiendas that are without instruction. With this it is, however, impossible to support the said residence. It has need of repairs on its house, and, on account of its narrow quarters, of erecting new buildings; and because it has no alms, in lands or chaplaincies, [52] for the mass or any other of the purposes referred to, it is in great want,

as is evident by the investigations made in the royal Audiencia of the said islands, which were examined in the Council. He entreats that your Majesty, in consideration of the aforesaid, will order that the said two hundred pesos and two hundred fanegas of rice—which were granted to it, as stated, by the said governor from the treasury of the fourths—be set aside for it from the royal treasury, as the other fund is not a permanent one. He further asks that you will bestow upon it from the royal treasury one thousand pesos of income for its support, and three thousand, to be paid once, for repairs and buildings for the said residence; since your Majesty is wont to favor the other parts of the Yndias for this purpose, as there is no other recourse for aid. After examining this matter in the Council, our opinion is that, if your Majesty be so pleased, one thousand pesos of eight reals each, might be given once to that residence from the royal treasury of the Philipinas, as an aid in building its houses; and that, besides, information concerning it should be obtained from the governor and the archbishop. Valladolid, December 11, 1601.

[*Endorsed*: "Council of the Indias; December 11, 1601. In regard to the aid and alms that should be bestowed upon the residence of the Society in the city of Santisimo Nombre de Jesus, of the Philippinas." "So let it be."]

Documents of 1602

Instructions to Pedro de Acuña. Felipe III; February 16. Two royal decrees. Felipe III; February 16. Pintados menaced by

Mindanao pirates. Juan Juarez Gallinato, and others; May 29-June 4. Letters to Felipe III. L. P. Dasmariñas, and others; June 8-July 10.

Source: All these documents are obtained from MSS. in the Archivo general de Indias, Sevilla.

Translations: The first document is translated by Alfonso de Salvio, of Harvard University; the second, and part of the fourth, by Robert W. Haight; the third, and part of the fourth, by Norman F. Hall, of Harvard University; the first letter in the fourth, by José M. and Clara M. Asensio.

Instructions to Pedro de Acuna

The King: To Don Pedro de Acuña, whom I have appointed my governor and captain-general of the Philipinas Islands, and president of my Audiencia therein. My royal Council of the Indias having examined some letters from the said islands, I have resolved upon the following.

Since the Philipinas Islands are so far away and distant, surrounded by so many great kingdoms of infidels, the entry and intercourse which the Chinese and Japanese enjoy in Manila, and their friendly relation with the natives, give us reason to fear that the former, allying themselves with the natives, may attempt some disturbance, as they are inclined to do. Considering the fact that the greatest security and strength of the land lies in the Spanish settlement, and I have heard that not only does it not increase but is not even maintained in its previous condition—because, although the

viceroy of Nueva España are ordered to send reinforcements of men every year to the islands, many people die from the bad climatic conditions of the land, others are scattered in military expeditions, others must be permitted to return (either because they have left families in their own country, or because they cause injury to the commonwealth), and others go there with no idea of remaining and have refused to become citizens: considering all this, and seeing that it is a matter requiring much attention, I charge and command you, in case this despatch shall reach you in Nueva España, to consult the viceroy concerning all that may pertain to the improvement of these conditions; or, in case you receive it in the Philipinas, to do the same by writing, and to make the arrangements and give the orders which you think best for the settlement of the said islands, striving to draw the expenses from my exchequer with the necessary moderation. I shall now write again to the said viceroy, telling him to take care to provide the islands with useful people, and permanent settlers; and, in order that such persons may settle there, and remain in the islands, he shall favor them, and see that the orders concerning the trade between the said islands and Nueva España be carried out with exactness and rigor in order to attain the end and purpose for which we allow this commerce—namely, the preservation and prosperity of the islands, and the welfare of their citizens and inhabitants. You yourself must attend to this with much care, striving for the settlement of the said islands, and their safety and tranquillity, and for the instruction and conversion of the Indian natives.

Governor Don Francisco Tello wrote to me last year, ninety-nine, about the precautions that he had taken in the punishment of some Japanese pirates who had repaired to that coast and after whom he had sent vessels by different routes; and about the inquiries that he had likewise made among the crews of some merchant ships which had put into Manila at that time, suspecting that they and the pirates were all of the same sort. Since it is necessary to take notice and be careful of this, I charge and command you

to be always very vigilant in foreseeing the troubles which may require your attention and which may arise in the said islands, even if it be under pretext of trade by foreigners. You will give a hospitable reception to friends, and maintain amicable relations with them, keeping the ports and frontiers of the said islands in the necessary security, and taking special care that the expenses to be met by my royal exchequer in the precautions to be taken, the manning of vessels for searching out and punishing pirates, and the rest, be no more than are absolutely necessary—since you see the many things which need attention; and, above all, the limited resources of these islands.

When you informed me that in order to punish the pirates who resort to the coast of the Philipinas Islands, it would be well to arm and man some galleys, I granted you by my letter bearing the date of April 8 of this year, that if you saw that the galleys could be of service and usefulness you might cause them to be built and manned. But through a letter of July 12 in the said year, 1599, the said Don Francisco Tello informs me that since the galleys are not suited for those seas—as they had learned by experience, on account of the swift current and their inability to enter a bay while pursuing the enemy—and on account of the difficulties which the religious oppose to his collecting rowers, and as those whom they get possess little skill, he had decided to build four galizabras; these were already being built, and when well armed and equipped would, with three galliots, constitute a sufficient force for the clearing and pacification of those seas. It is therefore desirable that you carefully note all these matters, and after you have examined and considered them thoroughly, you will see whether or not it will be advisable to keep the said galizabras and galliots in case they are built and manned. You will give the necessary care to the security of that coast and land, keeping me informed of what is being done and of the coast which the said galizabras or vessels appointed for that purpose will guard.

The said Don Francisco Tello says in the same letter that the province of Mindanao was already pacified; but that some of the native chiefs had given no pledge, and matters had not been thoroughly set in order, and therefore it was necessary to keep there a garrison of two hundred soldiers. He adds that, as the country is poor and has few sources of wealth, he thought that the Indians would be unable to pay tribute; but it was necessary to assure the safety and accessibility of that post, because that was the landing-place where the Terrenatan landed on his plundering expeditions against the Pintados, as he did in the year 95. The said governor, as he had so few men and so little military strength, decided to place a hundred soldiers in La Caldera, which is near [the river of] Mindanao, in order to assure safety for that place and to hold in check him of Terrenate. You will thoroughly inform yourself of the state of affairs, and make the necessary provision for them, taking special care to hold what is already pacified and to have the gospel preached everywhere. As for the tribute to be imposed upon the Indians you will do what may seem necessary, consulting the prelates and observing my orders; you will see that those who have been pacified and are subjected to me be safe, and receive no injury or molestation from enemies. You will inform me of all that is being done.

The fiscal of the Audiencia of the said islands has written me that since the Indians do not pay the eight reals tribute in kind, as they were wont to do, but it has been left to their choice instead, many difficulties have been and are being experienced, detrimental to the newly-pacified Indians, to my exchequer, and to the commonwealth; because, when they gave the produce of the land in payment of the tribute, they cultivated and gathered it, and, besides paying the tribute, there was left to them a large quantity of produce, which they kept for their trade and crafts. The result was that the community was well provided with abundance of supplies, at little cost, and with cloth of various fabrics, with which they clothed themselves. The encomenderos shipped these articles to Nueva España, and the returns

therefrom remained in the islands instead of being taken away by the Chinese, as is done now; for the stuffs are being bought from the Chinese, and the Indians of the islands no longer manufacture them. Much gold was also taken to Nueva España, from which the tenth was paid to me to the yearly amount of six or eight thousand pesos, not to mention the larger amount which was paid for the tributes of the encomiendas which are assigned to my crown; but since the tribute is not paid in kind, hardly any gold is mined now. Another trouble that results from this is, that the Indians, who are naturally prone to idleness, easily earn enough with which to pay the tribute and buy stuffs from the Chinese with which to clothe themselves, and so do not manufacture these. In order to remove these difficulties, it would be expedient to impose upon the said Indians the occupations and work for which they and the provinces where they live are fit and suitable, with the raising of cattle; they should also be forced to extract gold from the mines and rivers, for, if this were done, much gold could be obtained from the mines, rivers, and placers. Thus the Chinese trade would cease in a large degree, and the returns from the gold and cloths which might be carried to Nueva España would remain in the land; and that, with the gain which would thus result to the Indians, would make them well inclined to such work, and cause them to do it willingly. The main point to be settled in order that the Indians may be influenced to undertake it is, to make them pay the tribute in kind. And since much attention and thoughtful consideration should be given to what is here pointed out, not only for the welfare of the Indians but for that of the commonwealth—since if the land itself could provide and supply produce and merchandise, that would be more advantageous than to procure them from outside; and the gold and silver which is now taken away to foreign and pagan kingdoms would remain in the land itself—I charge and command you that, as soon as you reach the said islands, you call together my royal Audiencia there; the honored prelates who shall be in Manila, and the superiors of the religious

orders—informing of this matter, by letter, those who cannot easily go thither—and confer and deliberate with them on all that is expedient and necessary to be done. In this conference you shall keep in mind the welfare and preservation of the Indians and of the country, and see that the said natives be neither molested nor wronged—striving for this object, that there may be crops and other products of the country; and that, for this purpose, the Indians shall pay the tribute in kind. You will observe the necessary system in taxing them, and will execute whatever decision is reached about the matter; moreover you will inform me of what is being done, and will always be careful to see that the Indians work in some occupation or other and be not idle, since idleness is the chief cause of their ruin.

My governor of those islands was ordered to abolish many false musters and extra expenses which were granted out of my treasury; but I have heard that, although he reduced or abolished some of the said musters, other stipends and extra expenses have since been given which had not been usually paid—namely, to captains, alferezes, and other military officers whom the said governor appointed over the people of the towns. I have also heard that many *alcaldes-mayor* and other officials have been added and their salary increased, so that where there was only one *alcalde-mayor*, there are now three, each having a deputy, and all drawing salaries from my treasury. I have learned that the said officials could be reduced in the following way: In the province of La Laguna, one *alcalde-mayor*, with a salary of three hundred pesos; in the district of Mauban, [53] on the opposite coast [of Luzon], one *corregidor*, with a salary of two hundred pesos; in the province of Camarines, another *alcalde-mayor*, with a salary of three hundred pesos, abolishing the office recently established; in the province of Cágallan, one *alcalde-mayor*; in Pangasinan, one *alcalde-mayor*; in the province of Ylocos, one *alcalde-mayor* with the same salary, who could administer the jurisdiction of the district of Bulacan, thus dispensing with the *alcalde-mayor* lately appointed for that place; we can

also dispense with the alcalde-mayor of the town of Ytondo and of the coast of the city of Manila, all being districts and suburbs of that city, leaving them under the jurisdiction of the alcaldes-in-ordinary of the city of Manila, as in former times, so that one alcalde might administer justice in the suburbs during six months of the year, and the other serve in the city. It would also be expedient to dispense with the alcalde-mayor lately appointed for the islands of Leite, Zamar, and Babao, which may remain in charge of the alcalde-mayor of Zubu, as they were before; for the natives are troubled by both of these, and it is not desirable to have there more than the alcalde-mayor of Zubu. Moreover, one corregidor with a salary of two hundred pesos would suffice for the river of Butuan; in the island of Calamianes, one corregidor is enough, drawing the same salary; in the district of Oton one alcalde-mayor, with a salary of three hundred pesos; in Panay, one corregidor, with two hundred pesos salary. Let no alcalde-mayor or corregidor have a deputy except in his absence, and then without a salary. I charge and command you that, when you arrive at the said islands, you thoroughly investigate all the aforesaid matters, and secure information thereon; and ascertain what offices, salaries, and extra expenses have been added, and the reason and justification for doing so. You will correct and reform what there is to remedy and reform, so that, by taking the necessary precaution in everything, whether it be in the administration of justice or other matters, you will prevent as much as possible any waste of my funds; for you see how necessary this is, on account of the many expenses and works which must be supported by the treasury.

I have also heard that one of the things by which my exchequer is most defrauded, and the inhabitants of the islands most wronged, is to be found in the lading and despatch of the ships for Nueva España with merchandise; for the governors, for several years, have appointed to that duty various personal dependents and friends, who have succeeded through illicit means in lading the ships with their own goods and even those of their relatives,

friends, and others; and all the cloth which is shipped beyond the general apportionment goes without paying the duties. To remedy this it would be expedient that hereafter the allotment of freight be made in the presence and with the supervision of the governor and other persons appointed for it—an auditor and a royal official, appointed each year in turn, beginning with the oldest ones; and that immediately after the said apportionment the royal official make a copy of it. The persons to whom the said cloth is allotted should go with their inventories in order to value the goods and pay the duties in the presence of my officials, who would give in return a permit for lading. One or two of the officials should be present in the port of Cavite, the place where the ships are laded. Likewise the lading of the ships ought to be witnessed by the freighters who are usually appointed, and by an auditor, in order to prevent the lading of goods not included in the apportionment and for which no permit was given by the said officials, as an acknowledgment that the duty was paid. Since it is not right to allow opportunity for the irregularities and fraud which are reported to have occurred, and of which the citizens have complained, I charge and command you to restore order and to employ the remedy which most fits the occasion, appointing for the allotment of the merchandise and the lading of the ships persons in whom great confidence can be placed. You will see that all this be done according to equity, by being yourself present at times, if that seem best, and you will take the necessary measures that my royal rights be in no manner defrauded.

I have heard that the ordinances are disregarded in assigning encomiendas of Indians, and that some persons who are enjoying encomiendas for life relinquish these, in order that they may be bestowed on others whom they choose, and influence the governors to assign the encomiendas to those persons. Since through many decrees of the emperor and king, my sovereign, it is decreed and ordained that no such relinquishment and renunciation of Indians be made, and that encomiendas

of this sort may not be allotted, I command you to observe and strictly carry out what is ordered by the instructions sent to the governors your predecessors, regarding the equitable manner in which the Indians of those islands must be allotted to the persons who are most deserving, and have rendered most service therein. Again I order and command you not to confer relinquished encomiendas, or assign them again, without notifying me of it, so that I may order what seems best to me. In case you shall have disposed of such encomiendas, I order that such allotment be null and of no effect.

I have been informed that it has become the custom in these islands to grant at the cost of my treasury the wine for the celebration of mass to the priests of the orders—not only to those in the encomiendas allotted to my crown, but to those in private encomiendas; and that there is no obligation to grant this aid to the doctrinas in private encomiendas. I therefore command you to give orders that no wine for the celebration of the mass be granted on the account of my treasury to the secular priests, or to those who give instruction in private encomiendas, for it is the duty of the encomenderos to provide the wine.

Orders were given that for just reasons, and for the welfare and preservation of that commonwealth, the governors your predecessors were to name and appoint a certain number of regidores from trustworthy men; but I have been told that the said governors have, through bribes and other means, appointed to these offices certain persons who have not the requisite and desirable qualifications therefor. I therefore charge and command you to make a thorough investigation of the matter, and to remove the regidores whom you find to have been appointed through questionable means, or who are unfit for the office. You will replace them with men possessing the necessary character and ability. Let there be only eight regidores, which

seems to be a sufficient number for a city of that population. You will inform me of the men whom you appoint, and of their qualities.

By a clause of the ordinance establishing the Audiencia there, it is provided that its president and two auditors at the beginning of every year audit the accounts of the officials of my royal exchequer, and settle them in the course of two months, for this allowing each auditor twenty-five thousand maravedís. This was done also in the time of the previous Audiencia, and an accountant was appointed who received another fifty thousand maravedis. I have learned that afterward Governor Gomez Perez Dasmarinas, without any orders, created for that purpose a position of accountant-in-ordinary, with a salary of five hundred pesos, and a secretary with two hundred and fifty pesos. This could have have been avoided by pursuing the former method, with no other expense than the said hundred thousand maravedis. It has seemed best to me to refer this matter to you, as I do, in order that you may examine it and apply such remedy as you think best. You will inform me of the steps you take in the matter.

I understand that the office of clerk of the regimiento in Manila has been filled by the secretaries of the governors, and that on this account justice is no longer sought for certain injuries inflicted not only on the Chinese but on the citizens. I also learn that it would be best to sell this office to a person who is not a servant or a relative of the governors. Since it is not befitting that this office should be filled by any secretary or follower of yours, or of an auditor or an official of the Audiencia, you will not allow any such appointment. You will nominate three from deserving men of those islands, who in your estimation possess the necessary qualifications for the office, and will send me their names, in order that I may elect the one who seems best to me. In the meantime you will make arrangements for the suitable performance of the duties of that office, and so that no difficulties will arise. With this I shall order to be sent you copies of two clauses of a letter, in

which are proposed two expedients which may benefit my exchequer in recompense for the expenses which are incurred by it in those islands. One of these relates to the cloves which could be obtained from the Malucas, carrying thither the produce of the island of Panay in exchange; and then bringing the said cloves to Nueva España on my account. The other proposal suggests that a monopoly be established in the raw silk brought from China—allowing each ship to carry only a certain quantity of it, and that to be carried to Nueva España on my account and not for any other, as you will understand more fully from the said clauses of a letter, which I have thought best to send you. Thus after you have discussed the matter with my royal Audiencia, and heard the opinion of my royal officials and of such persons of experience and intelligence as you think best, you can ascertain what can be done in the matter, the benefit and advantage which may result from the said measures, and the difficulty or facility which they offer. You will send me a detailed account of all, with your opinion.

I have understood that, by way of remedy for the illegal acts committed by the magistrates, and the wrongs which the Indians suffer, it would be of great importance to have the official inspection of affairs in those islands—which according to the ordinances constituting the Audiencia there, and to my orders, the auditors ought to make in turn. The latter have refused to do so, on account of the expenses and danger which they incur. Since it is necessary that the said inspection be made, I charge and command you to cause it to be made in the land which has been pacified, and where there is no obstacle; and that in this inspection the auditor who is selected in turn, conformably to the said ordinances, be accompanied by no soldiers or other people who might prove to be burdensome or injurious to the Indians. You will endeavor to make the said inspection bring about the good results for which it is intended; and will give the auditor to whose lot it falls a vessel of fair size with which to sail from those islands of Luzon to the others, at the expense of my treasury. As for the additional pay or gratuity which

should be allowed to the said auditors beyond their salary, and beyond what is granted them by the ordinances and decrees, you will send me a report, with your opinion.

I have heard that the said islands contain many poor and needy persons, to whom on account of their services and those of their fathers a remuneration is due out of the profits of the land and appointments to offices; but that as these sources of revenue are so few, and the governors confer them on their relatives, servants, and followers, as I have heard they have done, the others have remained without anything. It is not just that there should be opportunity for such appointments; therefore I order you to observe and fulfil in this matter exactly what is enjoined by the decrees, provisions, and instructions sent to the governors, preferring the most deserving and the older inhabitants of the land, who have best and most served the country without having been yet rewarded.

I have been informed that the ships which go to those islands from Nueva España carry each year, without a merchandise register, a large quantity of money from that country and Pirú—which is not found on reaching the port, on account of the care with which they hide it; and that it was necessary to make investigations and inspect the said ships before their reaching port. Since I understand that there is some foundation in this, and that many irregularities occur in this respect, I charge and command you to prevent and correct this evil in a fitting manner; and to see that the fiscal shall go with the officials of my exchequer to inspect those ships, at such place as they find convenient. Let the penalty be rigorously enforced in connection with what is found and discovered to be brought without register and against orders, adjudging to the informer the share which may seem to be best to my royal Audiencia of those islands.

Since I have learned that the office of treasurer of my exchequer in those islands has very little work attached to it, since its duties consist mainly in those of factor and accountant; and that therefore there is no need of the said treasurer, and that office could be fused with that of factor and the latter could act as treasurer, as was done before—I command you to send me a report of what would be expedient in this matter; also, of the duties of the said treasurer, and if, as it has been said, dispensing with the office, the factor and the accountant could take sufficient care of the administration of my exchequer.

I have learned that the governors, your predecessors, have often interfered in the affairs pertaining to the administration of my exchequer, which is entrusted to its officials; and that, contrary to the orders given them, they have not allowed the said officials suitable freedom in the exercise of their offices. Since in matters of this nature it is right to keep in mind the necessary security of my exchequer, I order you to observe and cause others to observe the ordinances and decrees which were issued in regard to this. You will maintain friendly relations with the officials of my exchequer in everything, and will give them the favor and aid necessary in the exercise of their offices, so that they may fulfil their charge and see that nothing is lacking to my service, and to the security, accounts, and order of my exchequer.

The accountant and the treasurer of my exchequer have written to me that my storehouses in the city of Manila have been in charge of the factor, who placed over them a man with the title of "lieutenant of shipping," whose duty was to keep an account of the receipt and distribution of what came under his supervision, thus relieving the work of the factor. A few years ago, on account of an information sent against the factor, it was ordained that each of the said officials should have his own key, and a person at the said storehouses in order to have all transactions pass through three hands,

and that two hundred pesos a year should be paid to each person. They complained of this, saying that they were unable to furnish a man for this on account of their small salaries, which they needed entirely for their own support; and they besought me to free them from this obligation. Since I desire to be informed of the facts and occurrences therein; and how and under whose charge, and on whose account, the said storehouses have been usually kept; and the reason for ordering each of the said officials to have his own key to the said storehouses; and whether they are more secure for that precaution; and what sort of persons are placed there by the said officials and at what salaries—I command you that, after having examined the orders that have been given, and obtained thorough information of what is expedient to do, you send me an account of it, together with your opinion about the matter.

Although, as there are so excellent judges and officials in the Audiencia of Manila, it is reasonable to believe that justice is administered therein, I have learned that in certain cases there has been laxity, and especially in two—namely, when Melchor Ramirez de Alarcon, being intoxicated in the said city of Manila, and being reprimanded by his son-in-law, Pedro Munez, gave the latter a blow with his fist, receiving in return nine dagger-thrusts, of which he died; and when, in the city of Cazeres, Captain Pedro Cid killed Joan Martin Morcillo in a duel. In spite of the gravity of these cases, the delinquents were not sent to prison, but were set free on paying a fine of eight hundred pesos each—a procedure which caused censure and discontent among the people. Since it is right that similar cases be not left unpunished, I charge and command you that, as soon as you reach the islands, you demand and copy, without declaring your purpose, the record of the proceedings in regard to the said two murders, and examine it in company with the licentiate Don Antonio de Rivera, auditor of the Audiencia; and with the consent of the fiscal; and, if you find sufficient cause for action, you will have the culprits seized, and will make all the

investigations and efforts necessary for ascertaining the truth. If it seem to you that the administration of justice requires it, you will send the prisoners under arrest to Nueva España, together with the records of their cases, and will inform me of what has been done and of the investigation made. You will always take great care that justice be done and administered in every case, and that crimes which merit punishment receive it, so that disorders may be repressed and justice exist and be feared, and that it shall not set a bad example or occasion lawless conduct in the land.

I have learned that many of the decrees and orders issued for those islands are not being executed, and that there is laxity in this respect, especially as concerns the ordinances about the equity with which the positions of profit in that country should be apportioned, and those persons who have not yet been remunerated should be rewarded. When my fiscal demanded the observance of the decrees, and especially in the case where the governor appointed Captain Cerban Gutierrez de Cespedes to the office of alcalde-mayor while he possessed an encomienda of Indians worth fifteen hundred ducados, and the fiscal asked that the said captain be not allowed to exercise the office until the completion of the trial, the Audiencia postponed its final decision, and meanwhile the said Cerban Gutierrez continued to exercise the office, and finished his term before the case was settled. I have thought best to refer this case to you, as I do, because in similar cases you will take suitable measures to prevent difficulties of this sort. It is especially necessary to observe and minutely fulfil the ordinances concerning the distribution of the profits of the country and the grant of rewards to persons who have not received them.

I charge and command you to examine the copy of a letter which I send you with the present, and which was written to me from those islands on matters concerning the Sangleys of the Parian, and on what ought to be provided and remedied in the islands. You will inform me of all matters and

advices contained in the said letter. Meanwhile you will provide and ordain whatever may seem necessary for the spread of the Christian faith, and for the cessation of the troubles already mentioned and others which may be expected, anticipating everything as is most convenient.

I send you, besides, a copy of what has been written to me from those islands concerning the precautions which should be taken in matters of war and defense of the land. That letter also gives information that the governors without any other reason but their own private aims and interests, are wont to abolish the companies of infantry and other offices of war, on account of which complaints arise. It also states that they have been accustomed to appoint captains of the number in the city of Manila, who are entirely useless, and that we could dispense with the appointing those captains and granting their commissions, as well as those of captains-general and masters-of-camp which the governors have hitherto granted. You will examine all the references made to the above-mentioned matters, and what pertains to the garrisons and defense of the forts and fortified towns. You will take the necessary precautions in these things, in order that no loss or trouble may result from them; and will not fill the said offices of captains-general and masters-of-camp—except that, when they shall become vacant, you will appoint men to serve in these offices until the appointments are made by me; and in the appointments of the captains you shall consider very carefully the persons, and the need that there is of them.

I am writing to the provincials of the religious orders the letters which go with this, regarding the kind treatment of the Indians; and, that the Indians must not be molested by the religious who give them instruction. You will give them these letters and will take special care to see how my commands are fulfilled, and that those natives shall not receive injury from anyone. You will have great care taken in teaching and instructing them in our holy Catholic faith.

The said Don Francisco Tello writes me that the work on the cathedral of Manila has been stopped for lack of means to carry it on; but that it would not take much money to build a tower and a sacristy, which would complete the church. Although he said that he would aid the work by various grants and imposts, and that, if any balances should result from the auditing of accounts which he had ordered to be made in the funds which he had set aside for that work, he would have them collected for that purpose, I charge and order you to take special care in helping and furthering the work on the said church as much as you can, so that it may be promptly completed. You will notify me in what manner this shall be done.

The said Don Francisco Tello writes to me that the two hospitals of the city of Manila, for Spaniards and Indians respectively, are in good and prosperous condition, and that he has taken possession in my name of that for the Indians. He adds that the accounts of the latter have been audited by his order, and that those of the Spanish hospital were audited every year. This meets my approval; and I charge you always to be attentive to the preservation and prosperity of the said hospitals, and to notify me of the result when the accounts are audited.

Don Francisco Tello also informed me of the good condition in which remained the Seminary of Santa Potenciana in the city of Manila, where some young girls and other women were sheltered; and that all were living in great retirement and offering a good example. He added that many of them desired to remain in that seclusion, and that the viceroy of Nueva España, whom he had asked to send two nuns for the said monastery, had replied that no one of them dared to go. Since I shall write to the viceroy about this matter, you will make the necessary efforts that the said religious may go there; for this will be of great importance in fully establishing the said monastery and in completing the training of the nuns who have been

sheltered there. You will aid and heartily favor this work as being so desirable for the service of God.

The said Don Francisco writes me that when the king my lord (may he rest in glory) charged the governors your predecessors to found a seminary where the children of the native chiefs of these islands could be taught and receive instruction in the ways of civilization, Don Luis Perez Dasmariñas, governor of the islands, made a contract with the religious of the Society of Jesus for the foundation of the said seminary, and assigned to it a perpetual income of a thousand pesos yearly. To begin the work, he immediately gave them six hundred pesos and for the income he set aside a fund in the treasury of the fourths; but as the income was uncertain, on account of the needy circumstances of the said treasury, and the amount of money given to commence the work was small, and it was of great importance that the work be begun, the said Don Francisco entreated me to be responsible for this income, and thus make it perpetual. He also asked me to give him permission to assign the said seminary a repartimiento of a thousand Indians, the first one that should be vacant. Since I desire to receive a report from you on the whole matter, I command you to send me one, notifying me, with your opinion, of any other means, besides the Indians, by which aid can be given to the said seminary, and in what condition its endowment is.

Don Francisco Tello informs me that in the Parian of the Sangleyes of Manila—which was founded only for some of them to live in, and those to be workmen, in such number as to be sufficient for the service of the commonwealth—houses have been gradually built; and that by this time there are more than three hundred of them, and three thousand Sangleyes who do nothing but eat up the provisions and enhance the price of commodities in the land. He adds that this could be remedied only by abolishing the Parian altogether, and letting the Sangleyes sell their

merchandise in the streets or in their ships as they were accustomed to do when there was no Parian. This would bring the commonwealth a gain of more than one hundred thousand pesos a year, and would give more security to the land; for, having no houses of their own, the Sangleys would frequent that country less, and would endeavor to sell their goods as soon as they reached the islands; they would also sell at a moderate price, and there would be no hucksters. He ends by saying that he was considering the necessary steps to take in this regard. Since this is a matter whose importance and consideration ought not to be overlooked, I charge and order you to examine and discuss the question with the Audiencia and the prelates; and to inform me of your opinions, decisions, and agreements before taking any decisive action or making any changes—taking care in the meantime, as I have already charged you, to see that all be done prudently and for the security of the land.

The said Don Francisco Tello notified me that he had erected buildings for the cabildo, and had placed thereon the coat-of-arms which was granted to the city of Manila. This is well done; and, if my royal coat-of-arms is not placed on the said house of the cabildo, you will cause this to be done, placing it above the coat-of-arms of the city.

The said Don Francisco Tello writes that because he did not carry with him the instructions which were given to him, he did not execute what he was therein ordered to do when passing by the Ladrones Islands—namely, that he was to provide for the religious instruction of those Indians, leaving there such persons as he should select. He said that, with the consent of the Audiencia, he wrote to the viceroy of Nueva España, requesting him to fulfil that command by ordering the officers of the ships which were to sail for those islands last year, sixteen hundred, to leave there two religious, with ten soldiers for their guard. He added that this work would prove of great service to God, as those islands were thickly settled with Indians who

were docile, and inclined to receive instruction; and that, if religious should enter that region, there is reason to expect that they would convert many of the natives. And because this means no less than the salvation of so many souls, I charge and order you that, if the viceroy has not fulfilled the above order, you yourself shall do so, in accordance with the orders regarding it which were given to the said Don Francisco in his instructions. You will notify me of what is being done in this matter.

The instructions order Don Francisco Tello to carry to those islands from Mexico a certain number of farmers to cultivate the land, who should be associated with the natives, and teach them agriculture. This he did not then do, because the instructions did not reach him there. I wrote, however, to the viceroy of Nueva España to send them at the first opportunity; but, if he has not done so, you will endeavor to have the said farmers conveyed to the islands, because they are so necessary to make that land productive. You will also make diligent efforts to introduce there, and carry over from Nueva España, mares and horses of good blood for breeding purposes, since this is of great importance for the service of the people.

The copy of a portion of a letter which accompanies this, which was written to me by the said Don Francisco Tello, will show you how he wished to enter the kingdom of Siam; and how he despatched Captain Juan de Mendoza on an embassy to the king of that country, requesting him to consent that four monks should go there, of the Order of St. Domini, of which order the king had already a friar with him. You will inform me how the matter stands, and report the answer which the king will have given you. You will notify me of it, and will encourage, so far as you can, the conversion of those infidels and the preaching of the gospel to them.

The said Don Francisco Tello writes that, although it has been decreed that the Indians shall not be condemned to pay money fines, it would be

advisable to make them, although with due moderation, pay some fines in money, because on account of their disobedience and natural disposition they feel more the punishment of paying one real than that of a hundred lashes; the result is that we do not gain the expected result—namely, to have them engaged in cultivating the fields and raising fowls, cattle and other articles for the general need and welfare. Since I desire to learn from you the facts, and what takes place in regard to the aforesaid matter, and what measures are expedient in regard to punishing them for their crimes and offenses by money fines, and whether this causes or may cause some difficulties, I order you, after having examined the question thoroughly and discussed it with the Audiencia, archbishops, and ecclesiastical cabildo, to let me know the result and the opinion of all.

I have heard that the buildings which have been erected for the Audiencia and for the president's residence are in great need of a hall in which the president and the auditors might hold their meetings; for it is not convenient for them to meet in a hall of the president's house, where the desirable secrecy cannot be observed because their discussions can easily be overheard. Therefore it would be expedient to build the said hall beyond the hall of the Audiencia, and next to it, on the side where the clock is. As it is so important that the said meetings be held in a suitable hall, and that great secrecy be maintained in regard to the affairs transacted by them, it has seemed good to me to notify you of this, and to charge you as I do, that with the advice of the Audiencia you erect such building in suitable style; so that the above-mentioned difficulties may cease, and occur no longer on account of the authority and secrecy which should prevail in the said meetings.

I have learned that Governor Don Francisco Tello, your predecessor, went to the Audiencia and attended its meetings and visitations, in unbefitting garments; and that at times he went half-dressed, without sword or jacket. Since in positions of that sort, in places and regions so remote, it

is necessary to exercise the authority and propriety due to those offices, I charge you to be very careful in that respect, and always to attend meetings and courts with the garb and decorum which befit the occasion.

The fiscal of the Audiencia of the said islands, to whom is entrusted the protection of the Indians, has informed me that, as their lawsuits are many and involve much work, with the Audiencia's permission he appointed a solicitor, with a salary of two hundred pesos, and an interpreter with a salary of eighty pesos, at the expense of the encomenderos. I charge you that, as soon as you reach the islands, you discuss this matter with the Audiencia; and, if it be necessary to retain the said solicitor and interpreter, to see that their salaries be paid, and that they be trustworthy men and competent to fill those offices. You will always take special care to see that the Indians be relieved from burdens, and protected and favored in all permissible ways, and that their affairs be promptly settled, endeavoring to avoid lawsuits whenever possible. At Zamora, on the sixteenth day of February in the year one thousand six hundred and two.

I, The King

Countersigned by Juan De Ybarra

Two Royal Decrees

Colonists for the Islands

The King: To the Conde de Monterrey, my kinsman, and viceroy, governor and captain-general of Nueva España, or to the person or persons in

whose charge the government thereof may be: The kingdoms of infidels and enemies of our holy Catholic faith, with which the Philipinas Islands are surrounded, being so numerous and so great, the most advisable thing for its safety and defense is to settle it with Spaniards. That colony, I am informed, is not only not being augmented, but is not even being preserved in its present state; for the people who are sent to those islands are few compared with the number of those who die from the unhealthful climate of the country, and those who are dispersed in expeditions, and because most of those who go to the said islands do not intend to abide there, and accordingly return with their wealth. It is considered expedient to give such persons permission to return, so that others may be willing to go to the islands; and it is necessary to give others such permission, either because they are married in España, or because they are Peruvians, a people who are injurious to the community. Consequently there is always a lack of people, and those who remain there are the poorest. As it is expedient to attend with great care to the settlement of the said Islands and their conservation, I charge and command you to provide for and send thither useful people, and to see to it that settlers of good character go thither. In order that this may be done, and that they may live and remain there, you will see to the careful and rigorous execution of the orders already given concerning the trade of the Philipinas with your country of Nueva España, and that the object be attained for which it is permitted—that is, that it be directed to the settlement and conservation of the said islands and applied to the benefit and advantage of the citizens—taking care that nothing be done which shall transgress any order which has been given in the matter, or which may be so given in the future, and with great care favoring the interests of the said islands. In this you will please me.

Given at Zamora, on the sixteenth of February, in the year one thousand six hundred and two.

I, The King

Countersigned by

Joan de Ybarra

Signed by the Council.

[*Endorsed*: "To the Viceroy of Nueva España, concerning the settlement of the Philipinas Islands, and directing him to send useful people there."]

Nuns for Santa Potenciana

The King: To the Conde de Monterrey, my kinsman, and viceroy, governor and captain-general of Nueva España, or to the person or persons in whose charge the government thereof may be: Don Francisco Tello, my governor and captain-general of the Philipinas Islands, has informed me of the prosperous condition of the seminary of Sancta Potenciana at Manila, where girls are sheltered, and of the retirement and the exemplary lives which they lead, and that many of them intend to remain in the said seminary. I wrote to you to send them, from Nueva España, two religious women for the said seminary, but you answered to the effect that none of them dared to go. As this is of great importance, and should be carried out, for the establishment of that seminary and the settlement there of professed nuns, and that its inmates may be thoroughly trained in piety, I charge and command that you that, in any event, you make arrangements to send there the said two religious women from one of the convents of your country, and that they shall be persons of approved character—and this on account of the

great service which this will be for our Lord; and you shall advise me of what is done in the matter.

Given at Camora, on the sixteenth of February, in the year one thousand six hundred and two.

I, The King

Countersigned by

Joan de Ybarra

Signed by the Council.

[*Endorsed*: "To the viceroy of Nueva España, directing him to send thence to the Philipinas certain religious for the establishment of a seminary."]

Pintados Menaced by Mindanao Pirates

Testimony which Captain Gallinato sent to the governor of the Filipinas concerning the help which the king of Terrenate is giving to the Mindanaos.

On the sea, off the tinguis ["hills"] of La Caldera, on the twenty-ninth day of the month of May in the year one thousand six hundred and two. The purveyor-general, Juan Juarez Gallinato. Whereas Ensign Antonio de Alarcon, commander of the patrona, [54] took with his galley from a vessel of Lutaos an Indian of San Buangan [*i.e.*, Zamboanga,] who is supposed to be a spy, I command, in order to learn the truth and the design of the enemy, that his confession be taken; and so I order it and sign my name.

Juan Juarez Gallinato

By his order:

Rafael de Sarria, notary

Deposition. Then on the day, month, and year aforesaid, the purveyor-general caused to appear before him the said Lutao, who was questioned by the interpreter Pedro Navarro, encomendero of Canamucan and Baibay.

He was asked what his name was, of what place he was a native, and if he were a slave or a timagua; and he replied that his name was Saliot, that he was a native of Sanbuangan, which is near La Caldera, and that he was a timagua. This was his answer.

When asked for what purpose he was coming yesterday when he was taken, and who sent him, he said that he was sent by a chief named Bato, a native of the witness's village, who told the witness to take fowls and wax and fish, and go to the place where the fleet was, or was coming, and find out who was in it, what sort of ships there were, where it was going, what people it carried, and how many ships; and the witness came to do what the aforesaid chief had ordered, and was captured. This was his answer.

He was asked what ships there were in the river of Mindanao, armed to set out; and where they were going, who was going as commander of them, and what fighting men there were. He said that there were a hundred ships in the aforesaid river of Mindanao, large and small, intending to go out to plunder Pintados and Cebu, and Oton, and all the regions that they could; and that for commander there goes Silonga, with Raxamora and Buysan. He said that a large number of men were going on the war-vessels, because they take a hundred men from each village; and he said that within ten days they would set out from the river for Pintados. This was his answer.

When asked if the Mindanaos knew that the Spanish fleet was going to help Pintados, or what they understood about it, he said that a son of Liguana, called Ssapay, with Gumapas and Nasa, were sent from Mindanao as spies in order to know what the Spaniards were doing, and where they were; and that they told where the Spanish fleet was, and what it was doing. He said that the Lutaos who came with him yesterday had returned to give news of the coming of the fleet. This was his answer.

He was asked whether Liguana, chief of Taguima, had planned to go to Pintados with the enemy's fleet. He said that he had, and that likewise his sons were going with him, and all the chiefs of his country; and thirty-five vessels were going from Sanbuangan, Tragima, and Basilanban. This he said to be the truth, according to the obligation of his oath, which he had taken after his custom. He said that he was about twenty years old; and he did not sign this paper, but the interpreter signed it.

Juan Juarez Gallinato Pedro Navarro

Before me:

Rafael de Sarria, notary

Official act. On the sea, off the mainland of Dapitan, on the thirtieth day of the month of May in the year one thousand six hundred and two. The purveyor-general, Juan Juarez Gallinato. Whereas Ensign Pedro de Carrion, while scouting among the little islands opposite the kingdom of Xolo in the last few days, captured a Lutao in a [MS. defective] and was fleeing; it is proper, in order to know the design of the inhabitants of the aforesaid kingdom, that his deposition be taken; and thus I command it and sign my name.

Juan Juarez Gallinato Pedro Navarro

By his command:

Rafael de Sarria, notary

Deposition. On the aforesaid day, month, and year, the aforesaid purveyor-general ordered to appear before him the aforesaid Indian, in order to take his deposition, through the interpreter Pedro Navarro, encomendero of Baibay. The following questions were asked of him.

After he had taken the oath according to his custom, and after he had promised to tell the truth, he was asked what his name was, where he lived, what his occupation was, and if he was a slave or a timagua. He said that he was called Onarano; that he was a Lutao of the village of Lumian, which is near Xolo; that his occupation was always to fight; and that he was a timague. This was his answer.

When asked if it was true that the son of Diguana, called Sapaz, [55] was with the natives of Jolo on the morning on which they attacked the Spanish quarters, and if Diguana knew of the attack, he said that he did not know; nor had he heard it said, because the witness was not in that affray, for he had gone away to fight at that time. This was his answer.

He was asked if it was true that the king of Xolo sent to Mindanao to seek help against the Spaniards. He said that it was, and that a chief of the aforesaid kingdom, called Diaga, went in a ship to seek it on behalf of the king; but that it was not known what reply he brought back. This was his answer.

He was asked if it was true that the Mindanao enemy was preparing a great fleet to come against the provinces of Pintados and against the Spaniards. The witness said that he had heard from other natives of the kingdom of Xolo that, as long as the Spaniards remained in the aforesaid

kingdom, all the natives of Mindanao would go with a large fleet to Pintados, to plunder it. This was his answer.

He was asked other questions in regard to the matter, but he said that he did not know anything more than what he had already declared; and this he affirmed. He did not sign this paper, but the aforesaid Pedro Navarro signed it. He declared that he was more than fifty years old.

Juan Juarez Gallinato Pedro Navarro

Before me:

Rafael de Sarria, notary

Official act. In the port of Biara, which is on the mainland of Dapitan and Mindanao, on the thirty-first day of the month of May in the year one thousand six hundred and two. The purveyor-general, Juan Juarez Gallinato. Whereas Captain Benito Gomez Descobara y Esquivel captured on a little island (or rather on the sea-coast) an Indian, a native of Sanbuangan, who is supposed to be a spy; I command, in order to learn if he is one, and to ascertain about the enemy's fleet, that his confession be taken; and thus I order it and sign my name.

Juan Juarez Gallinato

By his command:

Rafael de Sarria, notary

Deposition. Thereupon, immediately, on the day, month, and year aforesaid, the said purveyor-general caused to appear before him the aforesaid Indian, in order to receive his confession, through Agustin de

Sepulbeda—who swore in due form to fulfil the office of interpreter well and faithfully, and administered an oath to the Indian according to the latter's custom. He promised to tell the truth, and the following questions were asked of him. He was asked his name, where he lived, his occupation, his age, and whether he was slave or free; and he replied that his name was Panran, that he was a native of the town of Linpapa (which is near Rabos), that he was a slave of Sumanpie, chief of the said village of Linpapa, and that he was about twenty years old. This was his answer.

He was asked what ships had gathered and from what nations, and also where they were and for what purpose. He said that from Maluco there had come fifty vessels—Terrenatans, Sangils, and Togolandans [56]—which were brought by Buisan, who is master-of-camp to the one whom they call Captain Lant. The rest which are going from Mindanao consisted of forty large caracoas and twenty carangails and bireyes, with one caracoa and two bireyes from Sanbuangan and Tagima. All these had agreed that, if the Spaniards were in Jolo, they should fall upon them; and that, if they were not there, they should go to plunder in Pintados, Cebu and Oton. This was his answer.

He was asked where it was said that they were to go. He said that those who were returning from Oton had agreed to pass through some little islands which are opposite Quipit; and that those going to Cebu were to go from Similon, which is opposite Dapitan; and that they were to return that way. This was his answer.

When he was asked how he knew this that he had said, he replied that it was generally known and reported among the chiefs of Sanbuangan and among the Lutaos.

He was asked what agreement Liguana had made with the chiefs of Tagima and Sanbuangan, and what he said to them against the Spaniards.

He replied that the aforesaid Liguana had ordered the chiefs and the Lutaos to be assembled together, and in readiness, along with the Mindanaos, against the Spaniards. This was his answer.

He was asked how many days it would be before the fleet would set out for Pintados; and he replied that the fleet was ready in Mindanao, and that he had heard that it was to start shortly, within ten days, and that five of these had passed. This was his answer.

He was asked other questions in regard to the matter, and he replied that what he had said was the truth; and he affirmed this and ratified it. He did not sign this, but Agustin de Sepulbeda signed it.

Juan Juarez Gallinato Agustin de Sepulbeda

Before me:

Rafael de Sarria, notary

Official act. On the sea, near Dapitan, on the fourth day of the month of June in the year one thousand six hundred and two. The captain and sargento-mayor, Juan Juarez Gallinato, purveyor-general and head of the provinces of Pintados for his Majesty. Whereas it has come to his notice that yesterday, Monday, the third of this month, Captain Garcia Gutierrez Guerrero and Ensign Domingo Martir and Diego Mendez went in a caracoa to the river of Sioco to get water; and that, while they were doing so, there came to them an Indian, the chief of the said river, who told them that it was he who had given notice to the captains about the enemy's fleet, in order to warn the Spaniards: now therefore, in order to ascertain whether this is so or not, I command that the depositions of the aforesaid men be taken; and I order it, and sign my name.

Juan Juarez Gallinato

By his command:

Rafael de Sarria, notary

Deposition. Thereupon, on the day, month, and year aforesaid, the said purveyor-general caused to appear before him the said Captain Garcia Gutierrez Guerrero, in order to receive his deposition. He took oath in due form of law, and promised to tell the truth; and, when questioned in accordance with the above order, the witness declared that he had gone to the bank of the river of Sioco, where some Indians who pay tribute to him live; and that when he had arrived there the witness caused an arquebus to be fired, at the noise of which there came up an Indian, the chief of that river, called Tumarahoc. The said chief came to where the witness was, and told him that he had told the Indians of Dapitan—those who took fowls to the Jolo army for the commander—that they should warn the Spaniards that in the river of Mindanao a great fleet was being prepared, with many men, which they said was to go to Jolo and Pintados; and the aforesaid Indian likewise told the witness that he would be on the watch, and that he would warn the Dapitans if the fleet should set out, and where it was going; and he said that he would also tell the witness. This he declared to be the truth, under the oath which he had taken; and he affirmed and ratified it, and signed it, and declared that he was about forty years old.

Garcia Guerrero Juan Juarez Gallinato

Before me:

Rafael de Sarria, notary

Deposition. Then, on the day, month, and year aforesaid, the said purveyor-general caused to appear before him Ensign Domingo Martin, in order to take his testimony. He took oath in due form of law, and promised to tell the truth. When questioned in accordance with the above order, the witness said that he went in company with Captain Guerrero to the bank of the river of Sioco to get water; and that when they arrived there they fired an arquebus-shot from the witness's caracoa, and that, after they had fired it, there came to the aforesaid bank an Indian, the chief of the river, who was a friend of the Spaniards and paid tribute to the aforesaid Captain Guerrero. When he reached the caracoa, he told the witness and Captain Guerrero that he had told the Dapitan Indians (who had gone to Jolo with fowls for the commander), that they should warn the Spaniards that a large number of ships were being gathered in the river of Mindanao; and that a very great number of men was to depart in them to go against the Spaniards in Jolo and to plunder Pintados. The said chief also said that he had told the said Indians that if they did not warn the said Spaniards he would have them beaten with sticks; and that he would be on the watch, and that he would warn the Dapitan chiefs and Captain Guerrero of what happened. This he declared to be the truth, under the oath which he had already taken; and he affirmed and ratified it, and signed it; and he said that he was about twenty-eight years old.

Domingo Martin Juan Juarez Gallinato

Before me:

Rafael de Sarria, notary

These agree with the originals, which are in the possession of the purveyor-general, who signed here with his name; and it is exact and accurate. And to the fact that it was accurately copied, corrected, and made to agree, were witnesses: Ensign Juan Rodriguez de Santa, and the royal ensign Pedro Mendez de Sotomayor, and Francisco Hernandez. Done in Dapitan, on the fourth day of the month of June in the year one thousand six hundred and two.

Juan Juarez Gallinato

In testimony of which, I have affixed my name and the customary rubrics.

Rafael de Sarria, notary

Letters to Felipe III

Sire:

Don Pedro de Acuña, [57] to whom your Majesty granted the favor of sending him to govern this land, arrived here with a very considerable reenforcement of troops. This and his arrival are so important and timely that I think there must follow many results beneficial to the service of God and of your Majesty, as also the correction of important matters—which have greatly needed it, as I have informed your Majesty at greater length in a report and letter that treats of this matter, and of the great and urgent necessity for your Majesty to command that the town and fort of Maluco be occupied as promptly as possible. From this will result the greatest advantages, and great danger to this land will be averted; and thus may be

repaired the many losses and destructive raids which this country may suffer, which may result from the inroad of those demons of English and Dutch heretics, with their intentions and desires. We should have aid, and means of communication, and strongholds in these regions, and especially in this one of Maluco, which is the most important, dangerous, and near to these islands, and whose people are unfriendly. Our enemies, the Xoloan and Mindanaos, avail themselves of it, and are succored therefrom, and with this aid have inflicted many damages, which they will continue to do, if they are not checked. Great cost and expense must be incurred in these islands, merely to preserve and defend them; and there are great hindrances and difficulties in the way of their growth. By gaining this fort the door is closed to notable evils and troubles, and benefits of the utmost importance, both spiritual and temporal, through which God our Lord and your Majesty will be well served, the Christian faith and the extension of the gospel will be assured and increased in these regions; and the crown and royal possessions of your Majesty, and the reputation of España, well maintained and accredited, as is not the case now. Other important undertakings and expeditions which may hereafter be made will be facilitated; for that place is the capital, and has most reputation; and it rules as subjects and tributaries many surrounding peoples, who may be easily reduced after the conquest of this stronghold, and after those who so greatly fear and respect us have been vanquished and chastised. Moreover, expenses for supplies and garrisons which must be maintained, and which are necessary until this is accomplished, will be saved; and a large amount of property and income will be left for other expenses and affairs in the service of your Majesty. In short, until this is once for all assured and established, a certain amount of damage must be expected, and will inevitably result; and it is very evident that for the aforesaid reasons it is necessary sooner or later to undertake this expedition for the preservation and security of these regions. It is also better not to postpone it, and not to wait until that place has greater fortification,

strength, and defense, thereby rendering its conquest more difficult and costly. I conclude, Sire, by saying that as God and your Majesty have sent Don Pedro de Acuña to this government, and he has inclination and desire for military service, and for the faithful fulfilling his performance of what pertains to his office and to the service of your Majesty, (as has been observed), and besides has experience and the qualifications suitable and necessary for this undertaking, may your Majesty not defer it, or wait for another governor to perform this most important service. The opportunity of having a person so well fitted for such a contingency (which is by no means unimportant) is not to be lost. To say this and what else pertains to this matter, Sire, I am constrained only by the duty which I owe to the service of God and His church, and to your Majesty and your crown, and to the general welfare of these most important regions. If this were not so, nothing in this matter would concern or could influence me; for it has cost me most dear and was so disastrous to me that I lost by it my father and a great amount of property, and met other losses to which I shall not refer. For this reason, I desired to prosecute this expedition after the death of my father; but I could not do so, on account of the great fear and dread of hostile Chinese and Japanese. As a man, Sire, I can but desire the accomplishment of that thing which my father and I had tried to achieve and had almost succeeded in doing. But may our Lord not permit that this or any other enterprise should be abandoned, for lack of desire and effort to secure a result so desirable for the said objects; and may it come through the hand and means which God shall choose, and by which He shall be served. May His Divine Majesty guard your Majesty as He can, and as we all desire and need. At Manila, June 8, in the year 1602.

Luis Perez Dasmariñas

[*Endorsed*: "April 27, 1604. To the Conde de Lemos. Suitable provision has already been made; at Valladolid, [58] May 14, 1605."]

Sire:

As I was in doubt whether the letter which I wrote last year regarding the matter in this was received by your Majesty, I give an account of the same matter in this letter.

Toward the close of the previous year, 1600, there entered into these islands, by way of the Strait of Magallanes, Oliver de Nort, a Hollander, with two ships of war belonging to Count Maurício. He took prizes and caused damage, until he established himself at the mouth of the bay of this city, intending to await the merchant ships from China, and the galleon "Santo Thomas" from Nueva España, with the silver for two years belonging to the business men of this kingdom.

As military affairs were at that time little cared for in these islands, and there was no sort of preparation, the royal Audiencia of your Majesty, at the petition of the president, Don Francisco Tello, was obliged to take measures to provide aid in so urgent a necessity, with all possible haste and efficiency. For this end I was commissioned to go immediately to the port of Cabite, and place and keep it in a state of defense; and to arm several ships, with which to meet the pirate and divert him from his intention. Accordingly, I did so to the best of my ability, and put two ships of moderate size in readiness in a short time, there being no others.

The president ordered me again in your Majesty's name, and in writing—as he considered that by no other authority, in view of the state of affairs, could the expedition be made—to go out with this fleet in my charge, against the enemy, and fight until I should destroy him. In compliance with this I sought him, and encountered him outside the bay of this city. We engaged the enemy in a long and obstinate battle, which occurred between the two fleets on December 14. The outcome is related in the certified account by the president and governor, which accompanies this, by which your Majesty will be informed of the punishment which was inflicted upon this enemy, and how our aim was attained as we had wished, and likewise of the dangers and hardships which I encountered and underwent on this occasion. In this I should be content if I had, for my only reward, succeeded in serving your Majesty; for this aim alone drew me from my home at so much danger to my honor, life, and children.

I humbly beg your Majesty to be pleased to pardon whatever fault there may have been, in consideration of my good intention and desire to obey, and to succeed in what I was commanded to do. God protect the Catholic person of your Majesty. At Manila, June 30, 1602.

Doctor Antonio de Morga

Sire:

Although the obligation to advise your Majesty of the state of this your province, of the Order of our father St. Augustine, is always binding, yet for many new reasons it is especially binding this year; for at the recent meeting of the chapter here, by acclamation, and without voting, father Fray Pedro Arze (concerning whom your Majesty must already have a report),

was elected provincial, with the consent of all. From this we hope that, with the favor of God and your Majesty, he will be successful in his government, since its commencement is so propitious. The letter and mandate which your Majesty sent last year serves him as a guide for the correction of what stands in need of remedy, and the severity necessary to prevent disobedience; accordingly, the province is enjoying the greatest peace and quiet that it has ever had. In the meantime there came this year Fray Pedro Sossa, with a commission as visitor, sent by Fray Christoval de la Cruz from Nueva España, in virtue of several messages which he bears from the father-general, Alejandro Genense. We did not receive him, not because we did not desire a visitation—which, on the contrary, we do desire, and humbly seek from your Majesty, for the justification of this province—but because he did not come by order of your Majesty, and for other reasons which the Audiencia of these islands examined; and because some other and further messages which he bore from the father vicar-general Fulvio relating to us appeared suspicious. In what concerns this matter, we refer your Majesty to the said Audiencia, which, we believe, will advise your Majesty with due fidelity. Your Majesty has therein two very faithful vassals and servants, namely, Doctor Antonio de Morga and the licentiate Tellez Almazan—both the fathers of children, excellent judges, poor, and deserving of whatever favor your Majesty may extend to them; and especially of being removed from this country, which is poor and of scant resources, and where they cannot provide for the fortunes of their children. In this way we consider that your Majesty would do a great service to God.

The bearer of this is the father definitor, Fray Diego Cerravi, [59] who came to these regions from Castilla about eight years ago, and has served your Majesty and the order here very advantageously. He is a learned and virtuous religious, who speaks the truth; accordingly your Majesty may credit what he says. He is a man of so many good qualities that, to tell your Majesty in a word, he leaves us at his departure lonely, sad, and

disconsolate at losing him—although we are consoled by our confidence in the favor and grace which your Majesty will show this province and to him in its name, by ordering that aid be given to him in the business which he has in his charge; and especially that he may bring us friars from the province of Castilla, who are here much approved for their virtue and learning. And we are confident that your Majesty will favor us in all matters as our protector, patron, and only defender; we trust no less that our Lord will protect for us the royal person of your Majesty, according to the needs of your kingdoms and seigniories, and of us, your ministers and chaplains. We beseech, etc. From this your Majesty's convent of the Order of our father Saint Augustine. In the city of Manila, on the fourth of July in the year one thousand six hundred and two.

Fray Pedro Arce, provincial Fray Agustin de Tapia, definitor Fray Bernave de Villalovos, definitor Fray Diego Cerrabe, definitor Fray Pedro de Salzedo, definitor

[Endorsed with the following order: "Join this with the letter from the Audiencia, and bring them in on January 28, 1604."]

Sire:

Since the last year, 601, an account has been given to your Majesty of the expedition which I conducted at the close of the previous year, 1600, by order of the governor and president, Don Francisco de Tello, against Olibert de Norte, a corsair from Holland who entered among these islands, taking prizes with two ships of war; and of the outcome of the expedition, by which the said corsair was punished and harassed.

Francisco de las Missas, factor and overseer of your Majesty's exchequer in these islands, whom I inspected a short time ago ... [under a] [60] special commission from your Majesty, and passed sentence upon him ... penalties and restitutions as will appear by the report of the inspection which I have sent to your ... [Majesty] by three routes. He has been so hostile ... that he displays his jealousy of me in all matters [in so far as] he can. Accordingly, on account of this—as well as to cover his fault at the time of the despatch of the fleet which I took, by sending me unsupplied with sailors and other things necessary, which it was his duty to furnish—among other measures which he has taken since the past year, one has been under color and appearance of proceeding from the licentiate Salazar de Salzedo, fiscal of this Audiencia (whom, for private reasons, he holds quite in his power). The said factor induced the fiscal, in the affair of his investigation, to draw up a secret information with suborned witnesses—sailors and others, who are at his call—by which it is intimated that he furnished me well, and that the commander's ship was lost through my fault, imputing to me by the statements of these men other and illegal actions, in order to disparage my faithful service; by this may be seen the malice and passion of those concerned in this affair. That document was sent to your Majesty and the ministers before whom this matter is considered.

In like manner Captain Joan de Alcega (his intimate friend, and likewise a partisan of the said fiscal and factor), whom I took as admiral, in order to cover up his own guilt—for which he was arrested by the president and governor, and is being proceeded against officially because, at the beginning of the fight, he left the commander's ship unsustained, contrary to the order which he had from me in writing; and on account of other illegal acts, and because he took a part of the benefits of the success which resulted—he also, driven by the same heat of passion, has taken secret measures and procured documents with which to inform your Majesty in a sinister way to my prejudice.

Since it is just that in all matters your Majesty should be informed of the truth, I send certain documents which are not drawn in secret, nor cunningly, nor maliciously, whereby the truth will appear—especially the information which was drawn by the alcalde-mayor of the province of Valayan (on whose coast and in whose district the ship was lost), the very next day, and obtained from the men who were saved from the wreck. By this may be seen what passed in this region, and the guilt of the said factor, and that of the admiral, as has been pointed out.

Beside this, in the ships which leave here this year goes a religious of the Order of St. Augustine, Fray Francisco de Valdes by name, who was sent, in company with Fray Diego de Cerrabi, by his order to the court of your Majesty on the business of the order. This religious can inform your Majesty of all which occurred on the said expedition, as his order sent him on it to confess and administer the sacraments; and he was present during the fight on the commander's ship, and saved himself by swimming. As a trustworthy and disinterested person, he will tell the truth, without being influenced by personal considerations.

I humbly beg your Majesty that, with this understanding, your Majesty may be pleased to command that opportunity be not given for distortion of facts in such a way, by persons so jealous and so suspicious, who are moved alone by anger and passion to avenge themselves and procure satisfaction from the ministers who, for the service of your Majesty, have administered (as they still do) justice in your behalf; and that you will command that the illegality which appears to have been committed in this be punished, as is most fitting for the service of your Majesty. God protect the Catholic person of your Majesty. Manila, July 8, 1602.

Doctor Antonio de Morga

Sire:

I, the licentiate Gerónimo de Salazar y Salcedo, your fiscal in the royal Chancilleria of the Philipinas Islands, say that on the sixteenth of January of the year one thousand six hundred your Majesty was pleased to command that a royal commission be given to Don Pedro de Acuña, governor and captain-general of these islands, empowering him, when he should reach them, to cause the royal officials to give him a report of what they have collected from Don Francisco Tello, his predecessor, toward the sixteen millions [of maravedis?] which were still due from the balance which was incurred by him at the time when he was treasurer of the Sevilla House of Trade; and also to cause that whatever remained to be paid should be collected from the said Don Francisco Tello and from his property.

In the course of the execution of this commission by the said Don Pedro de Acuña, the royal officials certified that the said Don Francisco Tello had paid them twenty-seven thousand two hundred pesos of common gold, which should be twenty-eight thousand one hundred and eighty-four pesos, according to your command by a royal decree dated in San Lorenzo, on the thirteenth of September in the year one thousand five hundred and ninety-five. The said officials decided that the eight thousand pesos which were lost in the year one thousand six hundred in the ship "Santa Margarita" should be for your Majesty's account—because, since the debt was contracted in the Sevilla House of Trade, the payment should be there; and the said Don Francisco Tello must run the risk as far as that. They also decided that what was ordered in the aforesaid royal decree of the thirteenth of September, ninety-five, was that each year three thousand ducados should be deducted from the salary of Don Francisco Tello, which were to be sent each year; and, as he failed to pay in the years ninety-six, ninety-seven, and ninety-eight, for the rest of the time it came about that eight thousand pesos were sent each year. It was thus that the aforesaid eight

thousand pesos were lost which were going in the said ship "Santa Margarita;" whereas, if the aforesaid royal decree had been followed and three thousand ducados sent, no more than that sum would have been lost.

The governor gave me authority to follow up the matter, and I asked from him an order of execution for the whole sum, with the assurance that I would receive on account whatever seemed lawfully to have been paid; it was given to me on the person and goods of the aforesaid Don Francisco Tello, but property was not found to the value of four hundred pesos. He opposed the execution, saying that he had paid in Sevilla with the income of his family estate, together with what he had paid here, all the balance that was due. I replied to this that this did not appear, from the aforesaid royal decree of January, one thousand six hundred, and that a forced sale would have to be made for the amount that was therein ordered—not taking account of the payments that had been made here until they should arrive at Sevilla, as the official judges of these islands have decided—and that what was lost must be at the risk of the said Don Francisco Tello.

This was proper, since at the time when the said royal officials gave the said money to the masters of the ships to be delivered to the treasury of Mexico, the aforesaid Don Francisco Tello, by the authority of his position, gave orders that the said masters should give him the money; and he invested it in merchandise, which, if it had arrived in Mexico, would have gained a great deal. It was right that, since he was to have the profit, he should bear what risk there was—which was greater than if he had allowed the royal officials to send the money as it suited them. Since each year a great quantity of money is sent from the treasury of Mexico to the one here, they would have given orders that, instead of sending the money from here, it should be deducted from what was to be sent from Mexico, in order that that quantity might be sent to Sevilla. In this way the risk of going and coming would have been avoided; and, even if there had not been any

opportunity for this, they might have sent the said money in gold—which is a less risk, because it is of less bulk and weight than reals—and thirty per cent would have been gained in Mexico.

Both sides brought evidence, but that for the opposition was of no importance; so the governor gave judgment according to the opinion of the licentiate Luis Ortis de Padilla, reporter of the aforesaid royal Chancilleria, ordering that his property be sold to the highest bidder, in order to recover the amount for which the execution had been granted—deducting from it all which the royal officials certify to have been paid here, and also, eight thousand pesos for what he says he has paid in Sevilla. I consented to the judgment as far as concerned what was favorable, and I appealed from what was in opposition, to what I had asked to have received as evidence. The opposing side has denied this, and made a declaration of nullity against the aforesaid royal decree of the year six hundred, saying that, according to it, it was ordered that the accountants of the royal Council of the Indias should make a record of this matter, which they did not do; so that everything that was done by its authority is void. Thus the suit remains in this position.

Seeing that I did not find any property of the said Don Francisco Tello with which to fulfil the aforesaid commission, and hearing that he had some property which he kept secret, I asked for and received letters of excommunication and censure against those who might know of property belonging to the said Don Francisco Tello, in order that they should make it known. They opposed this, and tried to delay it as much as possible; but nevertheless it was ordered that the three letters should be given. They appealed from this, and menaced me with the aid of fuerza [61]—with the result that until the sixth of this month the last letter could not be read, so that the examination of the depositions that were taken has been delayed. According to them, it appears that he has no property of any account in these islands, but that what he has is in Nueva España; and whatever I have

been able to hear of I give notice to the viceroy of that country to attach, because the ships are about to sail, and the governor is in Cavite, and I cannot get a warrant for it. God keep the Catholic person of your Majesty, according to His power. From Manila, on the tenth of July of the year 1602.

The licentiate *Hieronimo de Salazar y Salzedo*

[*Endorsed*: "Examined on the second of July, 1604. Let it be put with another from the royal officials of Philipinas, of July 18, 1603."]

Bibliographical Data

All documents in this volume save two are obtained from the original MSS. in the Archivo general de Indias, Sevilla; and their pressmarks therein are indicated as follows:

1. *Ordinances of the Audiencia* (concluded).—See Vol. X, No. 15.
2. *Hospital for Indians*.—"Simancas-Secular; Audiencia de Filipinas; cartas y expedientes de personas seculares, vistos en el Consejo; años 1595 á 1606; est. 67, caj. 6, leg. 35."
3. *Letters from the fiscal, 1599*.—"Simancas-Secular; Audiencia de Filipinas; cartas y espedientes del presidente y oidores de dicha audiencia vistos en el Consejo; años de 1583 á 1600; est. 67, caj. 6, leg. 18."
4. *Letter from king of Borneo*.—The same as No. 3, save that the dates read, "1583 á 1599."

5. *Letters from Telia*.—"Simancas-Secular; Audiencia de Filipinas; cartas y expedientes del gobernador de Filipinas vistos en el Consejo; años de 1567 á 1599; est. 67, caj. 6, leg. 6."

6. *Letters from Felipe III*.—The first one: "Simancas-Filipinas; cartas y expedientes del presidente y oidores de dha Audiencia vistos en el Consejo; años de 1600 á [1606]; est. 67, caj. 6, leg. 19." (The second: in "Cedulario Indico" of Archivo Historico Nacional, Madrid, "Tomo 38, fº. 131.6, nº. 101.")

7. *Pacification of Mindanao*.—The same as No. 6, first part.

8. *Van Noordt's attack*.—"Simancas-Secular; Audiencia de Filipinas; cartas y expedientes del presidente y oidores de dicha Audiencia vistos en el Consejo; años de 1600 á 1612; est. 67, caj. 6, leg. 19;" but on the last of the papers in this group the dates read, "1600 á 1606."

9. *Morga's report of battle*.—The same as No. 8.

10. *Letter from Garcia*.—"Simancas-Secular; cartas y expedientes de personas eclesiasticas vistos en el Consejo; años 1570 á 1608; est. 68, caj. 1, leg. 42."

11. *Letter from the fiscal, 1601*.—The same as No. 8.

12. *Complaint of cabildo*.—The same as No. 2.

13. *Letter from Morga*.—The same as No. 6, first part.

14. *Grant to Jesuit school*.—"Simancas-Audiencia de Filipinas; consultas originales correspondientes á dha Audiencia desde el año 1586 á 1636; est. 67, caj. 6, leg. 1."

15. *Instructions to Acuña*.—"Audiencia de Filipinas; registros de oficio reales ordenes dirigidas á las autoridades del distrito de la Audiencia; años 1597 á 1634; est. 105, caj. 2, leg. 1."

16. *Royal decrees, 1602*.—The same as No. 15.

17. *Pintados menaced*.—The same as No. 8.

18. *Letters to Felipe III*.—The first, second, and fifth, the same as No. 8; the third, the same as No. 10, save that the heading reads, "Simancas-Eclesiastico;" the fourth, the same as No. 6, first part.

Annual letters from the Philippine Islands, 1601.—This document is obtained from a compilation of missionary letters by John Hay, S.J., entitled *De rebus Iaponicis Indicis, et Pervanis* (Antverpiæ, M. DC. V), pp. 950-968. Our translation is made from a copy of this book in the Library of Congress.

NOTES

[1] Evidently a reference to the memoir of Fray Juan Plasencia upon the customs of the Tagal natives (*Vol. VII. pp. 173-196*), which was long used

as a guide by Spanish magistrates and officials in their dealings with the Indians.

[2] A counsellor-at-law appointed by the supreme court to make the briefs of the causes to be tried; he reads them before the court, after they have been first examined and approved by the parties concerned.

[3] The reference or act of delivering written judicial proceedings to the other party, in order that, on examination of them, he may prepare the answer.

[4] Inserted among these decrees is a copy of the account written by Fray Juan de Plasencia, O.S.F., of the customs of the Tagal Indians—a document presented in vol. VII of this series; also (unsigned and undated, but probably by the same writer) a paper entitled, "Remarks on the customs which the natives of Pampanga formerly observed in their lawsuits."

[5] *Cuarteles*: referring to the cost of quartering soldiers on the citizens.

[6] So in the official transcript from the original MS.; but apparently an error for *bar*—i.e., *bahar*, which is an Arabic weight, computed in the Moluccas at about five hundred and ninety pounds (Crawford's *Dictionary*, p. 103).

[7] The Spanish translation of this letter is written on the back of the letter itself.

[8] The words in brackets throughout this letter are conjectural readings.

[9] *Marginal note, apparently made to facilitate reference*: "That at the end of July, 1599, information was received through letters from the captains of the forces at Malaca and Maluco that at Sunda and Terrenate were a number of English ships, whose designs were not known; that help

was asked for Maluco, but the request was not granted, it being impossible for this kingdom of the Phelippinas to do more; and that it is necessary that we be provided with troops, arms, and money from Nueva España, of all of which advices have been given the viceroy."

[10] The letters here mentioned are found at the end of this document; they are all written in Portuguese. They are not presented here, as all that is essential in them is contained in Tello's letter.

[11] *Marginal note*: "That the troops and artillery are to retire from the fort of La Caldera, and proceed to Cebu, as they are needed there; and the fort is burned."

[12] Spanish, *que van por el agua mas de una legua*; apparently some word or phrase is missing. Montero y Vidal (*Hist. de la piratería*, i, p. 144) says that the fort of La Caldera was two and one-half kilometers (a little more than one and one-half miles) from Zamboanga.

[13] *Marginal note*: "That information regarding the English has been given to the viceroy of Nueva España, in order that he may send reënforcements."

[14] *Marginal note*: "That the work of casting artillery is being continued."

[15] The Strait of Sunda, which separates Java from Sumatra.

[16] This is followed by notarial attestations regarding the drawing and collation of the above copy of instructions from the original, at the order of Pedro de Acuña and Antonio de Morga, in 1602, and the certification as to the qualifications of the government notary, also dated in 1602.

[17] The ship ranking second in a fleet.

[18] Preceding this document, which is a copy and not the original, is a notarial declaration attesting that the present copy was made from the original by order of Antonio de Morga, for use in a suit brought by him against his admiral, Joan de Alcega, for deserting the flagship during the battle, which caused the loss of the flagship. At the close of the instructions is the notarial attestation of Joan Paez de Sotomayor as to the correctness of the copy, under witness of Geronimo Xuarez and Joan de Aldave, and bearing date of August 27, 1602; and the further attestation by three notaries that Paez de Sotomayor is entitled to act as notary.

[19] Francis Drake; see mention of this voyage in *Vol. IV*, p. 313.

[20] Thomas Candish; see *Vol. VII*, p. 52.

[21] Oliver van Noordt; he was a native of Utrecht, and led this expedition in behalf of a commercial company which had been formed in 1598 by certain citizens of the United Provinces. Although the main object of their enterprise was trade, the commission issued to Esaias de Lende (q.v., *post*) shows that the Dutch government gladly seized this opportunity to attack Spanish possessions in the Orient. See the detailed account of Van Noordt's voyage in *Recueil des voyages ... des Indes Orientales* (Amsterdam, MDCCXXV), ii. pp. 1-117.

[22] Maurice of Nassau, born in 1567, succeeded his father as governor of the United Provinces in 1584, and was for forty years the leader of the Dutch cause; but he did not become Prince of Orange until the death of his elder brother in 1618. Maurice died in 1625.

[23] This was Jacob Claasz; he was sentenced to be set ashore and abandoned at the Strait of Magellan. A little bread and wine was given him, and it was expected that "he would die of hunger in a few days, or else be

captured and eaten by the savages" (*Rec. des voyages*, ii, p. 30). The same record says that Peter de Lint was promoted to Claasz's post.

[24] This vessel was named "El buen Jesus."

[25] A corrupt phonetic rendering of the name of Sir Richard Hawkins, son of the noted English freebooter Sir John Hawkins. The reference in the text is to the fight between Richard Hawkins and the Spanish admiral Beltran de Castro, off the coast of Peru, June 20-22, 1594; after a long and desperate contest, the English were forced to surrender. Hawkins was taken a prisoner to Spain, but afterward sent back to England; he died soon after 1620. See his work, *Observations ... in his Voyage into the South Sea* (London, 1622; reprinted by Hakluyt Society, 1847, and again in 1877), 99. 182-225.

[26] As is shown by another document in the same legajo, this patache was named "San Xacinto;" it came from Malaca some time before the battle with the Dutch, and with news that they had been seen in those waters; it was commanded by Estevan Rodriguez de Paez. An embargo was laid upon this vessel, in order to secure it for use against the Dutch; but this was removed on November 22, 1600. The decree releasing the vessel was one of the documents used in a lawsuit brought by Paez in regard to the freight charges for the merchandise carried by the patache.

[27] Screens of canvas, spread along the sides of a vessel to prevent an enemy from seeing what is done on the deck.

[28] Since the independence of the United Provinces was not recognized by Spain until 1609, these Dutch prisoners might have been executed as rebels against their former lord the king of Spain—an argument doubtless emphasized by the tenor of De Lende's commission, which follows this account of the battle.

[29] Spanish, *le mas perro*—literally, "the most of a dog."

[30] This descriptive paragraph is found in another copy of De Lende's commission, preserved in the same legajo with the original of the document just presented. We use this second copy, partly for the sake of this description, partly because it is more exact in the spelling of proper names. The estates belonging to the house of Orange were Nassau, Catzenellenbogen, Vianden, Dietz, Veer, and Vlissingue (anglicized to Flushing).

[31] Alluding to the Holy Roman Empire, which, founded by Charlemagne in the year 800, was long the temporal arm of the ecclesiastical power in Europe. Carlos I of Spain was its head, under the title of Charles V, during his reign as king of Spain. The Holy Roman Empire came to an end in August, 1806, with the resignation of its head, Francis II of Austria.

[32] Francisco Vaez was born at Segovia in 1543, and received into the Jesuit order in 1566. After his ordination he was sent to Mexico, where he filled various responsible offices, among them that of provincial. He died at Mexico, July 14, 1619. Sommervogel does not mention his presence in the Philippine Islands. The letter by Vaez is translated from the Latin version published by John Hay (1546-1607—a Jesuit of Scotch birth, noted for his disputes with Protestants), under the title *De rebus Iaponicis, Indicis*, etc., as seen in the title-page herewith reproduced (Antverpiæ, M. DC. v). But the letter had already been printed, two years earlier, in the *Relatione breve* of Diego de Torres, S.J. (Milano, MDCIII), the title-page of which is also given here. Torres held various high official positions in his order in Peru, Paraguay, and other South American countries; and Sommervogel says (*Bibliothèque Comp. Jésus*, viii, col. 132): "Father Torres, having been sent to Rome as procurator of his province, profited by his sojourn in Rome to

have his relation printed; it is dated at Rome, February 25, 1603." It is not certain whether either of these versions is the original production of Vaez; but as he was a Spaniard, and writing to the general of his order, it seems probable that he wrote in Latin, and that the Latin version which we follow is Vaez's own composition, rather than the Italian—which latter may have been Torres's translation from the Latin original, to suit better his own account written in Italian.

The Latin title-page reads thus in English: "Recent letters on affairs in Japan, India, and Peru; collected in one volume by John Hay, a Scot, of Dalgatty, of the Society of Jesus. Antwerp; from the printing-house of Martin Nutius, at the sign of the two storks; in the year 1605."

The Italian title-page is thus translated: "A brief relation by Father Diego de Torres, of the Society of Jesus, procurator of the province of Peru, regarding the fruit which is being gathered among the Indians of that realm; for the consolation of the religious of that Society in Europe. At the end is added the annual letter from the Philippine Islands for 1600. At Milan; by the heirs of the late Pacifico Pontio, and Giovanni Battista Piccaglia, partners; 1603. By permission of the superiors."

[33] Pedro Lopez de la Parra was a native of Salamanca; entering the Jesuit order, he completed his studies and was ordained at Mexico—where for some years he was both an instructor and preacher, being regarded as an unusually eloquent orator. Desiring to be a missionary in the Philippines, he came to the islands, but found that he could not master the language of the natives; discouraged by this, and finding that no other employment was available, he obtained permission from the visitor Garcia to return to Mexico; and on the voyage perished by shipwreck, as here related. (La Concepción, *Hist. de Philipinas*, iii, pp. 391, 392.)

[34] The word *collegium*, as used here, means rather "residence" than "college;" but we retain the latter rendering because the Jesuits were then actually conducting an educational institution at Manila, in which they gave instruction to the Spaniards and to some natives. This was the college of San José, for which provision had been made as early as 1585; but for various reasons it was not opened until 1600. Its first rector was Pedro Chirino; among its first students (thirteen in all) were Pedro Tello, a nephew of the governor, and Antonio de Morga, a son of the auditor. See La Concepción's detailed account, in *Hist. de Philipinas*, iii, pp. 403-409.

[35] La Concepción states (*Hist. de Philipinas*, iii, pp. 386-387) that St. Polycarp was chosen by lot, in a solemn and public assembly as the especial patron of the city of Manila, for its protection against earthquakes, as Santa Potenciana was its patron in hurricanes and tempests.

[36] Antipolo is a town lying about thirteen miles east of Manila, near the northwest corner of Laguna de Bay.

[37] La Concepción gives (*Hist. de Philipinas*, iii, pp. 409-412) an interesting account of the labors of this bishop, Fray Pedro de Agurto, during the year 1600. Assembling the clergy and friars of his diocese, he proposed to them various measures, especially intended to facilitate the instruction and conversion of the natives. The catechism of the church had been already translated into the Visayan speech; but this version was now entrusted to a committee of six (equally divided between the Jesuits, Augustinians, and regular clergy) for revision. This assembly resolved to attempt the suppression of polygamy among the heathen Indians subject to the Spaniards, and to check the easy divorces prevalent among them. Agurto undertook a visitation in Leyte and Samar, but could not complete it on account of those islands being invaded by pirates from Mindanao.

[38] Miguel Gomez entered the Jesuit order at Alcalá in 1582; after his ordination was sent to the Philippines; during his stay there was for some time an instructor in the college at Manila; and died there December 28, 1622.

[39] Ledesma was born in 1556, and became a novice in the Jesuit order at the age of sixteen. In 1596 he came to the Philippines, where he filled high positions in his order—rector at Zebu, rector at Manila, and provincial of the islands. He died at Manila, May 15, 1639.

[40] Christoval Ximenes was born in 1573, and entered the Jesuit order in 1588. Coming to the Philippines in 1596, he spent thirty-two years in the Visayan missions; he died at Alangatang, in Leyte, December 3, 1628. He was noted as a linguist, and composed various works, religious or poetical, in the Visayan tongue; one of these was a translation of Bellarmino's *Doctrina Christiana* (Manila, 1610).

Gabriel Sanchez is not mentioned by Sommervogel.

[41] See La Concepción's account of the work of the Jesuits in Bohol (*Hist. de Philipinas*, iii, pp. 356-362). Gabriel Sanchez and Juan de Torres were the first of their missionaries there. The Boholans did not, like the other natives of those islands, practice polygamy; thus their conversion was greatly facilitated. The fathers gathered many of the natives into a reduction; and they healed many sick persons with holy water. Among their converts was Catunao, a chief one hundred and twenty years old, who had guided Legazpi to Cebú.

[42] Apparently the same as the present Tubigon, a considerable town on the western coast of Bohol.

[43] Dúlag is a town on the eastern coast of Leyte; and Alangalang (named in the last section of this letter) is in the northern part of that island, some twenty miles up the Cabayong River.

[44] "Go ye, swift angels, to a people wrenched up and torn, a fearful people, after whom is none other."

[45] In MS., *treze* (thirteen)—apparently an error in transcription (probably arising from almost illegible writing in the original), since Vaez, in the document preceding this, makes the number of Jesuit priests in the islands to be thirty (*treinta*).

[46] La Concepción relates (*Hist. de Philipinas*, iii, pp. 380-382) the labors accomplished in less than a year by Garcia as visitor. Collecting over one thousand pesos of contributions, he restored the Jesuit church at Manila, which had been ruined by earthquakes; and appointed Pedro Chirino as rector of the college. He reorganized the missions of the Society, and their administration, and presented a more liberal interpretation of the rule and constitution of the order. He visited the various missions; and the missionaries who had been stationed in different villages were gathered by Garcia into a few central residences, from which they made journeys to carry on their labors. La Concepción writes in a critical tone, regarding Garcia as an innovator, and as doing more harm than good by some of his too radical measures. Sommervogel does not mention Diego Garcia.

[47] For interesting accounts, descriptive and historical, of early ships, see article by Admiral George H. Preble on "Ships of the Sixteenth Century," and similar papers on those of the next three centuries, in *The United Service*, November, 1883-June, 1884. See also Edward Shippen's account of galleys and the life of the galley-slaves ("Galleys of the Sixteenth Century"), in the same periodical, September, 1884. On galleons,

cf. note in *The Spanish War, 1585-87* (published by Navy Records Society; London, 1898), pp. 337-341.

[48] The document here referred to (dated January 15-June 12, 1601), and another recording a similar investigation made by Morga (July 6-9, 1602), are in the Sevilla archives, bearing the same pressmark as the fiscal's letter in our text. Both are too long and unimportant to be here presented.

[49] On June 13, 1597, Felipe II issued a commission to Antonio de Morga to investigate charges of peculation which had been made against this man, as factor of the royal exchequer in the Philippines.

[50] See La Concepción's account of the loss of this ship (*Hist. de Philipinas*, iii, pp. 428-435).

[51] Spanish, *colegio*; see note 32, *ante*.

[52] A fund, the interest of which is required by the Spanish laws for the support of an ecclesiastic.

[53] Mauban is a town and anchorage in the northeast corner of Tayabas province, Luzón; it lies on the Pacific coast of the island, and southeast from Manila.

[54] In a squadron, the galley next in rank to the flagship or *capitana*.

[55] These names appear thus in the text; but they evidently refer to the same persons who are previously mentioned as Liguana and Ssapay.

[56] Sangir (or Sanguir) is a small island midway between Mindanao and Celebes; Tagolanda is another one, south of Sangir, about fifty miles northeast of Celebes.

[57] At the beginning of this letter is a brief summary of its contents.

[58] In 1601 the capital of Spain was removed from Madrid to Valladolid; but this measure proved so disastrous that Felipe III found it necessary to return to Madrid in 1606.

[59] Diego Cerrabe entered the Augustinian order at Burgos in 1584. He came to the Philippines in 1595, and after various official services there, and two years' ministry at Pasig, he went to Spain with messages from his chapter at Manila; apparently he did not return to the islands. (Pérez's *Catálogo*, p. 47.)

[60] The MS. is worn or mutilated at the places marked by leaders; the words in brackets are the translator's conjectural readings.

[61] See definition of fuerza in Vol. V, p. 292. The reference here indicates that Tello or his friends, in order to oppose the fiscal's proceedings, secured the interference of some ecclesiastical judge, who thus committed fuerza.

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